PART THREE | AN EXPANDING NATION

CHAPTER 9
NATIONALISM AND SECTIONALISM

1811-1828

Secondary Source Reader

Historical scholarship for History B17A

INCLUDED	62 verified selections from 40 supplied monographs.
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CITATIONS	Chicago Notes and Bibliography; original book locators, never reader page numbers.

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If a historian quotes a primary source that you have not consulted directly, use a 'quoted in' note. Include only works you actually use in your bibliography.

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CHAPTER 9 · SECONDARY SOURCE S9.01

The Great Yazoo Lands Sale: The Case of Fletcher v. Peck

Charles F. Hobson

WORK	The Great Yazoo Lands Sale: The Case of Fletcher v. Peck
SELECTION	Introduction
SOURCE LOCATOR	Introduction (unpaginated supplied PDF) · University Press of Kansas, 2016.

Excerpt

The case of Fletcher v. Peck (1810) is a landmark of American constitutional law for two reasons: It was the first time the Supreme Court invalidated a state law as contrary to the Constitution and the first time the Court applied the clause of the Constitution that prohibits the states from impairing the "Obligation of Contracts." Although in Marbury v. Madison (1803) the Court had struck down a portion of a federal statute, the practice of what came to be known as "judicial review" had its true beginnings with the exposition of the contract clause in Fletcher. Ideas about the judiciary's authority to void legislative acts were still in flux at the time of this decision, with jurists appealing to extraconstitutional principles as well as specific provisions of the Constitution. Chief Justice John Marshall interpreted the contract clause in a way that resolved this debate in favor of invoking the written constitutional text, a development of great significance in consolidating the practice of judicial review. Marshall served as chief justice of the United States from 1801 to 1835, longer than any other chief justice to date. During his tenure the contract clause emerged as the constitutional expression of the doctrine of "vested rights," which held that rights acquired by individuals under law—most importantly, the right to the security and free enjoyment of property—were to be regarded as inviolable, not to be infringed by governmental power. Vested rights, in the words of twentieth-century scholar Edward S. Corwin, became "the basic doctrine of American constitutional law." Through much of the nineteenth century the contract clause was the Supreme Court's principal weapon to restrain state interference with the vested rights of property. Fletcher established a precedent for an expansive reading of the clause that brought under judicial scrutiny a wide spectrum of state laws. It established the principle that public as well as private contracts tract to include grants of land. In subsequent cases the Court voided a New Jersey law repealing a tax exemption on land formerly belonging to Indians, struck down New Hampshire's laws radically modifying Dartmouth College's colonial charter, and overruled Kentucky's occupying-claimant laws. The term "contract" was further broadened to embrace corporate charters and compacts entered into between two states. In cases between private persons, the Court invalidated a New York bankruptcy statute discharging a previously contracted debt. However, a closely divided Court later upheld a bankruptcy law that discharged a debt contracted after the law's enactment. In its last decade the Marshall Court sustained state laws challenged under the contract clause, including a Rhode Island tax on a bank chartered by the state. These later decisions modified but did not repudiate the broad reading first articulated in Fletcher. The Supreme Court continued to apply the clause robustly to protect property rights against state interference throughout the chief justiceship of Roger B. Taney (1836-1864). In the late nineteenth century the contract clause began to lose its high standing in constitutional law, superseded by the far more comprehensive due process clause of the Fourteenth Amendment. Although the contract clause in our own time has largely receded into insignificance, the broader purposes of constitutional law that it served have proved enduring.

Chicago Citations

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Hobson, *The Great Yazoo Lands Sale*, Introduction (unpaginated supplied PDF).

CHAPTER 9 · SECONDARY SOURCE S9.02

Gibbons v. Ogden, Law, and Society in the Early Republic

Thomas H. Cox

WORK	Gibbons v. Ogden, Law, and Society in the Early Republic
SELECTION	The Decision of the Supreme Court
SOURCE LOCATOR	Original pages 154-156 · Ohio University Press, 2009.

Excerpt

The chief justice then laid out a broad interpretation of the Constitution. Although states were initially sovereign after the American Revolution, he said, they subordinated part of their independence to the federal government through the adoption of the Constitution. The Constitution by necessity granted broad powers to the federal government. To deny Congress powers not specifically listed in the Constitution "would cripple the government, and render it unequal to the object, for which it is declared to be instituted, and to which the powers Constitution, Marshall insisted that "the enlightened patriots who formed our constitution, and the people who adopted it," employed plain words to clearly express their ideas toward government.'* The commerce clause of the U.S. Constitution clearly gave Congress the "power to regulate commerce with foreign nations, and among the several states, and with the Indian tribes." He broke the clause down into its constituent parts. The phrase "commerce," he said, referred to the purchase or sale of commodities. However, he added, "commerce, undoubtedly, is traffic, but it is something more; it is intercourse." Under Marshall's definition, intercourse included trade between nations and between different parts of the same nation. The chief justice wryly commented, "The mind can scarcely conceive a system for regulating commerce between nations, which shall exclude all laws concerning navigation, which shall be silent on the admission of vessels of the one nation into the ports of the other, and be confined to prescribing rules for the conduct of individuals, in the actual employment of buying and selling, or of barter."!" Since its inception, Congress had frequently wielded power over navigation as well as commerce, Marshall said. Both the framers and the American public in 1787 had understood that commerce necessarily included navigation. If Congress could show no favoritism to one American port at the expense of another, then the legislative branch obviously had powers to regulate both commerce and navigation. The ability of the federal government to impose embargoes further belied formidable powers to regulate commerce and navigation in both wartime and peacetime. Even New Englanders who had opposed President Jefferson's embargoes twenty years earlier had conceded the point.'* Having defined commerce, the chief justice then upheld Congress's authority to regulate commerce with foreign nations and "among the several states." Marshall argued that the word "among" meant "intermingled with." He further elaborated, "A thing, which is among others, is intermingled with them. Combut may be introduced into the interior."!° States retained exclusive power only over internal trade solely within their borders.° Congressional commerce power, however, did not end at state boundaries but included "the deep streams which penetrate our country in every direction, pass thorough the interior of almost every state in the Union." The federal government could, therefore, regulate commerce within state boundaries: because many states shared common borders, interstate commerce necessarily included trade across state lines.

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Shortened citation:

Cox, *Gibbons v. Ogden, Law, and Society in the Early Republic*, 154-156.

CHAPTER 9 · SECONDARY SOURCE S9.03

M'Culloch v. Maryland: Securing a Nation

Mark R. Killenbeck

WORK	M'Culloch v. Maryland: Securing a Nation
SELECTION	tellingly, Marshall’s strong Federalist philosophy, which he was now
SOURCE LOCATOR	Original pages no stable fixed page labels in supplied edition · University Press of Kansas, 2006.

Excerpt

leader of the Court, made it unlikely that Jefferson included him in the group with whom he arguably sought reconciliation in his inaugural address, where he famously declared, “We have called by different names brethren of the same principle. We are all Republicans, we are all Federalists.” Over the next several years Marshall molded the Court in his image, transforming it from a bit player in the federal system into a major presence in the formation of a strong, vibrant nation under the terms of a Constitution that he interpreted with a _ strong nationalist cast. Ironically, one of the first and most important occasions for this arose when, as secretary of state, Marshall failed to deliver to one William Marbury his commission as a justice of the peace for the District of Columbia. Like Marshall, Marbury’s appointment represented an attempt by Adams to place trusted Federalists in positions of authority before Jefferson assumed the reins of power. But Marshall failed to complete the process, and Marbury sought a writ of mandamus from the Supreme Court, an order directing that the new secretary of state, James Madison, deliver Marbury’s signed and sealed commission. On December 18, 1801, Chief Justice Marshall announced that the Court would hear the case, setting it for argument during the next term of the Court, which was scheduled for the following June. But Congress had repealed the act authorizing that sitting, and the case was carried over until February 1803. Speaking for a unanimous Court, Marshall delivered the opinion in Marbury v. Madison on February 24, 1803. The actual holding was that the Court did not have the power to hear the case. The Court’s original jurisdiction, that is, the power to have a case filed directly with it, was controlled by the plain language of Article IM, which limited that authority to cases involving “Ambassadors, other public Ministers and Consuls, and those in which a State shall be a party.” But that clause dictated jurisdiction only for individuals who were officials of foreign nations, a class within which Marbury clearly did not fall. The provision of the Judiciary Act of 1789 that authorized the Court to issue a writ of this sort was accordingly unconstitutional, as it purported to expand the Court’s power beyond the scope of what the Constitution conferred. not have to place in office an individual whose beliefs were at odds with his. But the manner in which Marshall went about reaching the technical legal conclusion actually transformed victory into defeat. The holding of the case required at most a simple statement that the portion of the Judiciary Act authorizing the Court to issue the writ was unconstitutional. And while Marbury became the first case in which the Court actually held that a federal measure violated the Constitution, the notion that a court had the power to issue such a holding was hardly novel. It was not, then, the fact of judicial review but the manner in which Marshall expounded the doctrine that so offended his opponents. Marshall approached the questions presented in Marbury in an order that allowed him to pen the first of a series of expansive opinions that articulated his vision of the Constitution and the nation it created. The authority of the Court to issue the writ was the third and final question considered. First came a discussion of the nature of the Constitution and the role of the judiciary in interpreting it. As a result, Marshall crafted an opinion announcing that this chief justice had every intention of seeing that the Court would fulfill its role as ay coequal branch of the government. An “act of the legislature, repugnant to the constitution, is void,” he declared. And the final responsibility for making such a determination fell to the Court: “It is emphatically the province and duty of the judicial department to say what the lawiis.” Marbury thus became the first of the decisions issued by what we now call the Marshall Court that placed the Supreme Court at the center of the American governmental and political systems. In virtually every one of these, Marshall wrote the opinion for the Court. That reality reflected a second Marshall innovation, the abandonment of the pr nglish under which each me ber of the Court expressed his individual view,-This approach, known as speaking seriatim, had been the norm for the Court. In one of the very few truly important cases decided by the Court in the 1790s, for example, Chisholm v. Georgia (1793), there were five individual opinions, four holding that a federal court had the power to hear a suit against a nonconsenting state and one disagreeing. But Marshall believed that it was important for the Court to speak with a single voice

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Shortened citation:

Killenbeck, *M'Culloch v. Maryland*, no stable fixed page labels in supplied edition.

CHAPTER 9 · SECONDARY SOURCE S9.04

John Marshall and the Heroic Age of the Supreme Court

R. Kent Newmyer

WORK	John Marshall and the Heroic Age of the Supreme Court
SELECTION	onstitutional Law for a New Nation
SOURCE LOCATOR	Original pages 317–318 · Louisiana State University Press, 2001.

Excerpt

early Republic, so from the beginning was John Marshall. And so was Chief Justice Marshall.* As chief justice, Marshall was ideally placed to implement the broad ""commercial minded" goals of the Framers and the growing needs of American entrepreneurs doing business across state lines. The business community needed economically informed rules, administered uniformly and operating on individuals without regard for state boundaries and local idiosyncrasies. Even more than Congress, the federal courts were in a position to supply such rules, both in national and international law. In the adversarial system based on common-law methodology inherited from England, individuals could call the courts into action. As the final appellate court in the structure of federal courts, the Supreme Court could in turn call on the collective authority of the nation to settle individual economic disputes. During Marshall's tenure, almost every case, excepting those dealing with the judicial process itself, treated economic disputes. Even cases dealing with the Court's jurisdiction—Marbury, Martin v. Hunter's Lessee, Cohens, and the great admiralty case of De Lovio v. Boit (1815) come readily to mind—were fraught with market-related consequences. Nearly every one of Marshall's great constitutional opinions, most notably Fletcher, McCulloch, Dartmouth College, and Gibbons, facilitated market development. The federal circuit courts in Marshall's time were also directly involved in the economic life of the people by virtue of the fact that they had jurisdiction over suits between citizens of different states. Marshall's circuit, consisting only of Virginia and North Carolina, was less on the cutting edge of economic development than was Story's New England circuit, but no less than Story, Marshall understood the market-enhancing potential of uniform circuit law.* Market considerations, then, permeate almost every aspect of Marshall's work on the Court, connecting the various aspects of his labors into a jurisprudential whole. Decisions in international law were no less a part of this integrated system than were those in constitutional law. Rule of law in the international setting had to be established without the aid of a written supreme law governing individual nation-states. But the rule of law was Marshall's object just the same, and the law he attempted to establish whenever possible respected private property and expanded the ability of individual entrepreneurs, whether American shippers or foreign merchants such as Manuel Pinto, to make their Lockean way in a world at war. His numerous Contract Clause opinions also fit the market scenario. In cases involving land transactions especially—in Fletcher v. Peck most conspicuously but also in Huidekoper's Lessee, New Jersey v. Wilson, and later Johnson v. McIntosh (1823)—he was guided, if not driven, by a concern for market regularity.©" Marshall's efforts to facilitate national economic activity climaxed in the remarkable triad of decisions in 1819 and ended with Gibbons in 1824. The correspondence between Marshall's plan for national unity and Henry Clay's American System, not to mention the national vision of newly elected president John Quincy Adams, was not coincidental. The Court's constitutional nationalism was a two-edged sword, and it cut both ways for economic unity: by prohibiting states from interfering with the national market, as in Sturges and Gibbons, and by giving Congress the power to promote the same, as in McCulloch. Even Dartmouth College fit the market scenario, readying the American business corporation to do business on a national scale. What these national decisions of the Marshall Court did not do, however, was create a modern nation-state, with its extensive regulatory apparatus. No one, least of all Marshall, expected Congress to regulate the national economy; indeed, the first modern regulatory statute did not come until three years after his death in 1838, when Congress passed modest safety laws regulating steam boilers on steamboats plying interstate waters. The federal income tax did not come until the Civil War, and even then it was temporary, thanks to the nullifying decision of the Supreme Court in Pollack v. Farmers, Loan and Trust Co. in 1895. What Marshall wanted was more modest—and more within the limited nationalist notions of the age. He believed in a national bank, advocated by Hamilton in 1791; in a tariff designed to protect fledgling American manufacturers, also advocated by Hamilton; and in federally sponsored internal improvements, the kind first advocated by Albert Gallatin in 1809. What he wanted the national

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Newmyer, *John Marshall and the Heroic Age of the Supreme Court*, 317–318.

CHAPTER 9 · SECONDARY SOURCE S9.05

The Great Chief Justice: John Marshall and the Rule of Law

Charles F. Hobson

WORK	The Great Chief Justice: John Marshall and the Rule of Law
SELECTION	Property Rights and the Contract Clause
SOURCE LOCATOR	Original pages 73-74 · University Press of Kansas, 1996.

Excerpt

To Marshall the contract clause epitomized a Constitution whose true character lay less in its grant of powers to the federal government than in its abridgment of state powers. Under his guidance of the Supreme Court, this provision performed a function similar to that later undertaken by the Fourteenth Amendment, which was adopted after the Civil War. That amendment—which declared that no state could "deprive any person of life, liberty, or property, without due process of law; nor deny to any person within its jurisdiction the equal protection of the laws"—in turn during the twentieth century became the Supreme Court's instrument for applying the Bill of Rights amendments to the states. Prior to this development the guarantees of those amendments were held to restrain only the federal government, as Marshall himself declared in one of his last opinions, Barron v. Baltimore (1833). Yet to a remarkable degree Marshall succeeded in making the original Constitution, via the contract clause, serve as a charter of rights that protected the American people from the acts of their state governments. He expressly recognized this broader constitutional purpose in Fletcher v. Peck (1810), when he observed (in reference to Article 1, section 10) that "the constitution of the United States contains what may be deemed a bill of rights for the people of each state."[1]

The prevailing view of Marshall's contract clause jurisprudence is that he substantially enlarged the meaning of the clause beyond the intention of its framers. Some contend that the jurist deliberately ignored the original meaning in order to read into it his own political and economic attitudes, notably, his strong attachment to property rights and creditor interests. Given Marshall's "ardent desire to secure further protection for the rights of property," noted one commentator, "it is not surprising that the Supreme Court under his domination should have given to the clause a meaning far broader than any which its framers ever attached to it."[2] Others admire the creativity of Marshall's contract clause opinions, praising the chief justice for carrying out his duty to interpret the Constitution without being tied down to some supposed original and fixed meaning of that instrument.[3]

To explain Marshall's contract decisions as the product of his undeniable sympathy for the rights of property is simplistic and reductionist. not regard property as sacred and who did not believe that its protection was one of the fundamental purposes of the Constitution? Whatever Marshall's personal beliefs, security for property was indisputably a constitutional value that as chief justice he was bound to uphold. Without question his interests as a property owner and supporter of business enterprise, along with his experience as a lawyer representing merchants, planters, creditors, and debtors, shaped his thinking about the relationship between law and the economy. From the time he began practicing law in the 1780s, Marshall had a lifelong identification with the urban, commercial interests of Richmond. Fie regularly invested in companies chartered by the Virginia legislature to improve river navigation, construct canals, and build turnpikes, and also subscribed to stock in banks and insurance companies. As a direct participant in these projects, he acquired knowledge of Virginia's political economy and gained an appreciation of the role of corporations in promoting commercial prosperity. Respect for rights conferred by corporate charters was a central tenet of the Virginia system with which he was conversant. That a corporate charter was a kind of contract, perhaps one that was constitutionally protected, was perfectly consistent with Marshall's Virginia experience.[4]

Author's Notes

1. 6 Cranch 137-38.

2. Benjamin Fletcher Wright, Jr., The Contract Clause of the Constitution (Cambridge, Mass., 1938), 26.

3. See, for example, Joseph Lynch, "Fletcher v. Peck: The Nature of the Contract Clause," Seton Hall Law Review 13 (1982): 120.

4. Bruce A. Campbell, "John Marshall, the Virginia Political Economy, and the Dartmouth College Decision," American Journal of Legal History 19 (1975): 40-65.

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Hobson, *The Great Chief Justice*, 73-74.

CHAPTER 9 · SECONDARY SOURCE S9.06

The Transformation of American Law, 1780-1860

Morton J. Horwitz

WORK	The Transformation of American Law, 1780-1860
SELECTION	Competition and Economic Development
SOURCE LOCATOR	Original pages 111-112 · Harvard University Press, 1977.

Excerpt

There is a clear relationship between competition and economic development in nineteenth century America. In an underdeveloped society, with little available private capital, a policy of encouraging development required that the legal system provide legal arrangements that guaranteed private investors certainty and predictability of economic consequences. Perhaps the most important of these guarantees was protection'against freedom from competitive injury. To accommodate this policy, courts promulgated rules reflecting a view of property as essentially exclusive and monopolistic, so that every attempt to draw business away from an existing enterprise was usually treated as an injury to property itself.

As it became bound up with a state policy of promoting development, private investment was also regarded as an extension of state efforts to further economic growth. The legal system thus rarely distinguished between'public and private forms of investment. But as d'evelopment proceeded, the early monopolistic strategy for encouraging economic growth soon became a legal barrier to further growth. Certainty and predictability of legal arrangements became incompatible with sustained economic development. Previous state concessions to private interests·thus had come to represent obstacles to continued growth, and for th'e first time state efforts to encourage economic growth began to diverge from private efforts to preserve existing.legal expectations. Under the continuing pressure to encourage further investment, the legal system gradually began to distinguish between public and private interests. A monopolistic and exclusionary conception of property was replaced by legal rules that allowed various uncompensated injuries to property. Eventually, out of this sweeping redefinition of property, the legal presumption in favor of competition emerged full blown.

The change in the conception of the corporation marks one of the fundamental transitions from the legal assumptions of the, eighteenth century to those of the nineteenth. The archetypal American corporation of the eighteenth century is the municipality, a public body charged with carrying out public functions; in the nineteenth century it is the modem business corporation, organized to pursue private ends for individual gain. By the time of the decision in the Dartmouth College case[3] (1819), holding that a corporate charter was a contract, the conception of the corporation as a public body had been on the decline for almost a generation, although the implications of this trend were only beginning to be explored. The distinctipn between public and private corporations, so prominent in Justice Story's c.oncurring opinion, was above all a response to the dramatic growth in the number of business corporations during the previous generation. As late as 1780, colonial legislatures had conferred charters on only seven business corporations, and a decade later the number had increased to but forty. However, in the last ten years of the eighteenth century 295 additional corporate charters were granted. [4]

During the· early years of the nineteenth century both the weight of the old corporate model and the pressure for change are everywhere in evidence. In 1809 the Virginia Supreme Court upheld a legislative act amending the charter of an insurance corporation. "With respect to acts of incorporation," Judge Spencer Roane observed', "they ought never to be passed, but in consideration ofservices,to be rendered to the public.... It may be often convenient for a set of associated individuals, to have the privileges of a corporation bestowed upon them; but if their object is merely prz"vate or selfish; if it is detrimental to, or not promotive of, the public good, they have no adequate claim upon the

legislature for the privileges."5 Yet, three years earlier the Massachusetts Supreme Court for the first time recognized the private nature of a recently organized turnpike corporation. Probably intending to put to one side the long history of state regulation of the affairs of municipal corporations, it observed that "the rights legally vested in this, or in any corporation, cannot be controlled or destroyed by any subsequent statute, unless a power for that purpose be reserved to the legislature in the act of incorporation."6

Author's Notes

3. 17 U.S. (4 ·Wheat.) 518 (1819).

4. 4 J. S. Davis, Essays z"n the Earlz"er H'istory of Amerz"can Corporatz"ons 24 (1917). By 1801 only eight manufacturing corporations had received charters. Id. at 269.

Chicago Citations

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Shortened citation:

Horwitz, *The Transformation of American Law, 1780-1860*, 111-112.

CHAPTER 9 · SECONDARY SOURCE S9.07

John Marshall and the Heroic Age of the Supreme Court

R. Kent Newmyer

WORK	John Marshall and the Heroic Age of the Supreme Court
SELECTION	Republican Judge as Lockean Liberal
SOURCE LOCATOR	Original pages 251-252 · Louisiana State University Press, 2001.

Excerpt

This static, one might say premodern, approach to corporate property in Dartmouth College was forecast in Bank of the United States v. Deveaux (1809), where the question was about whether a corporation could sue in the federal courts. No provision was made for such suits in the Judiciary Act of 1789, but Marshall upheld jurisdiction anyway, reasoning that the rights of individual stockholders to sue could be transferred to the corporate entity. Since the stockholders of the bank were citizens of Pennsylvania, the corporation could sue under diversity of citizenship in the federal courts. Deveaux was abandoned as unworkable in 1844 in Louisville, Cincinnati, and Charleston Railroad v. Letson (1844) when the Court ruled that for jurisdictional purposes the corporation was a citizen of the state in which it was incorporated. What remained, however, and what was the key to Marshall's approach in Dartmouth College, was the working assumption that the legal rights of corporations could be defined by the individual rights of the stockholders. It followed that the property of corporations was entitled to the same legal protection as the private property of individuals, even though the corporation was created by the state and might have a public function.

By Marshall's reasoning in the college case, then, the right to govern, granted in the old charter—like the right to office in Marbury or the right to sue in Deveaux—was simply a matter of property vested by contract. To emphasize the point, he noted further that the right to govern included the right of the trustees, if they saw fit, to give themselves teaching jobs for real money. Having established that the charter had bestowed property rights on the trustees, it was an easy, indeed nearly unnoticed leap to conclude that it was a contract within the meaning of the Contract Clause of the Constitution. There was no doubt in Marshall's mind that the Contract Clause "must be understood as intended to guard against a power of at least doubtful utility, the abuse of which had been extensively felt; and to restrain the legislature in future from violating the right to property." If any authority for the interpretation was needed, he found it in the history of the states under the Articles of Confederation. The law according to Marshall was that corporate property was identical to private property, that the legal character of the corporation might be inferred from the rights belonging to individual stockholders. All of this he stated before he got to the main point, the Court's holding, assumed but not proved, that a corporate charter was a contract within the meaning of the Contract Clause of the Constitution.® Given the conceptual improvisation in Marshall's opinion, and the fact that it was cited so often to support corporate development throughout the nineteenth century, it is tempting to conclude that Marshall was a modernizer par excellence: that he read the future and brought the law into harmony with it. A close consideration of his reasoning, however, reminds us that even the wisest of men sometimes create what they know not. This does not deny the role Marshall's opinion played in nineteenth-century economic development, but only insists that his reasoning and his vision were deeply anchored in the traditional common-law world he knew firsthand in Virginia. He concentrated on the law governing eleemosynary corporations and the vested-rights doctrines that went with it, not because he was trying to disguise his doctrinal innovations, but because he believed that the old law he cited so copiously was controlling.

To put it another way, his reasoning in Dartmouth College did not advance appreciably over his argument in Bracken v. The College of William and Mary in 1790. It was Joseph Story, not Marshall, who put a modern spin on these ancient ideas and in doing so made them serviceable to the new American business corporation. What Story said in his concurring opinion, and what Marshall only touched on, was that the public or private character of a corporation

is determined not by its function but by its foundation. If the foundation, the capital, is private, according to Story, then so is the corporation. Private corporations, even though they were chartered by the state and even though they might be connected with the welfare of the public, were immune from state regulation unless the state explicitly reserved the right to do so in the charter. Those who founded Dartmouth College with private donations were protected from state regulations and state taking by the Contract Clause of the Constitution. So were the bold capitalists and friends of Story who created the new textile corporations of the Merrimack Valley in the 1820s.

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Newmyer, *John Marshall and the Heroic Age of the Supreme Court*, 251-252.

CHAPTER 9 · SECONDARY SOURCE S9.08

Law and the Conditions of Freedom in the Nineteenth-Century United States

James Willard Hurst

WORK	Law and the Conditions of Freedom in the Nineteenth-Century United States
SELECTION	The Balance of Power
SOURCE LOCATOR	Original pages 75–76 · University of Wisconsin Press, 1956.

Excerpt

So rar as these tacts detine it, was certainly not the product of calculation. Policy made by drift and default bulked larger than deliberated decision in forming the century's final legacy to its successor.

The release-of-energy principle contributed to the currents of 1870- 1908 mainly by providing a range of flexible contract and association devices, notably the corporation and the procedures of large-scale finance. Two elements of drift and default gave unexpected direction and effect to this release of energy. Contract and free private association suggest relations entered voluntarily; the compulsion involved is ostensibly only that to which persons have given some initial consent. The first unforeseen factor that entered the play of the release-of-energy principle was the enormous expansion of practical compulsion imposed on strangers to contracts or associations, as commercial and industrial corporations and investment bankers reached out to occupy the multi-state markets whose availability the law had guaranteed. Economic growth tied the lives of an increasing proportion of people to the market and the division of labor; they were either wage or salary earners, or small producers or traders in specialized ranges of goods or services. Theoretically buyers consent to the practical compulsions of the market in which they buy; if they do not consent, they stay out. But men who find their whole livelihood in the market are too vulnerable to stay out. An outstanding recognition of this simple but slowly learned truth was the legislation which limited or abolished the employer's defense of assumption of risk in industrial accident cases. To balance the reach for broader trade areas on the one hand, and the individual's access to new markets on the other, became of manifest concern to the late nineteenth-century courts as they dealt with covenants by the seller of a business not to compete with his buyer. It was more than coincidence that the end of the nineteenth century, which produced the definitive victory of a market-oriented way of life, also produced an emerging pattern of law dealing with obstruction of access to markets, Intimidation by violence, threats of harassing litigation, slander of goods, bogus competition, interference with contract relations, boycotts, and exclusive dealing arrangements barring the door to trade opportunities took on critical meaning when all livelihood turned upon participation in trading or the availability of employment.* We had to learn a second major lesson about our release-of-energy principle. During the first half of the century we expressed that principle chiefly through contract. But sound doctrine for so fundamental a community concern as the organization of power requires built-in points situation. Contract was inherently too limited an institution to serve this need, Its nature was to express and serve the immediate interests of bargaining parties; indeed, this restricted focus upon the contractor's ambitions was what made contract socially useful as the prime legal device to multiply the release of individual or group energies. Moreover, as a matter of law private individuals or groups were held quite strictly to their roles as private contractors or property owners. A litigant who claimed to vindicate a public interest might generally find standing in court only if he could show that his suit would likewise protect his special interest. Conversely, if a broad public policy came in issue in a private lawsuit—as in a question of the constitutionality or interpretation of a statute—there was little the public authorities might do to intervene, to speak directly on behalf of the public program. Again, pursuit of profit not only justified doing ordinary competitive damage to a market rival, but was a business firm's whole legal excuse for being. When Henry Ford would have cut car prices for the declared purpose of spreading employment and wealth, the Michigan court, in terms which carry the tone of the late nineteenth century, declared this not a proper corporate policy: "A business corporation is organized and carried on

primarily for the profit of the stockholders... [I]t is not within the lawful powers of a board of directors to shape and conduct the affairs of a corporation for the merely incidental benefit of shareholders and for the primary purpose of benefiting others....”® The cautious sense that contract alone was not a sufficient organizing principle for society never quite deserted us. Always the courts held onto a residual power to refuse enforcement to contracts which they found to offend public policy. From the Taney years the Supreme Court never deviated from the ruling that the contracts clause did not prevent the operation of state police power upon existing agreements. These reservations were significant. However, not until events set their current after 1870 were legislatures or courts pressed to make broad use of the authority so reserved.

Moreover, the very care with which we reserved power to “police” enforcement of contracts or behavior in which contracts might be involved expressed a dangerous limit on imagination. Implicit here was the notion that the important thing was to deal with the positive social harms that men might willfully do. But the most serious damage that preoccupation with contract wrought in important areas of our life was done nat theanah “willfjilnece Fiat thenangh jtndaifexvaonna new Tack Af mmc fe

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Shortened citation:

Hurst, *Law and the Conditions of Freedom in the Nineteenth-Century United States*, 75–76.

CHAPTER 9 · SECONDARY SOURCE S9.09

John Marshall's Defense of McCulloch v. Maryland

Gerald Gunther, ed.

WORK	John Marshall's Defense of McCulloch v. Maryland
SELECTION	Introduction
SOURCE LOCATOR	Original pages 9-10 · Stanford University Press, 1969.

Excerpt

The Junto had a more disciplined following when it came to filling offices, from county judge to governor, than when unswervdiscourses were likely to carry more weight for coming from a theory. Indeed, Marshall's apprehension was justifiably greater just because theory predominated in the Enquirer essays, just because Amphictyon and Hampden eschewed the usual and easy route of rallying loud but merely temporary hostility to the Court from those injured by the immediate result. Virginia was not one of the states seeking to tax the Bank out of existence. The Junto leaders were not vehement Bank enemies j many, indeed, had close economic and personal ties with the Bank's Richmond the immediate threat less than Marshal feared^ bu^ their preo£cupation with the implications of the reasoning justified his long- v^ rangeconcern: it showed that they shared his sense of what was Q^hemeral and what was truly irnportant about McCuUoch. That the most intense criticism should emanate from Virginia was additional reason for Marshall to be apprehensive. His home resume its dominant role. Virginia's anti-Federalists—including Patrick Henry, Spencer Roane's father-in-law—had led the fight *against John Marshall and his fellow supporters of the Constitions of 1798 and Madison's Committee Report of 1799, attacking the Alien and Sedition Acts as beyond congressional competence, had elaborated the case against broad construction and had turn of the century, the responsibilities of office exerted pressure toward nationalism and tempered the strict constructionist faith. Yet a strain of unreconstructed Republicanism had always persisted, even while most followers of Jefferson and Madison abandoned many constitutional scruples. John Randolph of Roanoke and John Taylor of Caroline personified that orthodox heritage. And Spencer Roane and the Richmond Enquirer were its most articulate spokesmen. They did indeed support Madison against the states' rights attacks of New England Federalists who found hated War of 18 12. But even then, when most old Republicans and most old Federalists managed to execute an ideological aboutface, Spencer Roane had refused to totally abandon the old creed.

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CHAPTER 9 · SECONDARY SOURCE S9.10

Private Interest & Public Gain: The Dartmouth College Case, 1819

Francis N. Stites

WORK	Private Interest & Public Gain: The Dartmouth College Case, 1819
SELECTION	Private Interest & Public Gain
SOURCE LOCATOR	Original pages 24–25 · University of Massachusetts Press, 1972.

Excerpt

1816 approached. The election brought Republican truth and light into every branch of the government save the judiciary, and that problem did not seem difficult for it was the common practice of victorious parties to reform the judiciary. The Federalists had reformed it in 1813. It is difficult to assess the effect of the College quarrel on the election, but it certainly helped elevate the total votes cast to the second largest in New Hampshire history up to 18 16. 16 There is no difficulty assessing the election's effect on the College controversy; important changes resulted. The Wheelock-Octagon feud no longer excited public attention, which confirmed the Octagon's suspicions that the Republicans had used Wheelock's distress only so long as it promised Federalist defections. [17] The Republicans now frankly set out their position on Dartmouth College. The Patriot no longer cried either for Wheelock's restoration or for religious freedom. Hill now urged the new legislature to "correct the abuses at Dartmouth College,"

Author's Notes

17. With Republicans victorious, though not because of large Federalist defections, the Trustees believed Republican interest in Dartmouth College would end. Timothy Farrar to Francis Brown, April 8, 1816, DCA, 816258; Concord Gazette, April 2, 1816.

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Shortened citation:

Stites, *Private Interest & Public Gain*, 24–25.

CHAPTER 9 · SECONDARY SOURCE S9.11

The Market Revolution: Jacksonian America, 1815-1846

Charles Sellers

WORK	The Market Revolution: Jacksonian America, 1815-1846
SELECTION	Hard Times, Hard Feelings, Hard Money
SOURCE LOCATOR	Original pages 142-144 · New York: Oxford University Press, 1991.

Excerpt

The Virginia gentry, after ruling the republic for a generation, suddenly saw their power evaporating. The panic, converting chronic depression into wholesale bankruptcies and emigration, suggested that the downward slide of the whole Chesapeake planting class was irreversible. Simultaneously they were confronted by a united antislavery North in the Missouri controversy and by the Marshall Court's alarming decisions in Dartnouth, Sturgis, and McCulloch. It had already occurred to Radicals like Nathaniel Macon that "if Congress can make canals, they can with more propriety emancipate."[12] In the Missouri crisis, strict constitutional construction—heretofore the first line of defense for the humane Jeffersonian vision of the republic—became also the first line of defense for slavery. Now Virginia's anxious gentlemen fused both struggles with the struggle to maintain their power against the threatening sectional alliance and the threatening constitutional doctrines effected by their Federalist/Clintonian foes.

The Richmond Junto wheeled up its heaviest artillery to bombard the broad constructionism of Marshall's McCulloch. The Virginia legislature entered a "most solemn protest" and proposed a new tribunal for adjudicating federal-state conflicts. Judge Roane wrote for the Enquirer under the signature "Hampden" a series of essays powerfully criticizing the Hamilton/Story/Marshall line of constitutional reasoning. John Taylor of Caroline set feverishly to composing an elaborate exegesis of the Virginia doctrine of strict construction and state rights. Published in 182.0, his Construction Construed and Constitutions Vindicated took as its primary targets McCulloch and the Missouri restrictionists. Ritchie's widely circulated Enquirerblazed away at the same targets, claiming that it was defending state rights and not slavery, "an evil" to be sure, but—the inevitable but—one "we know not how to get rid of."

Although Jefferson resisted Roane's efforts to draw him publicly into the fray, he approved "every tittle" of Hampden's argument and thought the states should present a copy of Construction Construed "as a standing instruction" to every representative they elected. Once again it seemed to the ex-President that the federal judiciary, "working like gravity, without intermission, is to press us at last into one consolidated mass." He particularly resented the Supreme Court's "crafty chief judge," whose "lazy or timid" associates allowed him to deliver, as if unanimous, opinions "huddled up in conclave, perhaps by a majority of one. "Jefferson thought the earlier Republican failure to impeach notoriously partisan judges had made the judiciary indifferent to public opinion. Unawed by the shibboleth of judicial independence, he insisted that in a republican government, "independence of the will of the nation is a solecism."[13]

Author's Notes

12. Albert Ray Newsome, *The Presidential Election of 1824 in North Carolina* (Chapel Hill, 1939), 15.

13. Paul Leicester Ford, ed., *The Writings of Thomas Jefferson*, 10 vols. (New York, 1899), 10:140, 171, 184; Charles Warren, *The Supreme Court in United States History*, 2 vols. (Boston, 1926), 1:546.

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CHAPTER 9 · SECONDARY SOURCE S9.12

The Presidency of James Monroe

Noble E. Cunningham Jr.

WORK	The Presidency of James Monroe
SELECTION	The New President and a New Congress
SOURCE LOCATOR	Original pages 46-47 · University Press of Kansas, 1996.

Excerpt

As he extolled the vast territory of the United States, Monroe turned to the subject of internal improvements and stressed the many advantages afforded by good roads and canals and the need for their construction. On the controversial issue of the constitutional power of Congress to construct a system of roads and canals, however, the presi dent announced the "settled conviction in my mind that Congress do not possess the right. It is not contained in any of the specified powers granted to Congress, nor can I consider it incidental to or a necessary means." He recommended to Congress the submission of a constitu tional amendment that would confer the explicit power to build roads and canals. Monroe also suggested another amendment that would em power Congress to institute "seminaries of learning, for the all-impor tant purpose of diffusing knowledge among our fellow-citizens throughout the United States."18

Of all the subjects touched on in his address, Monroe's announce ment concerning taxes attracted the most interest. Even before the pres ident's message arrived, word had circulated among members of Con gress that the cabinet had agreed to recommend the repeal of all internal taxes, which included licenses to distillers and retailers, taxes on refined sugars, sales at auction, carriages, and stamped vellum, parchment, and paper.[19] After Monroe's address was delivered to the House, Congressman Hugh Nelson remarked, "If not popular in any other sense, it will be so from recommending a repeal of the internal taxes."20 But former Federalist senator Jeremiah Mason of New Hamp shire said the recommendation was "what I least expected and dislike most.... This is the only tax which tends to an equalization of bur dens between the sea-board and interior states."21

Members of Congress had been anxious to hear Monroe's position on internal improvements since it was not known whether the new president would depart from his predecessor on the controversial ques tion. The issue was particularly lively because Madison, on his last day in office, had vetoed a bill to appropriate money to construct roads and canals from the funds obtained from granting the charter to the second Bank of the United States.[22] Although President Madison had reversed his earlier opposition to the first Bank of the United States as unconsti tutional and signed the act chartering the second national bank, he re jected congressional authority to build roads and canals on the same constitutional grounds employed by Monroe in his message. Congress man Nelson, who supported Monroe's stand, thought the president had "gratuitously tendered his opinion" on the power of Congress re garding internal improvements but had done so in "a gracious candid manner that can excite no unpleasant feelings." Yet Nelson believed that Monroe could expect opposition from some members and that the advocates of internal improvements in Congress would try to carry a new measure "with an overwhelming constitutional majority."23

Author's Notes

19. James J. Wilson to William Darlington, Senate Chamber, Dec. 1, 1817, William Darlington Papers, LC; Annals of Congress, 15 Cong., 1 Sess., pp. 2505-

22. Robert Allen Rutland, The Presidency of James Madison (Lawrence: Uni versity Press of Kansas, 1990), pp. 205-6.

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CHAPTER 9 · SECONDARY SOURCE S9.13

The Era of Good Feelings

George Dangerfield

WORK	The Era of Good Feelings
SELECTION	Postscript: "Ave Atque Vale"
SOURCE LOCATOR	Original pages 320-322 · Harcourt, Brace, 1952.

Excerpt

Monroe had given the country an honorable and efficient administration, to which no real scandal had attached itself; but his policy had been in its domestic aspects a policy of drift. He had underwritten, unconsciously at times, unwillingly perhaps, large portions of the American System of Henry Clay. Did this system, which was feared in the South, really satisfy the small farmers of the West and Northwest, whose representatives had voted for it in Congress? Would it please the working man of the East? Or would it appear to be an effort to inscribe the wishes of the industrialist and the financier firmly across the statute book? Whatever the answer, the system was certainly flourishing in 1824. The national bank was stronger than it had ever been. Protective tariffs had arrived in such a form as to whet the appetites they failed to satisfy. There remained the question of internal improvements. James Monroe, like James Madison before him, had attempted to save his Republican name by the veto of an internal-improvements bill.“ On May 4, 1822, he had returned unsigned a bill bearing the title “An act for the preservation and repair of the Cumberland road.” His reasons were that Congress might appropriate money for the repair of the road, under its appropriation power, but that it could not establish turnpikes with gates and tolls, or enforce the collection of tolls by penalties, as the bill required, for that would imply “a complete right of jurisdiction and sovereignty for all the urposes of internal improvement,” and where in the Constitution was such a right to be found? ¢ No one doubted the importance of the Cumberland Road, which reached as far as Wheeling on the Ohio, though many people wondered how Congress had come to build it in the first place. The precedent was a dangerous one: it suggested an invasion of the states by the general government, armed with contracts and patronage, and all the panoply of consolidation. Monroe accompanied his veto message with an immense annex, which he had not submitted to his Cabinet; and which set forth the arguments for and against the powers of Congress in regard to internal improvements. Those whose business it was to read this formidable document, entitled “Views of the President of the United States on the subject of Internal Improvements,” may well have come to the conclusion that if the veto message shut the door gently in the face of Congress, the “Views” as gently opened it again. Monroe admitted that he had altered his old beliefs. He was now convinced that Congress might grant and appropriate money for internal improvements, for “my idea is that Congress have an unlimited power to raise money, and that in its appropriation they have a discretionary power, restricted only by the duty to appropriate it to purposes of common defense and of general, not local, national, not State, benefit.” ® But who among the sons of men could tell the difference between general and local, national and state benefit? He added that the internal improvements themselves could not be executed by Congress, but only by local agencies. And his expressed belief—and here he was in line with Old Republican thinking—was that the question could best be settled by Constitutional amendment.’,; The Western states, with no money to spare for their own improvements, may well have thought this the merest splitting of Constitutional hairs. Too much time and money was being spent on getting the fariners’ produce to market. A system of internal improvements, combined with a low tariff, might have moved the surplus cheaply to the ports and then sold some of it abroad. Combined with a high tariff, it offered only the industrialists’ promise of a home market. These considerations failed to disturb the farmers or their representatives in Congress; and the Tariff Act of 1824 had been preceded by a General Survey Act the evident purpose of which was to prepare the way for a program of appropriations for internal improvements on a national scale, and of subscriptions to the stock of companies engaged in these enterprises.’ Clay, who led the argument for internal improvements with all his skill and all his vigor, savagely attacked the Administration for its policies. “A new world has come into being since the Constitution was adopted,” he said. “Are the narrow, limited necessities of the old thirteen states, of indeed, parts only of the old thirteen states, as they existed at the formation of the present Constitution forever to remain the rule of interpretations?” * But, indeed, it was Monroe’s “Views” which opened the way for the General Survey Act.

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CHAPTER 9 · SECONDARY SOURCE S9.14

Era of Experimentation: American Political Practices in the Early Republic

Daniel Peart

WORK	Era of Experimentation: American Political Practices in the Early Republic
SELECTION	ntroduction
SOURCE LOCATOR	Original pages no stable fixed page labels in supplied edition · University of Virginia Press, 2014.

Excerpt

demarcate the legitimate methods by which citizens might engage in politics. Yet, too often these multiple and frequently contradictory meanings of democracy do not come across in the existing literature, which suggests a more linear, though by no means constant or uncontested, progression toward a "democratic" future defined by universal suffrage and a national two-party system. Democracy cannot be reduced to a simple count of who has the right to vote or how many choose to exercise that right at the ballot box. And while today's scholars have talked of the "incomplete" nature of public life in the United States before the "birth" of a "modern politics" defined by mass parties, contemporaries, deprived of the advantage of hindsight, cannot possibly have conceived of their experiences in this manner.[26] This book, then, seeks to understand these early Americans on their own terms and in so doing to recapture a political world of extraordinary creativity and diversity, a world that in some respects has been lost to us through the routinization of a politics bounded by parties and elections.[27] Historians have tended to overlook the decade following the War of 1812 because it does not fit their orderly model of democratization, yet the huge variety in political thought and practice across the United States during this period is precisely what makes it so fascinating. With this in mind, I propose to explore four moments of high political excitement, all of which occurred during the early 1820s, in a bid to understand why contemporaries, when faced with a particular challenge or set of circumstances, chose to pursue one course of action over the range of alternatives at their disposal. Crucially, whatever the specific issue in dispute, all of these episodes have important implications for the meaning of popular sovereignty. The principle that the people should rule is enshrined in the opening line of the United States Constitution, but how this would work in practice was far from settled at the Philadelphia Convention in 1787 and remains the subject of much discussion even today.[28] At the same time, each episode highlights a different aspect of political life in early nineteenth-century America: the fierce contest that raged over the role of parties in politics; the possibilities that existed for mass political mobilization in the absence of parties; the contribution to governance made by modes of organization and participation beyond parties and elections; and the critical events that shaped the development of a national two-party system. Chapter 1 focuses on competition between the Federalist and Republican parties and popular resistance to that framework in Boston. There, parties dominated the political process to a degree almost without parallel elsewhere in the Union. At the same time, turnout rates remained persistently low; throughout the early 1820s as few as one in five citizens cast their ballots in elections for congressional representatives, and even the highly charged, ultrapartisan contests for the state governorship frequently failed to attract a majority of those who were eligible to the polls. Clearly the standard party-equals-participation model, which provides the foundation for the celebratory narrative, does not apply in this case. Yet while historians have sometimes debated the extent to which parties promoted genuine political engagement among their supporters, little doubt has been cast on their efficacy in marshaling votes on election day.[29] This study, then, offers an opportunity to consider the circumstances in which parties might actually serve to channel, control, and even curb mass participation in politics. Popular discontent with the established parties finally erupted in Boston in 1822 in the form of a protest movement calling itself the "Middling Interest." These insurgents demanded the reform of party machinery to give rank-and-file members a greater say in the selection of candidates for office and called for those in power to be held accountable to their constituents. This was undeniably a form of antipartisanship, but it was not one borne of the usual sources identified by historians, namely, a commitment to the increasingly outdated values of the Founding Fathers or an idealistic devotion to evangelical Protestantism.[30] The men who gave voice to the Middling Interest derived their convictions not from theoretical treatises or utopian sermons but from practical experience of party rule. And their solution was not to entirely reject party as a model for political action but rather to organize themselves as a third party, running their own tickets at the polls and borrowing extensively from the campaign tools of their opponents. The story of the Middling Interest illustrates that partisanship and antipartisanship cannot be reduced to a simply dichotomy and at the same time demonstrates the determination of ordinary Americans to fashion a political system that fulfilled their expectations of popular sovereignty. As resentment toward parties boiled over in Boston, one thousand miles to the west residents of Illinois took pride in keeping their politics free from partisan interference. As chapter 2 reveals, however, this meant that when advocates of a scheme to legalize slavery in the state succeeded in forcing a

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CHAPTER 9 · SECONDARY SOURCE S9.15

The Panic of 1819: The First Great Depression

Andrew H. Browning

WORK	The Panic of 1819: The First Great Depression
SELECTION	Introduction
SOURCE LOCATOR	Original pages 3-4 · University of Missouri Press, 2019.

Excerpt

Two hundred years ago, the United States was stunned by the Panic of 1819— the first great depression, and of all the critical events in American history perhaps the least known and least appreciated. It introduced the American people to the pattern of boom and bust that has since become known as the business cycle; it was the first of the series of financial crashes and economic depressions (called "panics" in the nineteenth century) that have since recurred at regular intervals. It is no exaggeration to say that the Panic of 1819 changed the country profoundly, in ways that go well beyond the world of finance. Nevertheless, it was quickly forgotten as the country was once again swept up in what Hezekiah Niles, publisher of Niles' Weekly Register, called "the almost universal ambition to get forward." With little understanding of its causes, the country failed to learn its lessons and in less than twenty years plunged into the Panic of 1837.

The bubble of prosperity that led up to the Panic of 1819 also introduced elements of modern life that we can hardly imagine doing without: easily available consumer credit, real estate purchases with low down payments, a corner bank in every good-sized town, investment in the stock of corporations, and even the New York Stock Exchange itself, which opened in 1817. The ensuing panic gave the country its first experience of nationwide waves of bankruptcies, business failures, foreclosures, and unemployment; it began two centuries of condemning the poor as lazy, immoral, and self-indulgent—a disdain that would be directed at "Okies" in the 1930s and "welfare queens" in the 1980s. It inaugurated the endless debate over government regulation of business—essentially nonexistent until then—as well as the debate over free trade versus protectionism. It helped launch the mass-participation politics within which those debates and many others have taken place.

At the end of 1818 Southern cotton—the nation's most valuable export by far—lost half of its value almost overnight; in thirty key industries in Philadelphia, three-quarters of the workers lost their jobs and the rest were paid one-fifth of what they had been; one-half of the real estate in Cincinnati wound up in the possession of the Bank of the United States; and the Bank employed Henry Clay to sue hundreds of debtors (including a United States senator) as well as the State of Ohio.

In 1819 the Supreme Court rescued the hated Bank from state attempts to tax it out of their jurisdictions: Chief Justice John Marshall's dramatic assertion of federal authority in McCulloch v. Maryland struck a blow at the heart of states' rights and strict construction of the Constitution. An anti- slavery movement in Congress had, at that very moment, precipitated a crisis by blocking Missouri's admission to the Union as a slave state. The fears of land speculators from Alabama to Missouri, the desperation of cotton planters who saw their survival threatened, and the resentment directed toward the Bank—now combined with distrust of the "overreaching" federal government—had much to do with the deep sectional divisions that followed, alienating West from East and South from North.

To speak of the "Panic of 1819"—a term not used until decades later— is to imply, misleadingly, a single, discrete event confined to a single year. There was no "Black Tuesday" in 1819. The country's financial institutions were not yet centered in one city, and communication was slow; Charleston learned at the end of January that English cotton mills had dropped their prices at the end of November, but word would not reach Mississippi or Alabama for several more weeks. The so-called panics of the nineteenth century—1837, 1857, 1873, 1893—were all multiyear economic phenomena, and the Panic of 1819 arguably began in 1815 as a regional depression in eastern commercial cities and mill towns, spreading down the Ohio River in 1816 and 1817; it evolved into a banking crisis in 1818 and became a

full-blown national depression with the collapse of cotton prices in 1819 and a tide of business failures and bankruptcies that left no region unscathed. The sudden end of the western land boom left millions of dollars in unpaid debts, and hard times lingered in the South and West well into the mid-1820s.

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Shortened citation:

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CHAPTER 9 · SECONDARY SOURCE S9.16

The Rise of American Democracy: Jefferson to Lincoln

Sean Wilentz

WORK	The Rise of American Democracy: Jefferson to Lincoln
SELECTION	Slavery, Compromise, and Democratic Politics
SOURCE LOCATOR	Original pages 235-236 · W. W. Norton, 2005.

Excerpt

Still, responsibility for opening Missouri to slavery cannot be placed solely or chiefly on the Van Buren Bucktails, let alone on northern acquiescence. North ern support for nonrestriction and compromise in 1820 came from a small, mot ley group from various states, Federalists as well as Republicans. The great majority of New York Republicans, including Bucktails as well as Clintonians, voted for restriction in 1820. Only one of the northern representatives who voted for restriction in 1819 voted against it a year later. Compared to the southerners' close vote endorsing the Thomas amendment, the northern vote against slavery in Missouri—a division of 87 to 14—was unyielding.[36]

Unfortunately for Clay and the compromisers, die-hard antislavery northern ers and the pro-slavery citizens of Missouri proved less malleable than the House of Representatives. Over the late winter and spring of 1820, Federalist and Republican restrictionists in Pennsylvania and Ohio—joined by a radical Irish immigrant editor in Washington, Baptist Irvine —urged northern congressmen to reject the compromise by refusing to approve Missouri's new constitution when Congress reassembled. Then the Missourians, faced with the seemingly straight forward task of writing a pro-slavery state constitution in compliance with the statehood bill, gratuitously inserted a clause requiring the new state government to enact legislation that barred "free negroes and mulattoes" from entering the state. An apparent violation of the U.S. Constitution's guarantee that the rights of citizens in any state would be respected by all states, the clause deeply offended northerners, who proclaimed that the compromise was now dead. Compound ing the difficulty, Clay had retired as Speaker, prefatory to retiring from the House, and was succeeded (after a lengthy sectional struggle) by John W. Taylor. By the time Clay arrived in Washington in January 1821 for what he had hoped would be a brief second session, the House was in chaos. While northerners declared that Missouri was still a territory, southerners insisted that Missouri was now a state and that no additional conditions could be attached to its admission.

The making of the so-called second Missouri Compromise was even more convoluted than the making of the first—and it demanded even more of Clay. The Senate adopted a resolution accepting the Missouri constitution with a pro viso that withheld congressional consent to "any provision" that contravened Article IV, Section 2 of the Constitution. Revived restrictionist House Republi cans, however, defeated a resolution admitting Missouri —only to fail to pass a subsequent resolution, offered by Republican William Eustis of Massachusetts, that would have struck the offensive clause from the Missouri constitution. Like punch-drunk brawlers, the contestants threw rhetorical haymakers at each other for weeks to come, in one wild round after another, each side standing its ground, neither side able to put the other away. Clay, now working through a chastened Speaker Taylor, did his best to stack committees, undermine the southern hotheads and northern hotheads alike, and cajole a compromise out of the House. Finally, in late February, a joint House and Senate committee, headed by Clay, hammered out the wording of a resolution admitting Missouri provided that the state legislature solemnly pledge not to pass any law in viola tion of the U.S. Constitution. By a six-vote margin, the House assented; two days later the Senate approved the measure; and on August 10, 1821, President Mon roe officially proclaimed that Missouri was the Union's twenty-first state. "I was exhausted," Clay later recalled, "and I am perfectly satisfied that I could not have borne three weeks more of such excitement and exertion.""

It has been said that had the Civil War broken out over the Missouri contro versy, it would have amounted to a brawl on the floors of Congress, with the rest of the nation looking on perplexed. Certainly by 1821, the nation, in its second year of unprecedented hard times, welcomed the end of the congressional quar reling over slaver)7 and the preservation of the Union. So did virtually all of the major figures who would dominate national politics over the coming two decades: Henry Clay, John C. Calhoun, John Tyler, William Crawford, John Quincy Adams, Nicholas Biddle, Martin Van Buren, and Andrew Jackson, all of whom either helped achieve the compromise or supported it with varying degrees of enthusiasm. Divided over other important issues —especially the ques tions of banking and economic development raised by the Panic of 1819 —they would prove effective at keeping the slavery issue out of national debates, at least until the early 1830s.

Author's Notes

36. Of the thirty-four Republicans who voted for one of the original Tallmadge amendments in 1819 and were still in office a year later, only one voted to open Missouri to slavery and one was absent; the northern restriction tally remained eighty-seven. See Wilentz, 'Jeffersonian Democracy,' 389-91.

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Shortened citation:

Wilentz, *The Rise of American Democracy*, 235-236.

CHAPTER 9 · SECONDARY SOURCE S9.17

The Market Revolution in America: Liberty, Ambition, and the Eclipse of the Common Good

John Lauritz Larson

WORK	The Market Revolution in America: Liberty, Ambition, and the Eclipse of the Common Good
SELECTION	Panic! 2008, Déja vu ‘All over Again
SOURCE LOCATOR	Original pages 177–178 · Cambridge University Press, 2009.

Excerpt

before the opéra bouffe of September 25 and 26: "This crisis should put an end to false debates about government versus markets. Governments create markets, and markets can exist only with regulation. If you want to be truly free of regulation, try Haiti or Somalia. The real trick is to craft good regulations that allow markets to work well."?[9] Verified by history a hundred times, Zakaria's point was so compelling, how could anyone doubt it? And yet we found ourselves locked in a bizarre situation where the titans of American capitalism were trying desperately to stop "the people" from slitting the throat of the capitalist system on which those people utterly depend. Andrew Jackson, your war against the Monster Bank endures! It was true in the antebellum era, as it is true at the beginning of the twenty-first century, that the enemies of government, not just the friends of private business, helped shackle the public hand in modern market systems. In the absence of state regulations, of course, markets will structure interactions in a capitalist system; but actual capitalists always have recognized the need for rules and institutions to guide and referee competitive behavior. Entrepreneurs seek freedom only when it serves their interests. During the original market revolution in America, the public welfare often was challenged by freedom-loving entrepreneurs; yet it was not the Whigs (ostensibly the party of the capitalist class) but the Jackson Democrats who canonized the doctrine of laissez-faire. Perfecting their appeal to the voters by promising never to impinge on their freedom, Jacksonians made war upon governance itself and set up a deceptive contest for power in which private rights and economic interests appeared to be the same when clearly they were not. Convinced by ideology that governance was unnecessary, a people empowered by their Revolution to set the agenda and govern themselves on behalf of the common good chose instead to dismantle the state. In the resulting vacuum, America's nineteenth-century entrepreneurs understandably wrote their own rules and imposed order to suit their comfort and convenience. Their objectives were more pragmatic than ideological. Living as they did in a real, not fictitious, universe, businesspeople tended to be more flexible in adjusting to changing conditions in the market and society around them. Libertarian ideologues, on the other hand, ensconced in academic departments, on the benches of the judiciary, and at the offices of political campaign machines, found the lure of theoretical models irresistible — intellectually rewarding because of their elegance, and, in the case of popular political campaigns, profoundly effective. In the American historical experience, politicians since Jackson have achieved phenomenal success by denouncing the complexities of governance and exciting latent fears that somebody else might use government to gain the upper hand. The threat of corruption may well have been legitimate, but the promise that disabling government would keep people from harm was then — and is now — simply untrue. Furthermore, nothing proved more useful for concealing an unholy alliance between governors and special interests than a cloak of indignation sewn up with the rhetoric of freedom and private rights. The success of this Jacksonian formula has left us a political culture in the United States, perhaps unique in the industrialized world, where candidates advocating workers' rights and social welfare programs collect a following among elites and the educated middle class only to be thrashed at the polls by the desperate masses who oppose all efforts to regulate business or tax the rich on their own behalf. Given the choice, of course, even honest entrepreneurs prefer minimal government as long as they can get the regulations they require by less conspicuous means; but at times, this cynical strategy has left business dangerously exposed to the short-sighted animosities of persons in power who do not understand the systems on which their prosperity depends. In short, wealthy capitalists routinely pursue their economic interests, but the common people remain enthralled by politicians conjuring imaginary threats to their basic personal freedoms. This is not a logical phenomenon but a historical tradition deeply rooted in the market revolution and the popular politics of the age of Jackson. The tradition reflects badly on reckless capitalists but even more damningly on political adventurers who would rather inflame the illinformed mob than exercise the stewardship of power and resources that voters placed in their hands. What the Panic of 2008 demonstrates clearly is that the problems of the market revolution, which so preoccupied Americans in the early nineteenth century, remain central features of modernization at the start of the twenty-first. Americans long since have made peace with their abject dependency on a complex, consumer-driven, capitalistic market

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Larson, *The Market Revolution in America*, 177–178.

CHAPTER 9 · SECONDARY SOURCE S9.18

Wolf by the Ears: The Missouri Crisis, 1819-1821

John R. Van Atta

WORK	Wolf by the Ears: The Missouri Crisis, 1819-1821
SELECTION	passe
SOURCE LOCATOR	Original pages 71–72 · Johns Hopkins University Press, 2015.

Excerpt

emancipation notwithstanding, most northern whites of the time would never accept blacks as their equals."

Apart from Yankee complicity with slave owners and their own unmistakable racism, northerners could still look upon the growth of their regions, their towns and cities, and their range of economic pursuits with a pride of accomplishment that matched, if it did not exceed, that of the South. With the onset of the Panic of 1819, one might expect small employers and disappointed workers to forsake their faith in the emerging market economy and embrace more radical, class-conscious alternatives like the later workingmen's parties, but most did not. The earlier taste of prosperous times and fortunes in the making, along with whatever advantages of opportunity and character some had—better education, temperance, evangelical faith, or just a run of luck—fortified the belief of many northern laborers that their day would come and, at all events, their individual freedom to seek work for wages elevated them. A host of northern moralists, like Mordecai Noah in New York's National Advocate, interpreted the financial panic as punishment for straying from an earlier, agricultural, and localized economy. For that matter, one could find latter-day Calvinists who still saw any crisis, including the Missouri one, as signaling God's wrath. But economic nationalists, like Mathew Carey in Philadelphia, Hezekiah Niles in Baltimore, and Clay in Congress, countered these rustic lamentations with a more forward-looking agenda. Subsistence-level agriculture, however "virtuous," did nothing to expand markets. Besides, too many Americans tilled the land already, whether on scattered small farms or sprawling plantations. A comprehensive freelabor economy required much more. "A nation of pure agriculturalists cannot be numerous," Niles had instructed in 1817, "unless there are lords and peasants, masters and slaves." Better to pursue a government-encouraged program of home manufactures, aided by road and canal development, to protect American producers from foreign competition—the growth schema that began as President Madison's postwar economic "platform" of 1815 and would continue as Clay's "American System" in years to come."[o] Still, if sectional pride mushroomed as much in the North as in the South, so did economic pressure to compromise on Missouri in spite of growing antislavery pressure not to. Devotion to the Union resonated heavily in the North, as well as in much of the South and West, as did belief in the limiting of federal government power, hence the cross-sectional strength of the ern antislavery nationalists, Carey, for one, acknowledged that Congress possessed the constitutional right to impose restrictions on both territories and new states, but to exhaust so much time debating the Missouri issue only distracted from more urgent matters in a time of economic and sectional crisis. "The great questions regarding the manufactures, the bankrupt system, and the public lands," he would complain, remained unsettled when Congress adjourned in 1819. The economic welfare of the Union as a whole ought to supersede this kind of sectional wrangling. Regarding protective tariffs, for example, Carey asked, "What measures in support of the commerce and manufactures of the eastern and middle states could be expected from the southern members, when they saw no disposition on the part of the former to make reciprocal concessions, and supposed their own peculiar interests neglected?" The worst scenarios foretold either dissolution of the Union over the slavery question or, nearly as threatening, an independent Missouri positioned to command navigation of the Missouri River."

"I Can Only Say, Let It Come!"

Some congressmen saw nothing much to debate. Missouri was not Illinois. Slavery had never been outlawed there. No territory legitimately open to slavery had ever been denied statehood on its own terms. Even if Congress could prescribe details of government for a new state, other than it be "republican" in form, that power would be "nugatory," said Henry Clay. Once admitted to the Union, any state had the unquestioned right to amend its constitution and govern itself as its people saw fit. Certainly he wanted to soothe southern congressmen who now felt betrayed by their northern brethren, but he also knew that the Constitution protected slaveholders. At stake for him were the votes in Congress needed to pass further protective tariffs and internal improvements bills that economic-nationalist Republicans wanted. Many of them would rather accept slavery, and even fit it within the American System, than make an issue of it now."

On the second day of the debate, Monday, February 15, 1819, the rhetoric intensified, northerners mostly sidestepping the question of state sovereignty in favor of a loftier moral vision for expansion. The way this Missouri question would be resolved, cried Tallmadge's fellow New Yorker John W. Taylor, would "decide the destiny of millions" who would in years to come fill fron-

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Atta, *Wolf by the Ears*, 71–72.

CHAPTER 9 · SECONDARY SOURCE S9.19

The Era of Good Feelings

George Dangerfield

WORK	The Era of Good Feelings
SELECTION	Finale
SOURCE LOCATOR	Original pages 421-422 · Harcourt, Brace, 1952.

Excerpt

The question could not be answered under the one-party system; and from the ferment of the late 1820's, which was an instinctive and delirious effort to find an answer, there emerged two parties—the National Republicans and the Jacksonian Democrats—which at least promised that the question might be debated.® The need for a debate was critical, as Jackson afterwards discovered when he was confronted with disunion in South Carolina; when he found himself obliged to veto a bill for improving the road from Maysville to Lexington; when he fought his great battle with the Bank of the United States. By "debate" one means the continual effort of American democracy to settle economic differences without recourse—in Jackson's day to tyranny, in ours to totalitarianism. Jackson's methods of debating were in themselves debatable; and no one would suggest that he settled the crisis he was called upon to face, for the crisis would emerge, in different shapes and circumstances, as long as liberal capitalism survived. But he placed himself squarely upon the side of the small property-holder—'"the planter, the farmer, the mechanic and the laborer... the bone and sinew of the country, men who love liberty and desire nothing but equal rights and equal laws"—and he did so in part because he had retained a Jeffersonian belief in the freedom and dignity of the individual, the uncommonness of the common man.' From the simple and personal relations of his time to the complex and impersonal ones of ours is a long and difficult journey; and Jeffersonian beliefs have found the battle for survival progressively more difficult. Moreover, what had Jackson to offer us but an example? History never repeats itself; what is gone is gone: and if history teaches anything, it is that we invariably disregard what it has to teach. In Jefferson's election in 1800 and Jackson's in 1828 we observe the emergence of a great leader in a time of crisis, who founded his leadership on a respect for liberty and democracy; and we would say the same thing of Lincoln, Wilson, and Franklin Roosevelt. But these great men do not necessarily represent some American continuum; they are illustrations, not proofs; analogies, not precedents; and we have reason to hope but no reason to asswme that an analogous leadership will always be found when it is needed. The choice has always to be made, and it is never the same choice. Jackson offers an example because he and his followers championed certain liberal "freedoms" that are still recognizable— that is to say, are analogous to the ones we ourselves profess. Whether the future will have any use for such freedoms is uncertain, but contemporary experience suggests that a future without them will hardly be worth living in.

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Dangerfield, *The Era of Good Feelings*, 421-422.

CHAPTER 9 · SECONDARY SOURCE S9.20

The One-Party Presidential Contest: Adams, Jackson, and 1824's Five-Horse Race

Donald J. Ratcliffe

WORK	The One-Party Presidential Contest: Adams, Jackson, and 1824's Five-Horse Race
SELECTION	The Virginia Candidate
SOURCE LOCATOR	Excerpt from the supplied edition · University Press of Kansas, 2015.

Excerpt

In recent times it has been easy for historians to assume that a congressional caucus could now have little influence because the First Party System had collapsed long before 1824. Leading politicians of the time knew otherwise; even the Federalist Rufus King recognized "the Reluctance [of voters] to vote ag[ainst] the regular nomination."[44] The Philadelphia publicist Mathew Carey disapproved of old party ties but acknowledged in October 1822, "Although it might puzzle sensible men of all sections to explain the present meaning of party words—the charm remains, and some men of sense, as well as blockheads, believe it is unsafe to vote independently of party."[45] In August 1823 Crawford was authoritatively assured by Governor William King of strong support among the people of Maine, but he must not count on it unless he won the nomination. "If there is a caucus, and... if [you are] successful, they may be counted upon in the electoral vote."[46] Others told him that he could scarcely win 2,000 votes in Pennsylvania on his own account, but with a congressional nomination he could well carry the state. The Pittsburgh congressman Henry Baldwin was eager to promote Jackson early in 1823, but apparently he was warned off on the grounds that the people of Pennsylvania might like Jackson but they also obeyed congressional nominations, and Jackson could not win in caucus.[47]

The confidence of party regulars arose from everyday observation. Voter loyalty patently persisted in places where the old party contest continued at the state and local levels, as in New England. In New Hampshire, for example, Federalists continued to elect members to the House of Representatives and contested state senate and council elections in districts where they had some chance of electing their candidates. Rhode Island's legislative elections saw close party competition between 1821 and 1823. Most strikingly, in Massachusetts the Federalists had been revitalized by the departure of heavily Republican Maine. Between 1820 and 1824 gubernatorial elections ranged Federalists against Republicans, with each party concentrating on a single candidate in closely competitive contests, with few scattering votes. According to one outside observer in 1823, "In old Massachusetts, the old party distinctions are still alive and were, perhaps, never adhered to with more zeal than at present."[48]

South of New England, the great states of New York and Pennsylvania were marked by complex internal political alignments caused by factional divisions among the Republican majority. Yet in each the Federalists remained a separately identifiable force: in New York they were themselves internally divided, but in the Philadelphia area they acted as a distinctive voting bloc. Contests in these two states took on more of a party character after 1820 than they had a few years earlier. By contrast, elections to the New Jersey general assembly tended to reflect a breakdown of party discipline, but in some counties in 1823 two party tickets faced off, attracting fairly consistent ticket voting on both sides. In the Border states, candidates for Maryland's governorship were identified by party in both 1821 and 1824, though only the Republicans managed to concentrate their votes on a single man. In Delaware gubernatorial elections were fought on strict two-party lines in 1822 and 1823, as were the county elections for the state house of representatives in 1824, when the Federalists as a party yet again won control of both legislature and governorship. Further South, the overwhelming dominance of the Republican Party ensured that internal state politics would be riven by factions, but in parts of Virginia congressional elections were still fought on old party lines, even in 1824.

Throughout the middle region—from New York to Maryland, and west to Ohio—delegate conventions continued to be held at the local and district level, ostensibly as a means of choosing candidates who were acceptable to the party's grass roots. In New York City, for example, the Democrats routinely assembled in ward meetings to choose the committee that would nominate the county's candidates for the assembly. In 1823 regular party men credited such "concert in action" through the various counties with securing "the triumph of the democratic party" in New York. They bragged that "this state and the state of Pennsylvania are united in favour of the old and regular systems of the party, and who shall oppose this united power?"[49]

Author's Notes

44. Rufus King to Martin Van Buren, January 22, 1822, Martin Van Buren Papers.

45. Daniel Peart, *Era of Experimentation*, 102.

46. William H. Crawford to Martin Van Buren, August 1, 1823, in 'Ten Letters from William Harris Crawford to Martin Van Buren,' ed. William Henry Williams, *Georgia Historical Quarterly* 49 (1965): 69.

47. Philip S. Klein, *Pennsylvania Politics, 1817-1832*, 124, 131.

48. Steubenville, Ohio, *Western Herald*, April 12, 1823; this and the following paragraph draw heavily on Donald J. Ratcliffe, 'Popular Preferences.'

49. New York *National Advocate, for the Country*, October 23 and November 18, 1823.

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CHAPTER 9 · SECONDARY SOURCE S9.21

Martin Van Buren and the Making of the Democratic Party

Robert V. Remini

WORK	Martin Van Buren and the Making of the Democratic Party
SELECTION	The Making of the Democratic Party
SOURCE LOCATOR	Original pages 124-125 · Columbia University Press, 1959.

Excerpt

Some historians are of the general opinion that the Republican party split into two groups along clearly discernible lines shortly after Adams's election: that the antiadministration forces rallied around Jackson and eventually called themselves Democrats, while the pro-administration faction united behind Adams and Clay and referred to themselves as National Republicans.[4] True, a cleavage among Republicans did appear as early as 1826, but it was not a sharp division, and few contemporaries regarded it as irreconcilable. All opponents of Adams did not rush into the Jackson camp. Many of them, especially the Radicals, were perplexed and did nothing but grumble.®

Van Buren was one of the very few who insisted that the break was a throwback to the old division between Jefferson and Hamilton. He had said this repeatedly, thinking the Republicans would wake up to political reality. When they did not, when they continued regrouping themselves along artificial, personal lines, he undertook the task of making the break permanent, which necessitated, of course, redefining party principles and reestablishing party organization.

The making of the Democratic party—or, more precisely, the revamping of the Republican party—was largely the work of Martin Van Buren. While he was aided and abetted by many—among whom were John H. Eaton, Hugh Lawson White, William B. Lewis, Francis Preston Blair, James Buchanan, Thomas Ritchie, Isaac Hill, Amos Kendall, and Thomas Hart Benton[6]—he alone discharged the tremendous task of basic reorganization. It took him two years to accomplish his ends and not until well into 1828 did the "Democratic party" finally emerge. Andrew Jackson naturally contributed an indispensable element to the work by lending his name and popularity to the movement, although he himself remained silent and inactive in Tennessee.[7] Moreover, there had already begun a movement in a few states away from personal factions and toward something approaching national politics.[8] But it was Van Buren who joined together the different sections of the country and united the followers of Calhoun and Crawford with the Jacksonians. It was he who tried to draw the East and West closer together. It was he who renewed the alliance between the North and South that lasted until I860.®

Apart from his conscious effort to unite the Jackson groups, Van Buren forced a stronger states' rights doctrine into the party platform, insisted that the activity of the Federal government be reduced, and, in short, demanded that Jacksonians become doctrinaire Jeffersonians.

It has been pointed out by recent historians that in several respects Jackson's election to the presidency in 1828 is somewhat similar to Franklin D. Roosevelt's election in 1932. A few of these historians argue that the politicians surrounding these two men were interested primarily in electing their man, and only secondarily in creating a party or establishing political principles. The man came first; the principles would be found afterward.

Whatever truth there may be to this thesis regarding the politicians of either period, it can not be applied to Van Buren. He had been arguing principles long before he became a Jacksonian; and they were the same principles after he became a Jacksonian. With him the issues and the party came first; then he found his candidate.

Author's Notes

4. The terms did not gain popular currency until 1830.

6. Thomas Hart Benton listed leading antiadministration senators; Gales and Seaton added other congressional allies. See Benton, *Thirty Years' View*, 55; *National Intelligencer*, March 1827.

7. Thomas P. Abernethy, 'Andrew Jackson and the Rise of Southwestern Democracy,' *American Historical Review* 33 (October 1927): 71-76.

8. Charles G. Sellers, *James K. Polk, Jacksonian*, 104.

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CHAPTER 9 · SECONDARY SOURCE S9.22

Era of Experimentation: American Political Practices in the Early Republic

Daniel Peart

WORK	Era of Experimentation: American Political Practices in the Early Republic
SELECTION	onclusion
SOURCE LOCATOR	Original pages no stable fixed page labels in supplied edition · University of Virginia Press, 2014.

Excerpt

part, found favor with historians. Where Adams saw peace and harmony, they see indifference and apathy. The overarching celebratory narrative of U.S. politics between the Revolution and the Civil War identifies political parties as the driving agents of democratization, and since partisan competition waned during the early 1820s, subscribers to this interpretation assume, most citizens must simply have lost interest in politics. But the episodes explored in the previous chapters have shown the so-called Era of No Feelings to be a myth. Although election turnout did fall in some states, many Americans continued to participate in political life with unconcealed enthusiasm and extraordinary creativity. Their experiences suggest the potential for rethinking several components of the celebratory narrative. As numerous scholars have shown, political parties played an important role in stimulating and maintaining unprecedented levels of election turnout in the early United States. It does not follow from this, however, that the presence of two-party competition was alone enough to ensure popular engagement. In Massachusetts, conflict between Federalist and Republican parties continued to dominate public life into the early 1820s, as it had for two decades previously. Yet this highly organized and hotly contested environment failed to produce high rates of participation at the polls. Instead, it spawned the Middling Interest, a protest movement born of the conviction that despite near-universal adult male suffrage the people were denied a real political voice. The established parties, these rebels argued, controlled the electoral process in Boston from beginning to end and exercised that control in the 1822 mayoral contest to frustrate the popular will. Likewise, the dispute over wooden buildings demonstrated party leaders' disregard for efforts to make them accountable to their constituents through the practice of instruction. Viewed from this contemporary perspective, parties were hardly the agents of democracy that they are often portrayed to have been today.[2] Taking a broader view, newly available data suggest that throughout the Union from 1820 to 1825 election turnout was strongest where parties were weakest. Of course, this classification is somewhat arbitrary. The unprecedented 80 percent turnout in the Illinois convention referendum of 1824 was the product of a contest that, though conducted in the absence of established parties, assumed many of the characteristics commonly associated with a two-party system: intense competition, sustained organization, and "binary symmetry" on the question at stake.[3] Yet the four-way gubernatorial race of 1822, in which candidates openly boasted of their lack of organizational backing and offered no consistent response to a confusing melee of issues, had still brought 67 percent of the electorate to the polls, a figure that compares favorably with the turnouts for party-driven contests in Delaware, Massachusetts, and New York that same year. Over in Kentucky, consecutive turnouts of 70 percent plus in 1820 and 1824 may be attributed to competition between distinct "Relief" and "Anti-Relief" groupings generated by the Panic of 1819, but it is worth noting that these were achieved without any of the formal party machinery common in the eastern states. In Alabama and Mississippi, meanwhile, similar rates of participation were achieved in the absence of any discernible form of political organization.[4] Such cases once again illustrate the diversity of political practices during this period, but the overall trend is sufficiently clear to suggest that Massachusetts was not the only state in which entrenched political parties had a dampening effect on participation in elections during the early 1820s. This pattern reflects a widespread disillusionment with the disintegrating Federalist-Republican system following the War of 1812. "A continuation of party names, of democrats and federalists, after the differences in principles which they were used to designate, has ceased to exist, is injurious to the best interests of the community," concluded a meeting of Philadelphians in 1822.[5] Party leaders are "indifferent" to the concerns of the people "provided their friends and favorites are kept in power," echoed a newspaper correspondent in Boston.[6] It was attitudes like these to which John C. Calhoun referred when he commented to John Quincy Adams on the existence of "a general mass of disaffection to the Government." "The disease is apparent, the remedy not discernible," the secretary of state concurred.[7] For some citizens the remedy was simply to withdraw from politics entirely, which explains why participation rates in contests where candidates continued to do battle under old party labels, whether as Federalists versus Republicans or as factions within a dominant Republican Party, were generally lower than in those unregulated by partisan organization. Competition between parties does bring voters to the polls, as the celebratory narrative suggests, but only when the electorate is convinced that something meaningful is at stake; in the absence of important issues, the reliance of party leaders on tired slogans and stagemanaged conventions is likely to depress, rather than raise, turnout.[8] Many Americans, however, did not abandon politics during the early

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Peart, *Era of Experimentation*, no stable fixed page labels in supplied edition.

CHAPTER 9 · SECONDARY SOURCE S9.23

"The Tyranny of Printers": Newspaper Politics in the Early American Republic

Jeffrey L. Pasley

WORK	"The Tyranny of Printers": Newspaper Politics in the Early American Republic
SELECTION	Newspapers and Nineteenth-Century Politics
SOURCE LOCATOR	Original pages 17–18 · University Press of Virginia, 2001.

Excerpt

Calhoun's national ambitions, actually took concrete action toward the professionalization of partisan editing. Green deplored the fact that too many editors* considered "themselves as mere printers," and hoped to upgrade the status and remuneration of editors to the point that it could attract "the first talents of the country." In 1834 he founded the Washington Institute, a school in which apprentice printers could study spelling, grammar, history, and philosophy, among other elevating subjects, while learning their trade by putting out Green's newspaper. The Washington printers' union, the Columbia Typographical Society, denounced the insan journalism after only a year. Most partisan editors were perfectly com-

Looking back on the underinstitutionalized party systems of the nineteenth century, Max Weber conceptualized well the former role of party strong political clubs or elaborate, permanent, formal party organizations, Weber wrote, the "management of politics in normal times lies in the hands of the few people constantly interested in it." Before the American Civil War, those few people were usually party newspapermen. "Only the

Leaving aside the more questionable notion that party systems have a "natural" course of development, the period from the late eighteenth to the late nineteenth century does seem to have formed a distinct epoch in American political history, a period in which the party system was newspaper based. Partisan newspapers and loosely organized parties (aided by tution, the newspaper-based party, which dominated the American political scene in the antebellum years, remained strong in the late nineteenth century, and did not disappear completely until the twentieth century. This manner of conducting party politics lingered especially in less-developed areas: small cities and towns, the South, the rural Midwest The rest of this study describes how and why this new institution, tween the 1760s and the 1830s, while also considering the larger implications of its rise. One of the most important themes to be followed is the role of newspaper politics and newspaper editors in democratizing American political life. Democratization is a complex topic that recent scholars have been sur-

[57] The older story of democratization, holdprisingly averse to exploring. ing that the elections of 1800 and 1828 heralded the rise of Jeffersonian Democracy and then Jacksonian Democracy, finally ushering in a midnineteenth-century Age of the Common Man, became untenable many years ago. As numerous recent scholars have argued, there were simply too democracy and equality for white men almost seems to have required re-

Even the idea that universal white male suffrage and high voter turnouts amounted to truly 'participatory democracy" for white men has come un-

The recent criticisms follow decades of debunking aimed at the idea of Jacksonian Democracy or any real "rise of the common man." While acticipation, scholars derided the notion that any meaningful democratiza-

Hofstadter, Lee Benson, Edward Pessen, and many others, no major party least of all the Jacksonian Democrats, nor did the common man's interests was merely cynical window dressing for personal enrichment or political preferment, flattery of the common man issuing from the mouths of men who were usually much more than common themselves. Sean Wilentz great revision of Jacksonian politics": "On close examination, the leading Jacksonians were shown to be not champions of deprived workers and great wealth or men eager to become wealthy, whose main

purpose was to get power and keep it."[60]

Author's Notes

57. One of the very few recent monographs to directly tackle democratization is Shade, Democratizing the Old Dominion, dealing with one state and taking democracy largely as a given for the rest of the country. The democratization of political language is analyzed in Robertson, Language ofDemocracy.

60. Wilentz, "On Class and Politics," 45. This same essay provides a thorough review of the relevant literature, which is far too voluminous to cite here.

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CHAPTER 9 · SECONDARY SOURCE S9.24

The Presidency of James Monroe

Noble E. Cunningham Jr.

WORK	The Presidency of James Monroe
SELECTION	The Election of a President
SOURCE LOCATOR	Original pages 19–20 · University Press of Kansas, 1996.

Excerpt

When the electoral vote was cast in December 1816, Monroe won all but three states and captured 183 votes. Rufus King carried only Massa chusetts, Connecticut, and Delaware for a total of thirty-four electoral votes. Receiving the same number of votes as Monroe, Governor Daniel D. Tompkins of New York was elected vice-president. When the Senate met on February 12,1817, to count the electoral vote, a brief controversy erupted over Indiana's ballot, cast before it had been admitted as a state in December 1816. In the end, the three electoral votes of the nineteenth and newest state were duly read and recorded. In any event, their exclu sion would not have altered the outcome.[15]

Long before the electoral vote was cast or counted, Monroe was making plans for his administration and receiving advice and recom mendations about the composition of his cabinet. General Andrew Jackson wrote to Monroe in early November 1816, urging the appointment of William Drayton, a South Carolina Federalist, as secretary of war. With apologies for unsolicited advice, Jackson then asserted:

In reply, Monroe offered an extended commentary on political par ties in the United States and on the policy regarding partisanship that he planned to follow while president. In doing so, he made it clear that he viewed the situation as more complex than that suggested by Jack son's proposal simply to ignore all party feelings and attachments. Mon roe affirmed that he believed decidedly in the principle that the presi dent "ought not to be the head of a party, but of the nation itself." But he went on to review the history of the rise of political parties in the United States and to point out fundamental differences between the Federalists and the Republicans. "That some of the leaders of the fed eral party entertained principles unfriendly to our system of govern ment I have been thoroughly convinced; and that they meant to work a change in it, by taking advantage of favorable circumstances, I am equally convinced." The opposition of the Republicans, "carried on with great firmness, checked the career of this party, and kept it within moderate limits."17

The clash between the parties had not ceased, Monroe maintained, pointing to the Federalist opposition to the War of 1812 and to the Hart ford Convention—opposition that had reduced the Federalist party to its present weakened state. Furthermore, the recent presidential election "has been made by the republican party... and of a person known to be devoted to that cause." Although the dangerous purposes of the Federalist party were largely confined to certain eastern leaders and never adopted, "still, southern and eastern federalists have been con nected together as a party, have acted together heretofore, and altho' their conduct has been different, of late especially, yet the distinction between republicans and federalists, even in the Southern and Middle and Western States, has not been fully done away." And he asked: "To give effect to free government, and secure it from future danger, ought not its decided friends, who stood firm in the day of trial, to be princi pally relied on? Would not the association of any of their opponents in the Administration itself wound their feeling, or, at least, of very many of them, to the injury of the republican cause?"18

Author's Notes

15. National Intelligencer (Washington), Feb. 12, 14, 1817.

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Shortened citation:

Cunningham, *The Presidency of James Monroe*, 19–20.

CHAPTER 9 · SECONDARY SOURCE S9.25

The Second American Party System: Party Formation in the Jacksonian Era

Richard P. McCormick

WORK	The Second American Party System: Party Formation in the Jacksonian Era
SELECTION	Excerpt from the supplied edition
SOURCE LOCATOR	Original pages no stable fixed page labels in supplied edition · University of North Carolina Press, 1966.

Excerpt

successive contests between various candidates was to produce a party system that by 1840 was remarkably free of regional bias. The two new parties were balanced and competitive in every region. For a very brief period—between 1840 and 1852 —the nation, for the only time in its history, had two parties that were both truly national in scope. But this curiously contrived party system was, in a very special sense, "artificial," for it could survive only if the regional feelings that had so largely shaped its being were obliterated. Such feelings did not subside, the second American party system broke down in the 1850's, and the third party system—with its decided regional bias—was then formed.

This exceedingly general statement of my central thesis can be supplemented by a series of detailed propositions.

7. This "balanced" character of the second party system, produced by the particular circumstances associated with its formation, made it an "'artificial" party system. It could survive only by avoitling regionally divisive issues.

8. The second party system was characterized by similar alignments of voters in both state and national elections in every state. Previously, a wide variety of party situations— "one-party," "'no-party,"' and "dual-party," as well as "twoparty"—had maintained. g. The most crucial development in the extension of the second party system was the abrupt emergence of a two-party South between 1832 and 1834. This development owed much to the substitution of Van Buren, a northerner, for Jackson as the prospective Democratic candidate in 1836.

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CHAPTER 9 · SECONDARY SOURCE S9.26

Martin Van Buren

Ted Widmer

WORK	Martin Van Buren
SELECTION	Excerpt from the supplied edition
SOURCE LOCATOR	reflowed ebook; no fixed page numbers · Times Books, 2005.

Excerpt

Will Rogers once said, “I don’t belong to an organized party— I’m a Democrat.” But, in fact, organization is precisely what distinguished the proto-party that Van Buren was forming. Far beyond anything that had existed before, Van Buren envisioned a national structure, tethered together by speedy communications and tight message control, that would unite the aspirations of “the planters of the South and the plain Republicans of the North.” It was the Regency reanimated—only on a far bigger scale. From across the Union, the people would be connected by alert local committees reporting to their state chairmen, but, just as importantly, by the novel sense that politics was a participatory ritual, gaudy and fun. It took a tavernkeeper’s son to figure out that the American people actually like being with each other.

We have grown so complacent with the idea of two-party democracy that we still fail to grasp its revolutionary power. There is nothing in the Constitution about opposition parties and, in fact, the Founding Fathers took great pains to express their horror for them. James Madison attacked “the violence of faction” in Federalist 10 (though he was not above joining the first party squabbles of the 1790s), and George Washington, even more shrilly, denounced “the baneful effects of the Spirit of Party” in his farewell address. Considering how caustically the founders examined the European political universe, it is curious that they still could not see how naive their hopes for America were. They expected the United States to be a new kind of society, partyless, where democracy spread magically because great thinkers representing the people wished it so.

Now, of course, we know differently, and evidence of opposition parties is one of the most important ways to measure the vital signs of an emerging democracy. Such parties normally appear well after a successful revolution, but they are no less crucial to the evolution of a civil society, as anyone from Zimbabwe, Cuba, or Hong Kong can confirm. Van Buren, while not a radical thinker, deserves full credit for realizing this truth ahead of his compatriots. It was a huge contribution, lost in the obscurity of the early republic, somewhere between the Erie Canal and the Tariff of Abominations, but more important than either. Not only is the spirit of party not hostile to democracy, it is essential to it. We are all familiar with the deficiencies of the two-party system—the acrimony, gridlock, and corruption that taint the process more than we care to admit. However, there is a fundamental balance at its core—an internal gyroscope, based on brute competition—that has allowed this system to continue, with only a few modifications, from 1828 to the present. That gyroscope was built by Van Buren, and every time we ask another country to replicate it, we are paying silent homage to him.

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CHAPTER 9 · SECONDARY SOURCE S9.27

Slavery, Freedom, and Expansion in the Early American West

John Craig Hammond

WORK	Slavery, Freedom, and Expansion in the Early American West
SELECTION	Excerpt from the supplied edition
SOURCE LOCATOR	Excerpt from the supplied edition · University of Virginia Press, 2007.

Excerpt

Northern restrictionists fully understood that the southern position called for nothing less than the indefinite and uncontrolled expansion of slavery. What remained so disconcerting for many northerners was the South's insistence that the nation could do nothing about slavery but manage it properly through permanent expansion and diffusion. "Let me ask gentlemen where this diffusion is to end," demanded John Sergeant of Pennsylvania. "If circumstances require it at present, will not the same circumstances demand it hereafter? Will they not, at some future time, become straitened in their new limits, however large? And what will you do then? Diffuse again—and what then? Even this diffusion will have its limits, and when they are reached, the case is without remedy and without hope." As Sergeant recognized, southern politicians had begun codifying the rationale for an empire for slavery.[40]

Despite restrictionists' insistence that Congress accept the Tallmadge restrictions and forge a comprehensive ban on slavery in the West, by January □820 it became increasingly clear that southern obstinacy would prevail, "no matter what the northern people may say." Some northern restrictionists wished to ride the question out, hoping that the South or Missouri would acquiesce to restrictions, but there were too many obstacles to overcome. Southern politicians refused to accept any restrictions on Missouri slavery, and they fortified their position by promising disunion if Congress insisted on them as a condition of Missouri statehood. Northern congressmen knew they could ignore Missouri's hollow threats of disunion; they could not disregard the South's promise to do the same. Furthermore, with pressing business concerning land, commerce, money, and manufacturing stalled by the Missouri question, with much of the nation tiring over the crisis, and with expansionists holding Maine's statehood hostage, some northern and southern politicians began to look for a way out. Ultimately, it took all the talents of Henry Clay and intense presidential pressure on a select group of northern congressmen to work out a compromise. In March □820, in a series of narrow votes, Congress admitted Missouri without restrictions and closed off the remainder of the Louisiana Purchase north of latitude 36°30' to slavery.[41]

Some expansionists expressed anger at even the notion of a settlement; having expended so much energy and doctrine proving that the government could not restrict expansion, they were not about to yield now. Most, however, understood just how little the slave South had yielded. While slavery was "forever prohibited" from the lands north of the 36°30' line, southerners doubted that Congress would actually impose the restriction when the region was organized into territories. They still denied that Congress possessed the authority to do so, and they insisted that the restrictions were not binding on any states formed out of the region now declared off-limits to slaveholders. When a northern congressman asked his southern colleagues if they were "conceding the point that Congress has the power to make that restriction or territorial prohibition perpetual and binding," William Lowndes merely "smiled and shook his head" no. Furthermore, on at least three separate occasions, John Taylor of New York prodded Congress "to inquire into the expediency of prohibiting by law the introduction of slaves into the territories of the United States west of the Mississippi." While this would have blanketed the entire trans-Mississippi West, as well as any territory acquired in the future with an Article VI–like prohibition on slavery, the final compromise limited itself to the remaining unorganized territory in the northern parts of the Louisiana Purchase.[42]

Author's Notes

40. *Annals of Congress*, 16th Cong., 1st sess., 1211.

41. George Hay to James Monroe, February 12, 1820, James Monroe Papers, Library of Congress; see also the accounts of pressure behind the compromises cited by Hammond.

42. *Statutes at Large*, 16th Cong., 1st sess., 548; *Annals of Congress*, 16th Cong., 1st sess., 732-34, 801-4, 1566-67.

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CHAPTER 9 · SECONDARY SOURCE S9.28

Slavery and Politics in the Early American Republic

Matthew Mason

WORK	Slavery and Politics in the Early American Republic
SELECTION	The Missouri Crisis
SOURCE LOCATOR	Original pages 204-206 · University of North Carolina Press, 2006.

Excerpt

Participants in the Missouri debates thus rehearsed all the arguments that previous controversies had rendered standard. But antagonists on both sides also pressed their opponents to examine many of their customary theses. In the name of consistency, many in both North and South began to abandon untenable positions.'"* Thus, as old ideas and arguments passed through the refiner's fire of Missouri, many participants grasped at new and unalloyed principles, even as others still clung to the dross. The Missouri debates pushed many of slavery's guardians toward a fuller defense of Southern bondage. The South still had room for a variety of thought on slavery. Indeed, in 1819, Tennessee abolitionist Eihu Embree founded a periodical devoted entirely to the abolition of slavery. He soon expanded his subscription list past 2,000, despite opposition and obstruction.'"" Some few white Southerners openly supported restriction.'"° Nevertheless, the Missouri debates moved Southern slaveholders toward greater unity behind the peculiar institution. For the most part, they put aside partisan differences and embraced an antirestrictionist orthodoxy.'" If state rights, strict construction, and suspicion of outside agitators were firm tenets in this creed, by 1821 many of its framers wanted to add a positive-good defense of slavery. The positive-good doctrine became more attractive to many slaveholders because Northerners exposed the flaws of other defenses of slavery. Many Southern spokesmen attempted to apply the old necessary-evil creed to Missouri through the doctrine of diffusion. Only by spreading the slave population extensively, and thus reducing its proportion to the white population, could Southerners safely consider emancipation. "What enabled New York, Pennsylvania, and other States, to adopt the language of universal emancipation," said Virginia's John 'Tyler in one of the more persuasive presentations of diffusionism, was "nothing but the paucity of the numbers of their slaves. That which it would have been criminal in those States not to have done, would be an act of political suicide in Georgia or South Carolina to do."'"* The problem with such an argument was that it implied that it was "criminal" for Upper South states with a lesser concentration of slaves to hold on to them. Moreover, Tyler's logic cut against the legality of slavery in Missouri, for in 1819 its slave population was not dense. Furthermore, Northerners repeatedly demonstrated the illogic of diffusionism. One Northern penman declared it "fallacious." "It is not true that emigration from a State will permanently diminish its population. Does any man suppose that the population of Great Britain is less at the present day, because of the emigration of our ancestors?" One of the great evils of slavery was that "taking it away does not remove it. The spread of our negro population, is like the spread of a plague; it will afford no relief to impart the malady to others: we may give the infection to the whole world and the virulence of our own disease will be unabated."!"° For many Northerners, the drive for expansion to Missouri revealed the slaveholders' traditional apologies to be worse than "fallacious": they were a fraud. Slaveholders had long blamed Great Britain for fixing the curse of slavery upon them but now evinced their desire to fix that curse upon the people of Missouri, without a legitimate plea of necessity. A congressman from Pennsylvania asked, "why should we make Missouri a slaveholding State? As the climate imposes no necessity, wherein does any excuse exist?"!®° "Necessity" was starting to look more like an "excuse" for further aggressions by the plantation complex. Congressmen tended to accuse the Southerners of fraud as gently as such an explosive charge could be made. To give slavery "new root," Illinois's Cook submitted, "and spread it beyond its ancient borders," showed "that it exists, at least in a part of our empire, from choice."!®! Contributors to Northern newspapers were usually less subtle. Niles contended that Missouri was "a portion of country in which there is no excuse for" slavery, "save that of avarice and a desire of living on the labor of others."!' "The people of Virginia and all the other southern states profess to abhor slavery," ran another diatribe. "All this appears well on paper," but the slave states' stance on Missouri proved how hollow such professions really were.'*' A correspondent of a Philadelphia sheet claimed to "write from the conviction of my understanding, forced reluctantly upon me, when I say I do not believe that the Southern States mean anything more than to blind and deceive the citizens of the free States, when they make their high professions of their sense of the evils of Slavery."!*4 "The discussion of this Missouri question," John Quincy Adams reflected, "has betrayed the secret of their souls." 'They were, despite their professions, ardently attached to slaveholding.'" If the necessary-evil argument did not fare well at the hands of such Northern assaults, neither did the hesitance with which some of slavery's champions had ventured into the territory of positive good. As they had in the debates over slavery in the decade leading up to Missouri, many of the peculiar institution's champions advanced full justifications for it but then backed away. In the Senate, James Barbour demonstrated the confusions of this position. He appealed to ancient as well as American history to prove that slavery had no ill effects on the moral or political virtue of slaveholders. But he took no position on the morality

of slavery. “Whether slavery was ordained by God himself in a particular revelation to his chosen people,” Barbour hedged, “or whether it be merely permitted as a part of that moral evil which seems to be the inevitable portion of men, are questions I will not approach: I leave them to the casuists and the divines.” Although he hoped to disprove the notion that slavery made tyrants of slaveholders, he did not want it to be “supposed, that in the abstract I am advocating slavery.”'®° Many of slavery’s defenders in the Missouri debates joined Barbour in his muddle. One asserted that slavery was justified by the laws of nature and of God, that the most civilized nations in history had practiced it, that slaves were legitimate property, and that “Negroes have no right to object to Slavery” because they had put each other in worse captivity in Africa. But then he protested that “I am no friend to slavery; I wish from my soul it were abolished.”!*’ The restrictionists made such dilatory souls pay for their uncertainty, pushing them to own up to the logical implications of their arguments. A representative from New York, for instance, paraded the perplexity of the hesitant proslavery men’s stance before the House. “Why is it,” he wondered, “that gentlemen, after denouncing slavery as an evil, proceed immediately to treat us with palliatives and excuses for the practice?” He called Randolph on the carpet for declaring that slavery “is an awful and tremendous judgment” and then “in the next breath” telling his colleagues of “the dangers of emancipation; of the happy condition of the slaves; of their affectionate attachment to their masters, and of the cruelty of the restriction.”!** No wonder Randolph groused that “these Yankees have almost reconciled me to negro slavery.”'*? He and others like him had seen how untenable their position in no man’s land was proving to be, and they advanced to a more decisive stance.

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CHAPTER 9 · SECONDARY SOURCE S9.29

Contesting Slavery: The Politics of Bondage and Freedom in the New American Nation

John Craig Hammond and Matthew Mason, eds.

WORK	Contesting Slavery: The Politics of Bondage and Freedom in the New American Nation
SELECTION	“Uncontrollable Necessity”
SOURCE LOCATOR	Original pages 151–152 · University of Virginia Press, 2011.

Excerpt

protected the rights of slaveholders already in place while providing for the gradual abolition of the slavery that had existed in the territory prior to statehood. While most Northern congressmen seem to have agreed with Poindexter, thirty-three representatives—a full third of the representatives from the Northern states—still saw fit to vote against admission. More telling, during the debate, Tallmadge stated his conviction that "the interest, honor, and faith of the nation, required it scrupulously to guard against slavery's passing into a territory where they have power to prevent its entrance." Tallmadge understood that the key issue was power, and there was little doubt that Congress now possessed the power needed to restrict slavery's Western expansion. Less than three months later, he would set off the Missouri Controversy by introducing his own gradual abolition plan for Missouri, a territory, like Illinois, with a comparatively small slave population and a climate unsuitable for plantation agriculture. This time, the House would approve Tallmadge's proposal with near-unanimous Northern support." In retrospect, by 1819, it was probably inevitable that something like the Missouri Controversy would come to pass. The emergence of a more secure West and the prospect of a continental republic; new sectional conflicts over slavery and increased Northern interest in restricting Western slavery; and, finally, the emergence of a federal government whose power increasingly matched its authority—all suggested that Northern Republicans would support any practical measure to restrict slavery expansion. What occurred in 1819, then, amounted to more than Northerners having "awakened quite suddenly to a realization" that "the national prospect had been heavily weighted in favor of slavery."*? If Northern politicians awoke to anything, it was to the realization that the federal government now possessed the real, effective "power" needed to halt slavery's expansion in a continental republic. Politicians also realized that the lack of power had been the deciding factor in their earlier decisions to permit slavery's expansion. In the heat of the Missouri Controversy, James Tallmadge declared that it was "an old principle,' that "whenever the United States have had the right and power, they have heretofore prevented the extension of slavery." While Northern politicians conceded that previous Congresses had permitted slavery elsewhere, they maintained that Congress had done so only out of "uncontrollable necessity." Geopolitical rivalries, patterns of settlement, state claims to the Old Southwest, and the presence of slavery there had all meant that the federal government lacked the "power" to prohibit slavery in Kentucky, to halt the growth of slavery in the Old Southwest did not diminish its right to do so in Missouri, nor to prohibit its expansion into the Trans- Mississippi West. Indeed, now that the federal government possessed the power needed to prohibit slavery's further extension, Northern restrictionists concluded that Congress was obligated to use it.** Though historians have often focused their studies on the overly broad question of slavery in the United States, or on the narrow issue of sectional political strength, Northern Republicans who led the fight against Missouri slavery focused their arguments on the future of slavery in the Western portions of an expanding American Union. Throughout the Missouri Controversy they insisted that slavery in the Trans-Mississippi West was a national problem that required a comprehensive solution—one that began with restricting slavery in Missouri. By 1819 both Northerners and Southerners understood that American expansion had entered a new phase. Post- Revolutionary expansion into the Trans-Appalachian West, followed by the Louisiana Purchase, had created an enormous but unstable Union. Now, the existing Union seemed secure and many white Americans anticipated a new round of territorial acquisition and incorporation that would carry the American Union all the way to the Pacific. The outcome of the Missouri Controversy would set the "authority of precedent" for slavery in the remainder of the Louisiana Purchase and in the expected American expansion into Texas and on to the Pacific Coast. In order to prohibit slavery in the Far Western reaches of an expanding empire, Congress would have to halt slavery's expansion now, in Missouri. As Northerners—Republicans and Federalists—insisted, this would be the first step toward prohibiting slavery "in all new states and territories hereafter admitted to the Union." At the same time, however, most Northerners disclaimed any intentions of interfering with slavery in the Southern states. Much like Abraham Lincoln three decades later, Northern restrictionists sought to exclude slavery from the West rather then to emancipate slaves in the South.°° Southern slaveholders would have none of it. By 1819, restrictions on Western slavery menaced slavery in the East in ways that they never had in 1798, 1804, or 1811. Eastern slaveholders' unbridled opposition to the Tallmadge restrictions marked a significant change in the way that slaveholders understood the relationship between Eastern and Western slavery. Prior to 1810, slaveholders from the Atlantic states rarely tied the future of slavery in the East to its continued expansion in the West. Their claims to the West generally did not extend past the Carolina Upcountry, the Georgia interior,

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Hammond, *Contesting Slavery*, 151–152.

CHAPTER 9 · SECONDARY SOURCE S9.30

Wolf by the Ears: The Missouri Crisis, 1819-1821

John R. Van Atta

WORK	Wolf by the Ears: The Missouri Crisis, 1819-1821
SELECTION	Wolf by the Ears
SOURCE LOCATOR	Original pages 12–13 · Johns Hopkins University Press, 2015.

Excerpt

on his Sea Island rice and cotton plantations, wanted the entire population of slaves included in this calculation. Charles C. Pinckney of South Carolina said he would agree to nothing less than a three-fifths agreement, counting three of every five slaves, along with the state's white population, for apportionment purposes. The vehemently antislavery New York merchant Gouverneur Morris, who represented Pennsylvania at the convention, answered that slave labor was "a nefarious institution," the "curse of heaven on the states where it prevailed," responsible for the "misery and poverty which overspread the barren wastes of Virginia, Maryland, and the other states having slaves." If they are men, then "make them citizens, and let them vote," Morris demanded. "Are they property? Why, then, is no other property included?" In his denouncing of slaveholders' influence at the convention, Morris probably came closer than anyone to anticipating the later northern "Slave Power" fear of an ultra-aggressive, expansionist South, bent on undercutting fundamental republican liberty in favor of aristocratic planter-class interests."° Most of the delegates, more open to conciliation, expected the arbitrary three-fifths ratio of the slave population to become the basis for a settlement. James Wilson of Pennsylvania, as opposed to slavery as Morris but anxious to secure sectional harmony, had earlier proposed a compromise exactly on that line. The overarching goal of achieving union sufficed to extinguish this flare-up over slavery, a battle that most framers cared not and saw no reason to fight in the first place. Some southern delegates still viewed the compromise as giving up the principle that all slaves should be counted, but for years to come, the convention's acceptance of the three-fifths rule looked to many northerners like a submission to southern political blackmail. Grant us this concession, slaveholding interests seemed to have demanded, or the whole deal is off." The second dispute involving slavery developed over the empowering of Congress to regulate commerce between the states. Southerners, again led by a South Carolinian, John Rutledge, feared that a northern majority might employ a broad grant of regulatory power to ban the African slave trade. At first, proslavery delegates insisted on a specific clause forbidding Congress from ever prohibiting the importation of slaves or taxing that trade—again, much to the horror of antislavery delegates like Morris and Rufus King. Unlike the quarrel over the three-fifths clause, however, southerners divided on the desirability of continued slave imports. Virginia and Maryland had recognized their economic interest in discontinuing the trade. To settle the issue temporarily, Connecticut's Roger Sherman and Oliver Ellsworth, betting that slavery in America could somehow end without federal interference, proposed to let the Deep South have its way. A committee, under New Jersey governor William Livingston, recommended that Congress be held back from touching the slave trade until the year 1800. Unwilling to back down completely, South Carolina offered to accept a twenty-year ban on federal intervention—until the year 1808—and the convention agreed. Like the three-fifths compromise, this slave-trade arrangement represented a middle ground between early abolitionist impulses and plantation-labor interests. The final concession to slavery in the Constitution, approved late in the Philadelphia Convention, came in response to South Carolina's desire to include a clause requiring the return to their masters of slaves who escaped across state lines. Only Sherman of Connecticut and Wilson of Pennsylvania questioned the wisdom of such a provision; the other delegates, perhaps weary of their task and eager to get home, agreed without argument. Thus, a policy that in later decades would generate so much acrimony between North and South passed without much excitement and, in the end, with no states opposed. It helped the slave masters' cause that the Northwest Ordinance also contained a fugitive slave clause. Strongly racist white settlers in the Northwest had no intention of welcoming free black inhabitants in any case.' Like Sherman, most northerners over the next three decades would tend more often to regard slavery as the South's "problem," one that the "good sense of the several States" eventually would resolve. Others in later years recognized the North's complicity in the perpetuation of slavery in the southern states. While it implied no direct defense of slavery, textile mill operators in New England and the Middle States would need cotton for their manufacturing in years to come, and slaveholders would produce that cotton. Meanwhile, tobacco, rice, and sugar contributed heavily to the vitality not just of certain regions but the economy as a whole. Southerners would revel in these economic truths and find security in them. Besides, the racism present all along in the North differed only by degree from the more practical version of southerners. The antislavery commitment in northern states sprang not from a radical belief in the equality of races but rather the idea that no man held a right to enslave another. Politically, southerners stuck to—and most northerners, until the time of the Missouri crisis, accepted—the view that the Constitution had created a federal system of strictly limited central

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Shortened citation:

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CHAPTER 9 · SECONDARY SOURCE S9.31

Slavery and the Democratic Conscience: Political Life in Jeffersonian America

Padraig Riley

WORK	Slavery and the Democratic Conscience: Political Life in Jeffersonian America
SELECTION	hapter 6. Democracy in Crisis
SOURCE LOCATOR	Original pages 226–227 · University of Pennsylvania Press, 2016.

Excerpt

1820, “there is really no difference in principle between the great body of the Republicans and Federalists in the East.” In Story’s case, such harmony reflected his growing conservatism. Yet the Missouri Crisis proved decisive in his turn toward sectionalism, as it did for a number of northern Republicans. William Plumer, Jr., of New Hampshire, who wanted Congress to know that restriction had been first and foremost a Republican measure, also explained that it was not ultimately a partisan issue at all. “The question,” he explained, “is not between Federalists and Republicans, but between slaveholders and those who hold no slaves. It is a knowledge of this fact which has induced the free States, usually so much divided among themselves, to advance on this occasion with so much ardor and unanimity to the attainment of their object.”[58]

Plumer, Jr., felt the Missouri question transcended partisanship; in the eyes of many northerners it also transcended the question of states’ rights, which southerners like Jefferson turned to in order to defend the expansion of slavery. For northern restrictionists, the Missouri debates raised far larger and more fundamental questions about the nature of the United States and American democracy. As William Jones told Jonathan Roberts, “the institution of slavery is only maintained by brutal force.” Its presence in the United States had been “secured by compact, extorted from the friends of Union as only less intolerable than anarchy.” Jones could not believe that northerners would “submit to the extension of an evil which in its early progress must render their voice in the union entirely nugatory.”[59] Slaveholder power, antidemocratic in principle, threatened to undermine northern freedom. Northern Republicans had made similar arguments in the past, but generally in episodic ways: in prior conflicts over slavery in Congress, or as marginal complaints in sectional contests focused on other issues, as in debates over the embargo and over the presidential election of 1812. During the Missouri Crisis, Northerners defined the nature of slaveholder power and its political consequences in much more precise terms. Doing so pointed toward a political alignment that would isolate slaveholding as a threat to northern freedom. While antislavery northerners still gestured toward Democratic-Republican ideals, in many respects they were attempting to reverse the course of Jeffersonian democracy for the past two decades, by forcing the problem of slavery to the center of national politics.

But the Missouri Crisis also revealed the capacity of the American political system to contain conflict over slavery, and that was in many ways a very old story. For over twenty years, Jeffersonian democracy had convinced white northern men to embrace the slaveholding republic of the United States and to tolerate the power masters wielded over their slaves. In Congress, meanwhile, southerners were by and large able to protect slaveholder power from northern interference. On most conflicts over slavery, northerners simply did not have the votes. That institutional limitation was obvious throughout the Missouri Crisis. Northerners prevailed in the House on the question of restriction in 1820, as they had in 1819, but they could not win in the Senate. Pro-southern Senators tied the admission of Maine, which was also seeking statehood from the 16th Congress, to the admission of Missouri. Jesse B. Thomas of Illinois, a southerner by birth and a consistent opponent of restriction, proposed the key provision of the eventual compromise: Missouri would be admitted with no restriction as to slavery but the institution would be excluded in the remainder of the Louisiana Purchase north of the latitude 36°30', the southern border of Missouri. The House initially refused the Senate’s measures, but after a legislative deadlock, a conference composed of members from each house recommended that the House should abandon restriction, that the Senate should separate

the admission of Missouri and Maine, and that the 36°30' line should be adopted. When forced to a final vote in the House on March 2, 1820 just enough northern members joined a solid South to ensure that Missouri was admitted with slavery intact. Directly following that vote, a much larger majority of the House decided to accept the 36°30' compromise. The opponents in this case were primarily southerners who objected to any restriction of slavery by the federal government.[60]

Author's Notes

58. Story to Edward Everett, May 7, 1820, Life and Letters, 1: 366–68; Plumer in AC, 16th Cong., 1st Sess., 1436–37.

59. Jones to Roberts, February 3, 1820, Roberts Papers, HSP.

60. Fourteen northerners joined the South on March 2 to concur with the Senate in striking out the restriction of slavery in the Missouri bill. The final vote was 90 in favor of concurring, 87 opposed. Four other northern members absented themselves during the vote, notably Caleb Tompkins, older brother of Vice President Daniel D. Tompkins. No southern member voted in favor of restricting slavery in Missouri. The 36°30' line was adopted by a vote of 134–42; 37 of the nay votes came from Southerners and 18 from Virginians. AC, 16th Cong., 1st Sess., 1586–1588. For the legislative details, see Moore, Missouri Controversy, 84–102.

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Riley, *Slavery and the Democratic Conscience*, 226–227.

CHAPTER 9 · SECONDARY SOURCE S9.32

No Property in Man: Slavery and Antislavery at the Nation's Founding

Sean Wilentz

WORK	No Property in Man: Slavery and Antislavery at the Nation's Founding
SELECTION	TO THE MISSOURI CRISIS
SOURCE LOCATOR	Original pages 189–190 · Harvard University Press, 2018.

Excerpt

Illinois, and had become a center for hemp production and home to upward of ten thousand slaves, roughly 15 percent of its total population. Having met all of the constitutional requirements, the white settlers applied for admission to the Union. Sandwiched between the proposed new state and Louisiana was Arkansas Territory, a rugged terrain, sparsely settled and with a smaller proportion of slaves. Given slavery's substantial presence in Missouri and given Arkansas's location, it was widely assumed that both the new state and the new territory would remain open to slavery."® Tallmadge ignited his Missouri bombshell in the House in February 1819, near the end of the congressional session. His two-part amendment required, first, that the new state's constitution bar any further introduction of slavery, and second, that it include a gradual emancipation plan, in this case along the lines of New York's emancipation law of 1799. After more than two days of searing debate, the House approved both proposals by votes of 87-76 and 82-78, respectively, and sent them to the Senate. Southerners voted almost unanimously against both proposals; the northerners broke 86-10 and 80-14 in favor." For the first time ever, a chamber of Congress had voted to eliminate slavery in an area under its jurisdiction including an emancipation plan for resident slaves. The day after the vote, Tallmadge's close ally from New York (and a future Speaker of the House), John W. Taylor, introduced a similar clause "to prohibit the existence of slavery in the new Territory" of Arkansas.*° The two sets of amendments raised different constitutional issues. Missouri was applying for full statehood, and, as the debate over IIlinois showed, Congress had not yet settled whether it could refuse to admit a new state over the existence of slavery. Because Missouri's year earlier. Southerners contended that the Constitution did not empower Congress to block a new state over slavery. Northerners replied that until Missouri was formally admitted, it remained a territory over which Congress could exercise complete authority. Arkansas Territory seemingly presented a more straightforward situation. As recently as the admission of Louisiana Territory in 1804, slaveholders had conceded Congress's authority over slavery in the territories. Proslavery advocates had beaten back efforts to ban slavery in Mississippi and Louisiana Territories, but not on the grounds that Congress was prohibited by the Constitution from doing so. Under the pressure of the debates over Missouri, though, some slaveholders—'the zealots,' John Quincy Adams called them—counterattacked by contending that Congress was powerless over slavery in the territories as well, or at the very least those territories, including Arkansas, obtained in the Louisiana Purchase." As justification, they advanced new claims that the Constitution actually recognized property in man, which precluded any congressional restrictions. The initial southern ripostes to Taylor's Arkansas amendment, to be sure, ran an erratic gamut, ranging from accusations that Taylor was slandering the South to denunciations of his proposal as "an entering wedge" for national emancipation. (Speaker Henry Clay accused Taylor of Negrophobia, which elicited a prickly reply from Taylor that the debate over Arkansas in fact revealed that fear of blacks prevailed not in the North but the South, where "it haunts its subjects in their dreams, and disturbs their waking hours.") Hugh Nelson of Virginia shifted the debate to constitutional grounds. Had their predecessors proposed

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Wilentz, *No Property in Man*, 189–190.

CHAPTER 9 · SECONDARY SOURCE S9.33

The Rise of American Democracy: Jefferson to Lincoln

Sean Wilentz

WORK	The Rise of American Democracy: Jefferson to Lincoln
SELECTION	THE RISE OF AMERICAN DEMOCRACY
SOURCE LOCATOR	Original pages 220–221 · W. W. Norton, 2005.

Excerpt

Virginia Republicans, by contrast, sometimes aligned with moderate northern Federalists and northern Republicans against the Deep South on matters relat ing to slavery, at least through 1800. Well into the post-Revolutionary era, the assumption prevailed among many Virginians, slaveholders and nonslavehold ers, that human bondage was a moribund abomination. Thomas Jefferson had famously written, in his Notes on the State o f Virginia of 1785, that "[t]he whole commerce between master and slave is a perpetual exercise of the most boister ous passions, the most unremitting despotism on the one part, and degrading submissions on the other.... I tremble for my country when I reflect that God is just." Jefferson would never tremble enough to free more than a handful of his own slaves. Neither he nor most other first-rank southern political leaders took up the antislavery cause too publicly or too vociferously. When pushed hard by the Deep South slaveholders—as they were in 1790, over a House committee report giving Congress wide powers over slavery—the Virginians chose expedi ency over idealism. Still, the Enlightenment and religious humanitarian impulses that helped bring emancipation to the northern states were there in Virginia and the upper South. Manumissions rose markedly after 1790. (A greater number of Virginia slaves were freed between the Revolution and the War of 1812 than at any time until 1865.) A persistent glut and depressed prices in world tobacco markets further augured a shift in southern agriculture toward wheat production, highly profitable without slave labor. To some Virginians, including Jefferson, it appeared as if morality and self-interest might actually converge in the not-too-distant future.[4]

That future never came, and by 1815, the politics of slavery had acquired an entirely different political charge. The closer Congress verged on legislation con cerning the institution directly, the more southerners recoiled, and the more pro slavery views hardened. More important, slavery experienced a renaissance after

1790 that forever changed the course of southern history—and American history. A rapid rise of world demand for sugar and, even more, for cotton; the decline of many Caribbean plantation economies in the wake of the Saint Domingue revo lution and the reduction of the Spanish empire during the Napoleonic Wars; the expansion, with the Louisiana Purchase, of American territory suited to plantation-based economies; the boom in short-staple (or upland) cotton pro duction enabled by the introduction of Whitney's cotton gin —all gave Ameri cans extraordinary advantages in reviving their own plantation system. For some southerners, the combination of new opportunities and revived fears of slave revolts led to a new vision of an American slavery spreading steadily westward, no longer dependent on freshly imported (and possibly troublesome) slaves from Africa but on a growing domestic slave population, beautifully situated to cash in on the production of sugar and cotton.[5]

Suddenly, the liberal blandishments of the post-Revolutionary years either faded away, fell on the defensive, or turned, ironically, into their opposites. In border states like Henry Clay's Kentucky and in portions of the lower South where slavery was scarce, the Jeffersonian view of slavery as a necessary evil — degrading to master and slave alike, but not amenable to any safe and practical immediate solution —still held powerful sway. But elsewhere, pro-slavery opin ion became more widespread and bolder. Some Deep South slaveholders para doxically came to support antislavery efforts to end the transatlantic slave trade in

1807, seeing in western expansion a more secure basis for slavery's future. More generally, the lower South became even more outspoken in its view of slavery as benevolent. In a speech to the House late in 1806, a young, ardently pro-slavery

Republican, Peter Early of Georgia, revealed how southern sensibilities were changing. Noting that he had earlier described slavery as an "evil," Early begged to explain that he had only meant to say that "[rjeflecting men" in the South apprehended slavery as a "political evil" that might "at some future day" cause great troubles, but "that few, very few, consider it a crime." As if affirming that former heresy was becoming southern orthodoxy, Early then added, "I will tell the truth. A large majority of people in the Southern states do not consider slav ery as even an evil."6

Author's Notes

4. Jefferson, Notes on the State o f Virginia William E. Pcden, ed. (New'York, 1954), 162-63. There is considerable dispute among historians about how to interpret the burst of manu missions after the Revolution—between those who minimize its importance and those who stress the genuine moral awakening experienced, if only gradually, by such prominent slaveholders as George Washington. The point to stress is that the tone did change between 1800 and 1820, making antislavery sentiments even more tenuous among slave holders throughout the South. See Robert McColley, Slavery and Jeffersonian Virginia (1964; Urbana, IL, 1973), esp. 111-62; Henry Wiecek, An Imperfect God: George Wash ington, His Slaves, and the Creation o f America (New York, 2003). On the congressional struggle in 1790, see Robinson, Structure, 302-12. Of the House floor leader for compro mise, Robinson (312) writes, "Having initially supported the investigation of Congres sional powers over slavery and the slave trade, Madison quickly sensed that opinions were so profoundly divided that the mere discussion of them constituted a serious threat to the union." Thus, the political threats and anxieties that helped shape the federal convention in 1787 persisted in the First Congress—and well beyond. See New'man, "Prelude"; Stu art Knee, "The Quaker Petitions of 1790: A Challenge to the Democracy of Early Amer ica," Slavery and Abolition, 6 (1985): 151-9.

5. For a recent analysis of the economic and political factors behind American slavery's ren aissance, see Adam Rothman, " The Expansion of Slavery in the Deep South, 1790-1820" (Ph.D. dissert., Columbia University, 2000).

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CHAPTER 9 · SECONDARY SOURCE S9.34

The Era of Good Feelings

George Dangerfield

WORK	The Era of Good Feelings
SELECTION	The Politics of Slavery
SOURCE LOCATOR	Original pages 200-201 · Harcourt, Brace, 1952.

Excerpt

The amendment, however, was well suited to the political needs of the North and the East. They had never been reconciled to the clause in the first Article of the Constitution which made the Negro slave three-fifths of a man for the purpose of apportioning representatives, and they were now determined to prevent this apportionment from creeping across the Mississippi. The Panic of 1819 was just beginning to show that the economic foundations of the Union were far from sound; and the Tallmadge amendment, which questioned the soundness of its ethical foundations, was a political weapon of the most dangerous kind. When politics, economics, and ethics are all mixed together, the mixture may be confusing, and it is sure to be deadly. During the debate on the Tallmadge amendment, even the most fustian language had a prophetic ring. “You have kindled a fire,” shouted Congressman Cobb of Georgia, in response to the arguments of Tallmadge “which all the waters of the ocean cannot put out, which seas of blood can only extinguish.” [7]

The amendment was passed in the House of Representatives by a strictly sectional vote of 87 to 76 (on its first part, prohibiting the further introae of pay ea 82 to 78 (on its second part, freeing all children geet st coe - ie s admission into the Union). In the Senate, the first part it by a vote of 31 to 7, and the second by one of 22 to 16; and the Bill, without the amendment, was returned to the HMh citizens expressed themselves as being astonished and horrified at the thought that slavery could cross the Mississippi, though it had been doing so for many years.? Southern newspapers and pamphleteers seemed to be outraged by the suggestion that it could be prevented from ranging over the whole Louisiana Purchase.*° During the framing of the Constitution, during the Burr conspiracy, during the War of 1812, the combination of political grievance on the one hand, and of the anomaly of slavery in a modern republic on the other, had threatened to burst into flame.*? It had now fulfilled its threat: so much so that people soon began to ask themselves, not whether the fire could be extinguished, but whether it could be banked.

In its crudest form, the question raised by the Tallmadge Amendment was that of the control of the Mississippi Valley. Would such an amendment dissolve the old alliance between the freé-soil Northwest and the slaveholding South? Here Missouri was little more than a symbol, a geographical ideogram. It could never become a great slave-holding state, because its southern lands were not favorable to cotton as a major crop; while hemp, to which its western soils were well suited, was already crying for protective tariffs. Hemp culture, however, was so disagreeable that it was considered especially appropriate to slave labor: hemp, therefore, was both an attraction and an excuse. Ever since the close of the War of 1812, Missouri’s most characteristic immigrants had been slave-owners.”

This migration was of grave significance. In the first place, Missouri was a pioneering land, still largely uncleared; and, when cleared, more suited to diversified farming than to a one-crop system. Its manners retained all the innocence or savagery of the frontier; it was a common proverb that when one crossed the Mississippi one traveled beyond the Sabbath." Its closest connections were still with the fur trade. It thrust itself towards the northwest, into distances so vague and along waters so unknown that sober people still declared that there was an active volcano near the sources of the Missouri.1* Its borders were adjacent to free-soil Illinois and to slave-soil Kentucky and Tennessee. It was, in short, a challenge both to the idea of a democratic West and to the scarcely formulated notion of universal slavery.

Author's Notes

7. *Annals of Congress*, 15th Cong., 2nd sess., 1435-36.

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CHAPTER 9 · SECONDARY SOURCE S9.35

The Slave Power: The Free North and Southern Domination, 1780-1860

Leonard L. Richards

WORK	The Slave Power: The Free North and Southern Domination, 1780-1860
SELECTION	The Slave Power
SOURCE LOCATOR	Original pages 54-55 · Louisiana State University Press, 2000.

Excerpt

In the end, whether Tallmadge was a maverick or the tool of DeWitt Clinton hardly matters. What is striking is the number of free-state politicians who quickly rallied to Tallmadge's side. In 1818 he had tried to block statehood for Illinois because the Illinois Constitution failed to completely outlaw slavery. Only thirty-four representatives voted with him then. Yet a year later, in calling for limitations on slavery in Missouri, he had the immediate backing of seventy-nine representatives. After a heated and often bloodthirsty debate, the House passed his amendment, with eighty-seven members voting to prohibit the further introduction of slavery into Missouri, and eighty-two voting to free all slave children born after Missouri became a state. On the first clause all but ten free-state representatives voted with Tallmadge, on the second, all but fourteen.

Most of these supporters were northern members of Jefferson's own party. They generally called themselves Republicans, a name that the followers of Lincoln and Seward would later appropriate because it had a nice Jeffersonian ring to it. But unlike their namesakes, these original northern Republicans were members of a party with deeper roots in the South than in the North. Nearly all were well aware of this fact. Many had little or no love for Clinton. Most detested Federalists. Yet, after Tallmadge left Congress and returned to Poughkeepsie, many of them teamed up with arch-Federalist Rufus King to fight the admission of Missouri as a slave state. So, for nearly two years, the most divisive issues of the day—the future of slavery and the inordinate power of the South in national affairs— dominated the political agenda. Why did that happen? And why were so many northern Republicans willing to allow that to happen? of heart and accept Gouverneur Morris's indictment of the threefifths rule, so did many northern Republicans.

Time had proved that Morris was basically right. The direct tax provision of the three-fifths clause turned out to be almost meaningless, and accordingly all the three-fifths clause really did was give the slave states more power. As Morris predicted, the new federal government under the Constitution depended on import duties for the lion's share of its income, and northerners paid the hon's share of the duties. Direct taxes, from the outset, were dismissed as unpopular, cumbersome, and impossible to enforce. For every dollar raised through direct taxes, it was argued, three or four could be raised through import duties for the same cost and three times as fast.

Only when the import trade was threatened by war did the federal government even consider direct taxes. In 1798 it appeared that the United States would soon be at war with France, and as a result many in Congress thought it dangerous for the federal treasury to be totally dependent on import duties. So Congress, with much grumbling, agreed to a direct tax of two million dollars. Similarly, during the War of 1812 the Madison administration desperately needed money, and Congress imposed direct taxes of three million dollars in 1813, six million dollars in 1814, and three million dollars in 1815. According to northern congressmen, the slave states were slow in paying their share of the bill, and in some cases they did not pay at all. Kentucky was accused of paying only one-tenth of the money it owed, and South Carolina and Georgia were accused of paying "not even a single cent."7 All in all, Congress resorted to direct taxes only four times in the seventy-two years between Washington's election and Lincoln's. In the other sixty-eight years direct taxes were neither enacted nor even seriously discussed.

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CHAPTER 9 · SECONDARY SOURCE S9.36

Wolf by the Ears: The Missouri Crisis, 1819-1821

John R. Van Atta

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SELECTION	Wolf by the Ears
SOURCE LOCATOR	Original pages 66–67 · Johns Hopkins University Press, 2015.

Excerpt

The several previous attempts to restrict slavery expansion into the upper part of Louisiana Territory, such as James Hillhouse's in 1804, had failed because less appeared at stake and, more important, because of their timing. In 1811, as the House considered elevating Missouri to second-stage territorial status, Pennsylvania Republican Jonathan Roberts had introduced a proposal to prohibit any further introduction of slaves, but others persuaded him that the approaching war with Britain superseded divisive concerns about slavery. Besides, westerners, already "infatuated with the spirit of opposition to the Government," needed no further incentive to revolt. The following year, Abner Lacock, another Pennsylvania Republican, had tried again, resulting in a mere seventeen House votes in favor. New Hampshire Republican Arthur Livermore, in April 1818, had proposed a constitutional amendment that would have barred admission of any more slave states, but with Alabama statehood pending, the House defeated that, too. But Missouri meant something different, partly because of when it applied and also its geographical location. To validate slavery there would protect the institution as far as two hundred miles north from the mouth of the Ohio River, the traditional dividing point between freedom and slavery."° Beyond that, maintaining the balance in Congress between slave states and free states, a condition long considered vital to sectional peace, bore heavily on the Missouri dispute. When the Constitution went into effect in 1789, North and South had been close to even in population and wealth, with three-fifths of the slaves being counted for House representation and electoral votes. But over the following generation, economic development in the North had given that section a commanding advantage. By 1819, a free-state majority of 105 to 81 dominated the House. Southern influence in Congress had diminished at every census. In 1790, 49 southern House seats stood against 57 northern; twenty years later, only 79 to 107; and after 1820, a widened breach of 89 to 124. This meant the balance of power in the Senate, where the number of slave-state members remained equal to that of the free states, now loomed all the more critical. After Alabama's admission, that would make twenty-two slave-state senators against twenty-two from the free states. To restrict slavery from spreading further into Missouri could shift power in both houses against the South and promise more free states to come." Further, both Tallmadge on the Republican side and Rufus King on the Federalist wanted to revisit the three-fifths-clause dispute. That constitutional provision had been the other wellspring of southern influence in national politics, and slave-state forces would meet this new attack with all the venom they could muster. Earlier elitist assumptions that had justified extra power for slaveholders as a check against challenges to their authority from below no longer commanded the ideological sway they had in the 1780s. The notion that a stable republic depended so much on government protection of the propertied groups could not hold up in an age of increasingly democratic politics and emerging free-labor political economy. The offending clause mattered in close presidential elections and tight congressional roll calls. It had put Jefferson in the White House and launched the "Virginia Dynasty" that many northern Republicans now resented. Voices from the North, opposing the three-fifths rule and preferring that no slaves be counted for representative purposes, now asked whether the clause needed to apply at all in new states west of the Mississippi. Besides, stopping slavery at the great river would make repeal of the three-fifths clause inevitable after enough western free states entered the Union. With that aggressive northern supermajority, slavery, slave-state self-determination, planter-class authority, and white

Philip P. Barbour retorted that if the three-fifths compromise in 1787 did not apply to the new states, then neither did the other critical compromises apiece."

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CHAPTER 9 · SECONDARY SOURCE S9.37

Slavery and Politics in the Early American Republic

Matthew Mason

WORK	Slavery and Politics in the Early American Republic
SELECTION	THE MISSOURI CRISIS
SOURCE LOCATOR	Original pages no stable fixed page labels in supplied edition · University of North Carolina Press, 2006.

Excerpt

Hartford Convention label from themselves to their foes. Duane, for instance, railed against Southern attempts to carry the Missouri Compromise “by menace” of civil war and disunion. “The Hartford Convention,” he concluded, “finds its counterpart in crime and contempt, in this case.”'* A Western sheet published a roster of the doughfaces, whose “names will be recorded on the same black page with those of the members of the Hartford Convention.”!”” Moderates nurtured partisanship as sectionalism eclipsed it because they recognized that sectional parties posed a greater danger to the health of the Union than traditional parties. Senator James Barbour of Virginia argued that heretofore the political parties had been “comparatively harmless. Such will not be the case when you divide by latitudes.” In the “collisions” of such parties, “the Union will shake to its foundations.”!°° In 1820, James Madison hoped for a heated tariff debate in Congress, for it would “divide the nation in so checkered a manner, that its issue” could not be as “serious” as the Missouri scare.!°’ Southern Republicans fretted most about sectional parties,'*’ knowing a solely Southern party would be a minority. So dominant were the warnings against a Northern sectional party that a Massachusetts Republican complained that no one seemed to consider the South’s unity threatening. “In the South,” he pointed out, “you behold eleven states, all contiguous, some proud and aspiring, all united to a man. In this unanimity there seems to be perceived no danger.” '!°’ Preserving the Union at all costs was the cry of moderates, but the costs seemed always to be billed to Northerners. Another Bay Stater noted that the South voted unanimously for extension, “and then are struck with horror at our giving this question a geographical distinction.”!'° Even as mainstream Republican Unionists capitalized on the Hartford Convention, they also revisited the tactics they had used to counter the Federalists’ assault on slave representation in the years leading up to the Hartford meeting. During the Missouri controversy, as during the War of 1812, few directly defended the three-fifths clause."! Instead, they exploited Washington’s Farewell Address. In 1820, for instance, a Savannah printer issued an editorial admonishing restrictionists that “to sow the seeds of jealousy and disunion” was “but little better than éreason.” “All good citizens,” he preached, must “ ‘frown indignantly’ upon” the instigators of strife, “so long as they reverence the warning 2] voice of... Washington.”!'? Boston’s Independent Chronicle printed a rebuke to the fomenters of sectional discord under the headline “Washington’s Farewell Address.”!'* As they had during the war, those seeking to parry blows against slavery also invoked the blessings of the Union."* This was an effective tactic that restrictionists felt their vulnerability to.!!° question in the Missouri debates. The sheer volume of these protestations suggests how desperately the moderates were seeking to make the contest one they could win. Northern doughfaces, who faced an irate constituency, had the greatest need to define the subject in this fashion. But Southern representatives who were not yet willing to defend slavery to the fullest, and all those who knew the divisive power of slavery in politics, had strong incentives to try to remove chattel bondage from the discussion. The antirestrictionists repeatedly pled that the crux of the matter was not the existence of American slavery, but whether to bottle slaves up in the Southeast. The editor of the Independent Chronicle grew exasperated with polemicists who made as if the debate was over whether slavery would increase in the United States. “Once for all,” he groaned, “no such question is presented.... The question concerns only the diffusion or the concentration of the slaves now in the country.” No one—least of all this printer—was advocating slavery or its aggrandizement.'!° Another antirestrictionist argument was that the real issue was equal rights and freedom of choice for white Missourians and migrating slaveholders. No matter how much he abhorred slavery, the plea went, he could not countenance this usurpation of free citizens’ rights. “If congress can... trammel or control the powers of a territory in the formation of a state government,” proclaimed Kentucky’s state legislature, it “may, on the same principles, reduce its powers to little more than those possessed by the people of the District of Columbia, and whilst professing to make it a sovereign state may bind it in perpetual vassalage.” The legislators specifically refrained “from expressing any opinion either in favor or against the principles of slavery.” ‘They acted merely “to support and maintain state rights.”"7 A Massachusetts doughface assured his constituents that his vote against restriction was an antislavery measure. He asserted that “if congress has the power of limiting the exercise of sovereignty in a new state, what shall prevent it from stretching its prerogative over the sovereignty of an old one?” Would Massachusetts “have borne to have had congress say to her, ‘you shall not abolish slavery’? He, for one, could not have, for he detested “s/avery, in any form, as much as any man.”!'® The sum and substance of the creed of the doughface and Southern moderate, then, was that they stood not for slavery, but for the Constitution and Union, whose maintenance was the heart of the Missouri matter. “Slavery would be a less evil,” a Boston editor pronounced, “than would be a spirit of acrimony and hostility between different sections of the Union.”"” John

Chicago Citations

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CHAPTER 9 · SECONDARY SOURCE S9.38

Slavery and the Democratic Conscience: Political Life in Jeffersonian America

Padraig Riley

WORK	Slavery and the Democratic Conscience: Political Life in Jeffersonian America
SELECTION	ntroduction. North of Jefferson
SOURCE LOCATOR	Original pages 12–13 · University of Pennsylvania Press, 2016.

Excerpt

Once again, however, national ideological unity broke down over the practical politics of slavery. The final chapter of this book traces the congressional conflict of 1819–1821 over the expansion of slavery to the new state of Missouri. In contrast to Republican nationalism during the War of 1812, the Missouri Crisis appears much as Jefferson described it, as an alarming interruption in national political life. But the Missouri Crisis was also the culmination of a long Jeffersonian argument about the power of slavery in the United States. A debate that began over the expansion of slavery to the West became a referendum on Jeffersonian democracy, American nationalism, and slaveholder power.

The Missouri Crisis presented northern Republicans with a dilemma at once ideological and historical. Northern Republicans tried to use Jeffersonian nationalism to restrict slavery expansion by arguing that the founding ideals of the United States were opposed to slaveholder power. But they faced a contending nationalist argument that stressed the protection of slavery as the price of Union and celebrated the expansion of American sovereignty under Republican rule. That counterargument was persuasive in good part because northern Jeffersonians had often accommodated slaveholder power in the past. Republican advocates of restriction were defeated, in other words, by their own ideological commitments, which had tolerated a major expansion of American slavery during two decades of Jeffersonian rule. During the Missouri Crisis, northerners took a stronger stance against slavery than they ever had before. But they did so in a political context where nationalism, the American nation-state, and the economic power of slaveholders were far stronger than they had been previously. Thus in addition to the difficulty of confronting slaveholder power, northern Jeffersonians faced the more complicated task of confronting their contradictory history as democrats in a slaveholding republic.

The Missouri Crisis had no decisive conclusion in northern political thought, and it left a divided legacy for the antebellum era. Antislavery northerners left the Missouri Crisis bitter at southern defenses of slaveholder power, but also confident in their commitments to the American nation and the core democratic principles of Jeffersonian politics. Other northerners, in contrast, responded to the Missouri Crisis and especially its final phase, which focused on the rights of free African Americans, by endorsing a racist consensus in which the political union of the United States and the political rights of white men required the subordination of black Americans, free and enslaved. As the Missouri Crisis concluded, moreover, New York's Martin Van Buren began early attempts to revive the Jeffersonian coalition, thus setting in motion a renewed North-South partnership that would flourish by the late 1820s, with the rise of Jacksonian democracy.[19]

While this book ends as antebellum politics begins, it also looks beyond the Jacksonian era to a longer, deeper, and ongoing story about the relationship between democratic freedom, oppression, and power in the United States. Ultimately, it explores a problem raised in a starker form by antebellum abolitionists and especially by escaped slaves who joined the antislavery struggle: why did nonslaveholders tolerate the existence of slavery? And how could they be persuaded to oppose to it? As Frederick Douglass told a British audience in March of 1847, "the northern states claim to be exempt from all responsibility in the matter of the slaveholding of America… but this is a mere subterfuge." In fact, northerners buttressed slaveholder power by supporting the United States Constitution, while their "deep prejudice against the coloured man" constricted African American freedom. Upon returning to the United

States a few months later, Douglass bitterly noted:

I have no love for America, as such; I have no patriotism. I have no country. What country have I? The institutions of this country do not know me, do not recognize me as a man. I am not thought of, or spoken of, except as a piece of property belonging to some Christian slaveholder, and all the religious and political institutions of this country, alike pronounce me a slave and a chattel.

As Douglass was well aware, abolishing slavery would require overturning that state of affairs, so that a slave could become a man. There was far more at stake in that transformation than a physical contest with mastery. Abolition would require non-slaveholders to reject the legitimacy of slaveholder power and to accept the legitimacy of Frederick Douglass and other African Americans as equal political subjects. That effectively meant reconstructing a democratic culture that had been built through the toleration of slaveholding authority.[20]

Author's Notes

19. Robert Pierce Forbes, The Missouri Compromise and Its Aftermath: Slavery and the Meaning of America (Chapel Hill: University of North Carolina Press 2007); Richard Brown, "The Missouri Crisis, Slavery, and the Politics of Jacksonianism," South Atlantic Quarterly 65 (Winter 1966): 55–72.

20. Frederick Douglass, "Farewell Speech to the British People" and "The Right to Criticize American Institutions" in Frederick Douglass: Selected Speeches and Writings ed. Philip S. Foner and Yuval Taylor (Chicago: Lawrence Hill Books, 1999), quotes at 58, 77.

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Riley, *Slavery and the Democratic Conscience*, 12–13.

CHAPTER 9 · SECONDARY SOURCE S9.39

Wolf by the Ears: The Missouri Crisis, 1819-1821

John R. Van Atta

WORK	Wolf by the Ears: The Missouri Crisis, 1819-1821
SELECTION	Prologue: Knell of the Union?
SOURCE LOCATOR	Original pages 1-2 · Johns Hopkins University Press, 2015.

Excerpt

ON FEBRUARY 13, 1820, Secretary of State John Quincy Adams and House Speaker Henry Clay walked home together from the newly reconstructed Capitol. The anxiety probably registered in their faces as well as in their words. For days, the city had been awash with rumors of disunion. The storm in Congress over the Missouri question—how, or whether, to admit the Missouri Territory to the Union as a new slave state—continued to rage without any certainty of breaking.

This crisis had begun exactly one year earlier, when New York congressman James Tallmadge had proposed an amendment to the bill to make Missouri the twenty-third member (after Alabama) of the United States. That amendment would have required the new state's constitution to ban any further entry of slaves within its borders and mandate that all human chattels born there after 1819 become free at age twenty-five. Antislavery northerners insisted that Congress had every right to deny Missouri's application if it would not accept these conditions and looked toward prohibition of slavery as a prerequisite for all further states west of the Mississippi River. Proslavery southerners replied that the Union consisted of equal states, with It was shocking to think of it, Clay told Adams, but he "had not a doubt that within five years from this time the Union would be divided into three distinct confederacies'—northern, southern, and western. Adams himself must have wondered whether his own moral obligation to oppose slavery mattered more than keeping together a Union that his father had helped to construct. Elsewhere in Washington, Secretary of War John C. Calhoun gloomily pondered that a collapse of the Union would force the South toward a defensive alliance with Great Britain, in effect returning it to a "colonial state.' Was America's "great experiment" in republicanism about to prove pathetically short lived?"

A glimmer of hope appeared on February 16, when the Senate passed, 23 to 21, a proposition to admit Maine as a free state in return for Missouri's entrance without restriction on slaveholding, but in the House the anti- Missouri majority still refused. The following day, Senator Jesse B. Thomas of Illinois introduced the compromise amendment that a majority of senators saw as the only way to end the crisis: in return for admission of Missouri on its own terms, a line at 36°30' latitude, banning further introduction of slavery in the northern part of the Louisiana Purchase. The House majority remained obdurate, but bargain making behind the scenes, including President James Monroe's subtle efforts, opened the possibility of a breakthrough. Finally, on March 2, 1820, the Thomas Amendment succeeded by a paper-thin House margin of go to 87. Only a few northerners had defected, but these votes mattered critically. "The Constitution is a creature of compromise," as one, James Stevens of Connecticut, explained; "it originated in a compromise; and has existed ever since by a perpetual extension and exercise of that principle; and must continue to do so, as long as it lasts."?

The Missouri solution thus became national policy for the decades to come, an indisputable turning point in the history of the early republic. On the volatile matter of slavery, one crisis had been met and passed. Whether others, more frightening, lay still ahead remained anyone's guess.

Chicago Citations

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Atta, *Wolf by the Ears*, 1-2.

CHAPTER 9 · SECONDARY SOURCE S9.40

No Property in Man: Slavery and Antislavery at the Nation's Founding

Sean Wilentz

WORK	No Property in Man: Slavery and Antislavery at the Nation's Founding
SELECTION	To the Missouri Crisis
SOURCE LOCATOR	Original pages 201-203 · Harvard University Press, 2018.

Excerpt

It required all of Speaker Henry Clay's enormous political skill to fashion a two-pronged compromise. The first part, pairing the admission of Missouri with that of the newly created state of Maine, made it possible to maintain parity between slaveholding and non-slaveholding states in the Senate. The second part had its origins in the debates over Arkansas. The pro-extension congressman Louis McLane floated a suggestion that the North and South might avoid future struggles by agreeing to fix a line of latitude above which slavery would not be permitted. (That McLane's proposal would also affirm Congress's authority over slavery in the territories obtained in the Louisiana Purchase apparently bothered him not at all.) John Taylor picked up the idea and, after his antislavery Arkansas amendment was finally defeated, he proposed setting a demarcation at latitude 36° 30' across all of the Louisiana Purchase lands—a line that would have permitted slavery in Arkansas but banned it in Missouri. The proposal went nowhere, with some congressmen grumbling that it still sanctioned slavery and others that it gave too much to the North.'°° As the Missouri stalemate worsened, the anti-restrictionist Illinois senator Jesse B. Thomas seized upon Taylor's proposal, altered it to permit slavery in Missouri (which lay above 36° 30'), and presented it to the Senate as a compromise amendment. In exchange for admitting Missouri with slavery, Congress would repudiate the southern zealots' absolutist view of property in slaves under the Constitution and acknowledge its own authority over slavery in the territories obtained in the Louisiana Purchase. The proposal showed how far the tislavery northerners a concession on the exercise of a specific congressional power that until the Missouri debates had not been seriously challenged. Yet the most determined hard-liners, now convinced of the righteousness as well as the constitutional correctness of their position, also rejected the bargain as, in the words of the Old Republican senator Nathaniel Macon of North Carolina, "acknowledging too much." Macon and a handful of recalcitrants held out as long as they could— Macon until the bitter end—but the Senate approved the Thomas proposal handily with virtually universal northern support. Then it approved the amended bill by a much smaller margin—the latter vote a mark of how deeply the Missouri issue divided the sections.'°* Speaker Clay and his lieutenants immediately went to work in the House. Seeing the closeness of the final vote in the Senate, which was 24 to 20, Clay now shrewdly divided the two halves of the compromise. After a touchand-go negotiation, the House finally approved, by a three-vote margin, Missouri statehood without restriction of slavery, then passed Thomas's 36° 30 amendment by a much larger margin. As if to add an exclamation point to Thomas's amendment, the House and Senate agreed to specify that its purpose was "to prohibit slavery in certain Nerritoriesiae The so-called Missouri Compromise was really more of a wellmanaged bargain, breaking the logjam while allowing the most determined antislavery and proslavery forces to vote their beliefs. On the constitutional issues at the heart of the fight, Congress appeared to split the difference, abjuring the authority to block a state's admission over slavery while affirming its authority over slavery in the territories—including, contrary to the "equal advantages" argument, Louisiana Territory. In effect, the compromise shored up the paradox of 1787 by protecting slavery as a local institution while also denying it protection in national law. Yet the sectional differences remained deep: despite crucial defections, northern congressmen had voted 87 to 14 against slavery in Missouri, while only a bare majority of slave state congressmen had supported Thomas's amendment." The crisis had also altered the political as well as the constitutional map: while antislavery northerners had threatened the slaveholders as never before, proslavery hard-liners had managed to make the affirmation of long-acknowledged congressional authority over slavery in the territories look like an indulgence—an indulgence they despised. Both sides harbored their fear and loathing of each other; neither side abandoned its principles. Whatever else it hoped to accomplish in the future, the nation's political leadership would need to continue containing the furies unleashed in 1819 and 1820. But that would require suppressing a widening and essential breach about slavery and the nation itself, and whether the Constitution validated property in man.

Chicago Citations

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CHAPTER 9 · SECONDARY SOURCE S9.41

Contesting Slavery: The Politics of Bondage and Freedom in the New American Nation

John Craig Hammond and Matthew Mason, eds.

WORK	Contesting Slavery: The Politics of Bondage and Freedom in the New American Nation
SELECTION	John Craig Hammond
SOURCE LOCATOR	Original pages 146–147 · University of Virginia Press, 2011.

Excerpt

tied together in the Southwest. The letters instructed Ellicott to inform the white inhabitants of the territory that Congress had made it official: they "may keep slaves." A few months later, Pickering informed the designated governor, Federalist Winthrop Sargent, that Congress had permitted slavery in Mississippi because "almost all of the inhabitants are possessed of slaves." The connection between slavery expansion and securing the American Union came together one last time in Sargent's inaugural address, in which he explained that the United States had permitted slavery, "in special indulgence to the people of this territory.""[9] Five years later, the Louisiana Purchase brought the conflict between limiting Western slavery and securing the Lower Mississippi Valley to a head. At the time of the Purchase, Louisiana was in the midst of an unprecedented plantation boom. As every planter, farmer, merchant, and American agent in Louisiana understood, the plantation boom could be sustained only with uninterrupted access to the slave trade. In Natchez, Congress had granted local whites' demands that the United States sanction slavery. Yet with the Louisiana Purchase, Congress sought to strangle the budding plantation revolution by cutting off access to slave labor entirely. In 1804, a Republican-controlled Congress placed severe restrictions on slavery in the Louisiana Purchase. The 1804 Territorial Ordinances outlawed both the international and domestic slave trades and placed strict conditions on the expansion of American slavery into Louisiana. The 1804 Ordinances only permitted American citizens, "removing into said Territory for actual settlement, and being, at the time of such removal, bona fide owner of such slave or slaves,' to carry slaves into Louisiana. While Americans could settle in Louisiana with the slaves they already owned, they were prohibited from selling their slaves in or into Louisiana, with violations punishable by immediate freedom for the slave. These intricate regulations balanced an intent to end the plantation revolution in Louisiana with Congress's desire to encourage American settlement as a means of securing Louisiana." The restrictions proved to be a resounding failure. Louisiana planters, farmers, and merchants, along with American officials in Louisiana, all warned that disunion and reunification with France would ensue if Congress insisted on restricting white Louisianans' right to "an unlimited slavery." By the summer of 1804, the situation in Louisiana had grown so desperate that American newspapers reported that "the French at New Orleans" were "discontented, troublesome,' and on the verge of rebellion. The flurry of letters sent from American officials in New Orleans to policymakers in Washtions on the slave trade. Indeed, one American official in New Orleans counseled that repeal of the slavery restrictions "would go farther with them, and better reconcile them to the Government of the United States, than any other privilege." Congress took this advice. The 1804 Ordinances expired after one year, and in 1805 Congress quietly declined to renew the bulk of the restrictions on slavery in Louisiana. And although Congress maintained the ban on the international slave trade, slave traders skirted this restriction by having slave ships touch port at Charleston, thus "domesticating" the international slave trade before the ships moved on to New Orleans. As was the case in Natchez, Congress found itself facing a stark choice, between permitting slavery and gaining the loyalty of the white population, or prohibiting slavery and inviting disunion." Historians have pointed out that the Missouri Controversy might have been avoided if Congress had opted to permit slavery in Louisiana, at the same time banning it in what would become Missouri." But in 1804 the "Missouri Country" constituted a booming, if small slave society, not "virgin territory" whose future could be determined by "founding fathers" in Washington. The French, British, and Native American inhabitants of Missouri had long used slave labor in their mixed-agricultural and fur-trading economy. In the 1790s, Article VI had driven French slaveholders from Illinois into the Missouri Country, increasing the number of slaves in the region. After 1800, a substantial number of Americans seeking generous Spanish land-grants had begun crossing the Mississippi River into Missouri, adding to the number of slaveholders and aspiring slaveholders. The expansion and consolidation of slavery in the Missouri Country was also spurred by the plantation revolutions downriver, as Missouri's new and old slaveholders gladly met the increased demand for foodstuffs and other commodities in those regions. Slaveless farmers who hoped to cash in on the boom added to the clamor for more slave labor. By 1804, Missouri's was a small, but thriving, slave society, with slaves accounting for up to one-third of the population in the main settlements at St. Louis, St. Genevieve, and Cape Girardeau."* As soon as rumors of the Louisiana Purchase reached the Missouri Country, the white inhabitants there expressed concerns that the status of slavery in the territory not be changed under American rule. American agents there immediately sent letters east warning that, "even among the Americans not slaveholders,' the white inhabitants of the Missouri Country were universally "averse" to American rule if it came with restrictions on slavery. Congress ignored these warnings, placing stiff restrictions on slavery and appointing

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CHAPTER 9 · SECONDARY SOURCE S9.42

Our Sister Republics: The United States in an Age of American Revolutions

Caitlin Fitz

WORK	Our Sister Republics: The United States in an Age of American Revolutions
SELECTION	Introduction
SOURCE LOCATOR	Original pages 11-14 · Liveright Publishing Corporation (W. W. Norton), 2016.

Excerpt

In celebrating foreign revolutions, U.S. observers were celebrating themselves, and like Narcissus, they were so riveted they could barely look away. They were blithely unaware that the object of their affection was an image, an illusion, something easily dispelled by a pebble tossed casually in the river; that was why, in 1826, the international (and, as it turned out, largely one-way) love affair so quickly faded into vanishing ripples." That narcissism is precisely what makes the international revolutionary ardor so interesting. When it came to their views about such abstract concepts as inalienable rights, self-evident truths, and equal creation, everyday citizens rarely left much of a paper trail. But when it came to their views about foreign revolutions, common white men (and sometimes women and people of color, too) repeatedly left their mark in toasts, baby names, musical selections, and sartorial flair. Some of these clues can be counted and tracked through space and across time; especially when considered alongside newspaper reports and congressional votes, they can serve as a crude measuring stick not just for popular views about foreign revolutions, but also for popular thinking about race, nationalism, equality, and territorial expansion. Ordinary people's responses to Latin American independence reveal the possibilities as well as the limits of egalitarian thinking in the early United States, and they help to show how revolutionary-era universalism found growing competition from a newer rhetoric of white U.S. exceptionalism. Leading policymakers like James Monroe, John Quincy Adams, and Henry Clay played important roles in this inter-American revolutionary drama, their deeds at once reflecting and shaping the views of ordinary voters. If we are to understand all that Latin American independence has to reveal about the early United States, however, high-stakes diplomacy and high-rolling commerce must be placed alongside less famous (if not always less humble) actors. Actors like Elizabeth and Aylett Buckner, Kentucky farmers who named their son after a Spanish-speaking revolutionary some 2,000 miles away; Emiliano Mundrucu, a mulato revolutionary who fled from South America to the United States and informed the antislavery movement at a crucial moment; and James Rodgers, a headstrong New York adventurer who attacked royalist troops abroad and died at the hands of a Brazilian firing squad. Their collective stories emerge through research in Portuguese, Spanish, French, and English, and from archives throughout the hemisphere, manuscripted memorials to the inter-American horizons that shaped these people's lives. What results is less a history of early U.S. relations with Latin America than it is a U.S. history that uses Latin America to cast new light on the United States. Despite the work of its revolutionary agents, Latin America didn't intentionally and directly transform the United States, and the United States' influence throughout Latin America was smaller than most U.S. patriots— and some Latin Americans—had hoped it would be. As U.S. audiences crowed about rights and revolution, however, Latin America became a mirror that crystallized and clarified what was at stake. For over a decade, most U.S. patriots had looked proudly to Latin America and seen themselves: republicans, revolutionaries, Americans. In 1826, the heat of emergent party politics started to warp that international looking-glass, transforming it into something more like a funhouse mirror that reflected different images back to different people depending on where those people stood and how they carried themselves. As U.S. observers realized that they saw different reflections—as they realized that they had different understandings of revolutions both foreign and domestic—they started to conclude that they were different people with different goals and different values. That realization facilitated their division into parties, much as the French Revolution had polarized the nation into Republicans and Federalists to an even greater degree one generation before. Mirror, mirror on the wall, who is the fairest of them all? As some in the embryonic Democratic coalition saw it, Spanish America was fair by neither of the standard definitions: its revolutionaries were darker-skinned, and their antislavery efforts were certainly not going to bring justice to U.S. slaveholders." Support for the uprisings in Spanish America and Brazil thus turned out to follow much the same bell-curved trajectory as had responses to France several decades before, rising amid a period of heady optimism and then falling amid angry partisan warfare— although the bell curve for Latin America had a longer plateau that inspired more united support, coinciding as it did with a decade that was largely devoid of nationwide partisanship. Still, attitudes toward Latin America diverged as soon as partisan tensions resurfaced. At once a contributor to and a casualty of partisan warfare, support for foreign revolutions fell apart; the center did not hold, for to define revolution was to define the United States itself.

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CHAPTER 9 · SECONDARY SOURCE S9.43

The Monroe Doctrine, 1823-1826

Dexter Perkins

WORK	The Monroe Doctrine, 1823-1826
SELECTION	The Warning to Europe
SOURCE LOCATOR	Original pages 95-96 · Harvard University Press, 1927.

Excerpt

We would not sanction by our presence [wrote Adams], any meeting of European Potentates to dispose of American Republics. We shall, if such meeting should take place... solemnly protest against it, and against all the melancholy and calamitous consequences which may result from it.®

In these words the dispatch to Rush supplements the answer to Tuyll and the language of the message itself.

By December, 1823, therefore, the policy of the United States on the colonial question had, in all respects, in public message and private diplomatic correspondence alike, been accurately defined. Before taking leave, however, of this formative period in the history of the Monroe Doctrine, it may be well briefly to survey an historic controversy hitherto omitted from consideration, that is, the controversy as to its authorship. In the literal and verbal sense, of course, there is no doubt that the Doctrine was the President's. Moreover, it is not to be forgotten that it was on his initiative, very clearly, that it was decided to deal with the South American question in the forthcoming message to Congress. But, grant all this, and there remains the broader question of credit for the ideas which the message contained, for the clear line which it drew between the New World and the Old, for its emphasis on the rival political systems of Europe and America, for its militant republicanism and proscription of monarchy from the New World.® On this side of the matter, there have been many different expressions of opinion. Charles Sumner once wrote that George Canning was "the inventor, promoter and monarchy of the type then existing in most of Continental Europe. He had more than once shown his sympathy with the constitutional movements in the Old World, and had, as has already been seen, wished to condemn their repression. In the background of the discussions of 1823, behind the fear of intervention for the reconquest of the colonies, there lurked another idea, the fear of the establishment of monarchical governments in the New World under European tutelage. As early as

1820 there had been an exposure of a French plan to set up a Bourbon prince in La Plata (for this intrigue, see Villanueva, Bolivar y El General San Martin (Paris, 1912], pp. 89-160, also postea, pp.107, 108), and these facts were known to Adams; in 1821, Torres, the Colombian agent in Philadelphia, had warned of a similar project to be attempted in the case of Mexico (American State Papers, Foreign Relations, iv, 835); and in 1822, the presence of French agents in the New World seemed to suggest that some monarchical intrigue was still being pressed from the other side of the water. (See postea, p. 108.) In his instructions to Rodney, the American minister sent out to La Plata in the spring of 1823, Adams had mentioned the project of Bourbon monarchies, to condemn it, not, of course, on theoretical grounds,— theoretical opposition to monarchy was far from the Adams temper, — but as dangerous to the interests of the United States. (Adams, Writings, vii, 426-432.)

It is entirely probable that the President, who closely supervised the drafting of the more important dispatches, knew of and approved this stand.

It is true that the word "system," in the parlance of 1823, might be used to describe either a form of government or a general principle of international policy. Monroe uses the word in both senses in his writings. But that he meant the first and not the second when he used the word in the message seems clear from the whole phraseology. In one sentence he declares his faith that "our southern brethren" will never adopt the European political system of their own accord. How can such a reference be otherwise construed than as a reference to monarchy? No one would have thought of the principles of the Holy Alliance as likely to be adopted by the new states, nor was there any chance that

they would accept the doctrine of intervention, so dear to Metternich and Alexander. The difference in systems, says the President in another place, "proceeds from that which exists in their respective governments, and to the defense of our own, which has been achieved by the loss of so much blood and treasure and matured by the wisdom of our most enlightened citizens, and under which we have enjoyed unexampled felicity, the whole nation is devoted." How can such language be taken otherwise than as referring to the antagonism of republican and monarchical forms as the basis of distinction between the Old World and the New?, Consider, moreover, the language of Adams's note to Tuyll. In this note, drawn up contemporaneously with the message, and intended, in Adams's language, "'to correspond exactly" with it (Adams, Memoirs, vi, 199), the opposition to monarchical forms is expressed with absolute definiteness. The note certainly came under the eyes of Monroe. It was carefully examined by him. It must have interpreted his own thought with tolerable accuracy. In the light of it, there can be little doubt that the President did intend to ban monarchy, at least European monarchy, from the New World. By the term "political system" he may have meant more than this; but that he meant no less may be considered incontestable.

Chicago Citations

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Footnote citation:

Dexter Perkins, *The Monroe Doctrine, 1823-1826* (Harvard Historical Studies 29. Cambridge, MA: Harvard University Press, 1927), 95-96.

Shortened citation:

Perkins, *The Monroe Doctrine, 1823-1826*, 95-96.

CHAPTER 9 · SECONDARY SOURCE S9.44

Nation Builder: John Quincy Adams and the Grand Strategy of the Republic

Charles N. Edel

WORK	Nation Builder: John Quincy Adams and the Grand Strategy of the Republic
SELECTION	Excerpt from the supplied edition
SOURCE LOCATOR	Original pages 176-177 · Harvard University Press, 2014.

Excerpt

But before Adams could draft this paper, he had an equally important task— restraining what he saw as the president's naïve idealism. Monroe was, for the most part, a pragmatist as president, though he had never completely abandoned his Jeffersonian enthusiasms for republican revolutions. Earlier in his career, Monroe had been both a small and big "R" republican. It was Monroe who had or ga nized Citizen Genêt's tour of the United States in 1793. In 1796, George Washington recalled Monroe from France for becoming too close to the French and their revolution. Throughout his tenure as secretary of state, Monroe had looked for ways to promote South America's revolutions. And as president he was still seeking a way to advance liberty abroad. In June 1823, the president had written to Jefferson of his desire to pursue a more activist foreign policy. "Our relation to it [Eu rope] is pretty much the same, as it was, in the commencement of the French revolution. Can we, in any form, take a bolder attitude in regard to it, in favor of liberty, than we did? Can we afford greater aid to that cause, by assuming any such attitude, than we now do, by the form of our example?"[181]

By November 1823 Monroe sensed that he had found both the form and the opportunity to strike a bolder attitude on liberty's behalf. Disturbed by the Holy Alliance's moves in Spain, Portugal, and Italy, the president worried about their possible moves in South America. Monroe wanted to use his annual message to Congress to warn that republicanism was under attack around the world, and that America must stand ready to defend its interests and its principles. In an initial draft of his text, the president dressed down France, declared Greece in de pen dent from the Ottoman Turks, and recommended sending an American minister to Athens.[182]

The president's draft of his annual message was too much for Adams. Extremely agitated by what he read, the secretary of state argued that Monroe's support for the Greeks "would be a summons to arms— to arms against all Eu rope, and for objects of policy exclusively European— Greece and Spain. It would be new, too, in our policy as it would be surprising." History was on Adams's side, as he argued that from Washington's Farewell Address forward, the United States' policy was consciously to abstain from interfering in Eu ro pe an politics. The message that the president now proposed "would at once buckle on the harness and throw down the gauntlet. It would have the air of open defi ance to all of Europe, and I should not be surprised if the fi rst answer to it from Spain and France, and even Rus sia, should be to break off their diplomatic intercourse with us."[183] Adams saw it as part of his job to dampen such enthusiasm by asking the president to calculate the reality of the power dynamics— to weigh his hopes against an objective assessment of the situation. Adams concluded by reminding the president that the United States was not ready for a war, that it would be morally and po liti cally advantageous to let trouble originate from Eu rope, and that Monroe's legacy would inevitably suffer if he were seen as aggressively leading the United States into a war for which the country was not prepared.

Author's Notes

181. James Monroe to Thomas Jefferson, June 23, 1823, quoted in Dexter Perkins, *The Monroe Doctrine* (1927), 60.

182. No copy of Monroe's draft message is known; Adams's diary entry for November 21, 1823, is the surviving evidence for its contents.

183. John Quincy Adams, Diary 34, November 21, 1823, 164, electronic edition.

Chicago Citations

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Footnote citation:

Charles N. Edel, *Nation Builder: John Quincy Adams and the Grand Strategy of the Republic* (Cambridge, MA: Harvard University Press, 2014), 176-177.

Shortened citation:

Edel, *Nation Builder*, 176-177.

CHAPTER 9 · SECONDARY SOURCE S9.45

The Monroe Doctrine: Empire and Nation in Nineteenth-Century America

Jay Sexton

WORK	The Monroe Doctrine: Empire and Nation in Nineteenth-Century America
SELECTION	The Monroe Doctrine
SOURCE LOCATOR	Original pages 51-54 · Hill and Wang, 2011.

Excerpt

In the Monroe cabinet, the President and Secretary of War John C. Calhoun favored acceptance of Canning's proposal on grounds similar to Jefferson's. John Quincy Adams emerged as the great opponent of this move within the Monroe cabinet. The Secretary of State argued against cooperation with the British in a series of cabinet meetings that took place in November 1823. Yet even Adams appears initially to have entertained the possibility of association with the British. Adams informed a British diplomat in Washington that it was his "deliberate and decided impression that a time will come, and is probably not far distant when Great Britain and the United States—'the Mother and the daughter'—will feel it incumbent upon them to stand forward and to make a broad declaration of their principles in the face of the world."°® Adams soon changed course and argued against the immediate acceptance of Canning's offer. Unlike Monroe and Calhoun (whom Adams thought "moonstruck" by the prospect of a Holy Alliance intervention), the Secretary of State doubted that European intervention was imminent. Even if it was, he was certain it would fail: "I no more believe that the Holy Allies will restore the Spanish dominion upon the American continent than that the Chimborazo will sink beneath the ocean," he asserted.' Given the unlikelihood of a successful European intervention in Spanish America, Adams maintained that there was no need to ally with the British. The Secretary of State emphasized the potential costs of accepting Canning's offer. The wily British statesman declined to extend recognition to the new states of Spanish America (indeed, it was this issue that proved the stumbling block in Canning's initial discussions with Rush). Adams feared that Canning's refusal to commit to Spanish American independence portended a duplicitous reversal in British policy that would leave the United States standing alone against the Holy Alliance. Canning drove a hard bargain with the Americans in another way: his proposal. included a joint pledge prohibiting both states from the future annexation of territories in Spain's crumbling empire. Adams was loath to preclude any future additions to the union, particularly those of strategic importance such as Cuba and Texas. A pledge of nonannexation would be no loss to Canning, he argued, as Spanish Americans would never volunteer to join the British Empire. But Adams thought it likely that the people of Texas or Cuba "may exercise their primitive rights, and solicit a union with us." Finally, Adams argued against Canning's offer on the grounds that a joint declaration would give Britain the lion's share of the credit for protecting Spanish America from the Holy Allies, thus giving the British a leg up in the race for these markets. "It would be more candid, as well as more dignified," Adams concluded, "to avow our principles explicitly... than to come in as a cock-boat in the wake of the British man-of-war."® Adams seized the opportunity to promote an independent Canning's offer and encouraged Monroe to use the forum of the annual message to Congress (conveniently scheduled for December 2) to announce American opposition to further European colonization and intervention in the Western Hemisphere. 'This move would address the related issues of threatened European intervention in Spanish America, Russian claims in the Pacific Northwest, and Canning's offer. It also would proclaim to the world that the American principles of anticolonialism and nonintervention applied to the Western Hemisphere. "The whole of the papers now drawn up," Adams recorded in his diary, "were but various parts of one system under consideration."' The Secretary of State did not dictate policy to the President, but he nonetheless played a central role in the creation of what later became the "Monroe Doctrine." Of the three paragraphs of the Doctrine, Adams solely authored one (the noncolonization paragraph) and deeply influenced the other two (the nonintervention paragraphs).'° The course of action pursued by the Monroe administration advanced American interests and principles at minimal cost.

Chicago Citations

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Shortened citation:

Sexton, *The Monroe Doctrine*, 51-54.

CHAPTER 9 · SECONDARY SOURCE S9.46

John Quincy Adams and the Foundations of American Foreign Policy

Samuel Flagg Bemis

WORK	John Quincy Adams and the Foundations of American Foreign Policy
SELECTION	John Quincy Adams
SOURCE LOCATOR	Original pages 368–369 · Alfred A. Knopf, 1949.

Excerpt

Adams came back to the Non-Colonization Principle again in November 1822 in another conversation with the British Minister, this time on restriction of trade with the British West Indies. “The whole system of modern colonization,” he declared to Stratford Canning, “is an abuse of government and it is time that it should come to an end.”

The Secretary embodied the principle in a draft of instructions (June 1823) for the guidance of Middleton in St. Petersburg: the United States would contest the right of Russia to any territorial establishments on the Continent of North America. This categorical statement worried the President. After discussing the matter in Cabinet, Monroe decided to recognize the Russian claims north of 55° N.L.*° But in an interview with von Tuyll on July 17, 1823 Adams managed to say what the President would not let him put into the instructions to Middleton: “I told him specially that we should contest the right of Russia to any territorial establishment on this continent, and that we should assume distinctly the principle that the American continents are no longer subjects for any new European colonial establishments.”?*

Adams had summoned forth the Non-Colonization Principle out of his own intuition. He expressed it gratuitously to both the British and the Russian Ministers. Once more before Monroe’s famous message of December 2, 1823 he reiterated the idea for the benefit of the British Government. That was when he was drawing up instructions for the guidance of Richard Rush in parallel negotiations by the United States and Great Britain protesting Russian pretensions on the North West Coast. The independence of the South American states and of Mexico, he then stated, had extinguished the exclusive rights of Spain to any part of the Coast, such-as she might have claimed at the time of the Nootka Sound Convention of 1790. “A necessary consequence of this state of things jects of colonization.” 7 Thus all his life John Quincy Adams had been a spokesman of Abstention. And all students of the question have agreed that he was sole author of Non-Colonization. But what of the third dictum — Hands Off the New World, America for the Americans? To understand the provenance of this dogma and Adams’s relation to it, we must return again to Europe, to the predicaments of British and of American diplomacy in the face of the Holy Alliance.

British policy after the overthrow of Napoleon embraced supremacy on the seas behind a balance of power concerted in the Quadruple Alliance (Austria, Great Britain, Prussia, Russia) to maintain the peace of Europe against another irruption of revolutionary France. Britain’s continental allies under the leadership of Alexander I would fain have used the Quadruple Alliance for another purpose: to repress revolution wherever it might raise its head against a legitimist divine-right ruler. To that end the Czar had proclaimed in 1815, under lofty Christian principles, the Holy Alliance. It was signed originally by himself, the King of Prussia, the Emperor of Austria, and all the legitimist monarchs of Europe except the Sultan of Turkey, the Pope, and the Prince Regent of Great Britain. The British Regent could not condemn revolution too directly because his dynasty owed its throne to the Revolution of 1688. Therefore the Regent had to content himself with a personal letter to the Czar applauding the principles of the Holy Alliance without binding his own Government, which was responsible only to Parliament. For the first few years following the peace settlement of 1815 — that is, until after the Conference of Aix-la~-Chapelle — Lord Castlereagh had been able to hold the Quadruple Alliance to its strict purpose as interpreted by his Government; but in 1820 the

continental allies got out of British control. At the Conference of Troppau-Laibach (1820-1) the Holy Allies, despite the dissent of Great Britain, gave a mandate to Austria to put down republican revolution in Naples and in Piedmont lest it spread to their own realms. At Verona in 1822 they again overrode British opposition and approved French military intervention in Spain to tear up the new constitution there and restore the absolute authority of Ferdinand VII. They even announced that if Great Britain, ally of Spain since the first Peninsular War, should interfere to assist the Spanish constitutionalists, they would come to the aid of France.

Chicago Citations

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Shortened citation:

Bemis, *John Quincy Adams and the Foundations of American Foreign Policy*, 368–369.

CHAPTER 9 · SECONDARY SOURCE S9.47

The Making of the Monroe Doctrine

Ernest R. May

WORK	The Making of the Monroe Doctrine
SELECTION	Domestic Politics
SOURCE LOCATOR	Original pages 132-133 · Belknap Press of Harvard University Press, 1975.

Excerpt

There remains one more element of background to canvass. The men who constructed the Monroe Doctrine were all deeply interested in the approaching presidential election. Indeed, it is not too much to say that this subject preoccupied most of them. Mrs. Adams's diary and letters testify that this was the case for her husband, and his own diary suggests the same. Calhoun's nonofficial correspondence for the period dealt with little else. The same is true of Crawford and Clay. We should therefore examine the stakes for which these men were competing and the strategies which they had adopted, for it seems likely that expectations and fears related to the election could well have influenced their reasoning about the pressing issues of foreign policy. Men who wanted to become President had to think first of how they might be nominated; second, of how they might win in the electoral college; and third, in case no one had a majority, of how to win in the House of Representatives. For some years. Republican senators and representatives had met prior to elections to select the party's candidates for President and vice president. Owing to the fragmentation and decline of the Federalist opposition, nomination by this Republican congressional caucus had become equivalent to election. The practice had drawn increasing criticism. Some of it was on the ground that the caucus blurred the line between legislative and executive power; some on the ground that senators and representatives had been elected to represent localities, not to judge which President would be best for the nation; some on the broader ground that the caucus needlessly narrowed the choice for the people. As 1824 approached, many newspaper editors outside of Washington were contending that no caucus should convene or that, if it did, the people should ignore it. On the other hand, many Republican congressmen and editors said a caucus was more needed than ever. Otherwise, they argued, four or five candidates would run. None would get a majority. The House of Representatives would choose among the top three. Federalists in the House would then have some say in who would win. As of late 1823, no one knew whether a congressional caucus would be held in 1824. Even if there were a caucus, it might be so poorly attended as to seem unrepresentative, or it might be so divided as to seem inconclusive. Even if well attended and more or less united, it might still be ignored by the people. Each candidate had to think of these contingencies and decide which he would prefer and what he should do.

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CHAPTER 9 · SECONDARY SOURCE S9.48

The Monroe Doctrine: Empire and Nation in Nineteenth-Century America

Jay Sexton

WORK	The Monroe Doctrine: Empire and Nation in Nineteenth-Century America
SELECTION	Introduction
SOURCE LOCATOR	Original pages 4-5 · Hill and Wang, 2011.

Excerpt

Though it was part of the administration's diplomatic strategy, Monroe addressed the message not to foreign governments, but to "Fellow-Citizens of the Senate and House of Representatives." The message articulated a national policy aimed at strengthening the union of states in North America; yet the members of the cabinet who drafted it—principally John Quincy Adams of Massachusetts, South Carolinian John C. Calhoun, and Virginians William Wirt and Monroe—had the interests of their own states, sections, and political positions in mind. Most important, the Monroe cabinet stated what European powers could not do, but stopped short of announcing any specific policy for the United States. The 1823 message placed no constraints or limitations on American statesmen. The open-ended nature of the seemingly direct 1823 message foreshadowed the elasticity and political utility of what became known in the mid-nineteenth century as the Monroe Doctrine. Generations of Americans would proclaim that Monroe's message embodied fundamental principles of American statecraft. But they would disagree with one another over its meaning, purpose, and application. There would be as many Monroe Doctrines as foreign policy perspectives. When even the flexible language of the 1823 message proved restrictive, Americans would attach "corollaries" to it to extend legitimacy to new policies. The creation of the Monroe Doctrine was not a single event in 1823, but rather a contested process that lasted throughout the nineteenth century. The construction of the Monroe Doctrine was like a never-ending building project: upon the foundations of the 1823 message, Americans built larger, more elaborate structures, only to have political opponents or subsequent generations renovate or even demolish and rebuild what lay before them. The Monroe Doctrine evolved in relation to the shifting dynamics and internal politics of the union. It also was the product of the larger geopolitical context of great power expansion, rivalry, and contraction from which the American nation and empire emerged. There was nothing inevitable or preordained about the rise of the United States, even if the Monroe Doctrine boldly called for a new world order premised upon American principles. 'Though the North American republic was blessed with many advantages, it was vulnerable from within and without. Nor did nineteenth-century Americans agree on the form and purposes that their nation and empire should assume. This book uses the Monroe Doctrine to examine how the state that emerged as the preeminent global power of the twentieth century was the product of the protracted, contentious, and interconnected processes of anticolonial liberation, internal national consolidation, and imperial expansion. "Impertal Anticolonialism" Unique in the nineteenth-century world, the United States transformed itself from a group of colonies to a global empire. The transition from colony to empire was not linear. American statesmen did not first focus on consolidating their independence from Britain before then setting about building their empire. They did not decide in 1823 that their colonial past had been put to rest and their imperial future now lay before them. Nor were anticolonialism and imperialism irreconcilable opposites in the context of nineteenth-century America. The key to understanding the nineteenth-century Monroe Doctrine is the simultaneity and interdependence of anticolonialism and imperialism. 'The historian William Appleman Williams perhaps summed it up best when he labeled American statecraft "imperial anticolonialism."! The fusion of imperialism and anticolonialism shaped both the domestic and foreign policies of the United States in the nineteenth century.

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Shortened citation:

Sexton, *The Monroe Doctrine*, 4-5.

CHAPTER 9 · SECONDARY SOURCE S9.49

John Quincy Adams and American Global Empire

William Earl Weeks

WORK	John Quincy Adams and American Global Empire
SELECTION	Adams and American Global Empire
SOURCE LOCATOR	Original pages 180-181 · University Press of Kentucky, 1992.

Excerpt

The Monroe Doctrine can be viewed as the culmination of six years (and in a larger sense, nearly fifty years) of astute American diplomacy. Adams's far-sighted, pragmatic approach to Anglo-American relations, South American affairs, continental and commercial expansionism, and the place of the United States in the world made possible the bold articulation in December 1823 of what was in effect a statement of hemispheric supremacy. It must also be said that the Transcontinental Treaty is of greater historical significance than the far more thoroughly investigated circumstances immediately surrounding Monroe's celebrated 1823 message. The success of Monroe's foreign policy (and hence the Monroe Doctrine] hinged on the treaty. Insofar as the treaty finalized the boundaries of the Louisiana Purchase, it should be bracketed with that more heralded piece of American diplomacy as the diplomatic cornerstones of the Monroe Doctrine. Questions of authorship aside, it is undeniable that without Adams's adroit statesmanship during the preceding years, Monroe would have been in no position to pronounce his famous doctrine.

This is not to diminish the scope of Monroe's foreign policy achievements. As the nation's chief executive, Monroe deserves credit for making the Jeffersonian foreign policy a success in spite of the near-catastrophes of the Embargo and the War of 1812. In this respect, Monroe's foreign policy was more successful than that of either Jefferson or Madison. It might rightfully be claimed that the shrewdness of Adams made possible much of Monroe's success; nonetheless, Monroe deserves credit for being wise enough to know sound advice when he heard it—one of the most valuable traits for a president to have.

Recently, scholars of early American diplomacy have noted a continuity of ideas and aims in the nation's foreign policy from 1776 to the present.!" The record of Adams and Monroe's foreign policy (and more generally the Jeffersonian foreign policy as a whole) lends support to this observation. During Monroe's presidency a number of critical precedents regarding the conduct and control of American foreign policy were established or reinforced. Most important, the executive branch of the government emerged from the Monroe presidency with substantially greater power than was envisioned by the framers of the Constitution. The expansion of presidential power represented by Jefferson's Louisiana Purchase was augmented considerably during Monroe's two terms. In several key respects it can be said that Monroe's administration marked the birth of the "Imperial Presidency."

Specifically, Congress's unsuccessful challenge to the Amelia Island occupation, failed push for South American recognition, and abortive attempt to censure Jackson's invasion of Florida demonstrated that the legislative branch would allow the executive wide latitude to conduct foreign policy. Congressional votes on these issues indicated unambiguously a reluctance to interfere with the presidential conduct of foreign affairs even if that conduct bordered on the unconstitutional. Adams, an outspoken champion of a strong executive branch, knew that an imperial foreign policy demanded a president with far more power than was prescribed by the Founding Fathers. His success in expanding the power of the executive branch over foreign affairs is one his most enduring legacies.

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CHAPTER 9 · SECONDARY SOURCE S9.50

The Election of Andrew Jackson

Robert V. Remini

WORK	The Election of Andrew Jackson
SELECTION	The Election of Andrew Jackson
SOURCE LOCATOR	Original pages 192-193 · Philadelphia: J. B. Lippincott, 1963.

Excerpt

Although the election of 1828 did not trigger the "Rise of the Common Man," many glib-tongued Jacksonians during the campaign spoke convincingly of the contest as a struggle for "free principles and unbiased sufferage," between the few and the many, the rich and the poor. "The Aristocracy and the Democracy of the country," intoned the Albany Regency, "are arrayed against each other." This was superheated partisan rhetoric, almost totally devoid of truth, yet invariably appealing and persuasive. Quite a few Americans regarded Adams as an Eastern aristocrat, completely indifferent to their needs or hopes. Since the issue guaranteed a strong emotional response from the unsophisticated, the state committees shamelessly exploited it. They learned in 1828 that presidential elections are most effectively and successfully waged as democratic crusades. By linking organization and the ballyhoo of entertainment behind an appealing candidate who supposedly represented the common man, politicians were able to provide sufficient stimulation to stir the people from their lethargy to a fleeting interest in national politics.

Issues can also fire the electorate with political excitement whenever they are important and whenever they immediately touch the lives of the people. In future campaigns depressions, wars, and other national calamities would bring a truly vast upsurge of voter participation at the polls. Since so many of the issues raised in 1828 were deliberately fuzzed, the success of the Democrats and National Republicans in enticing over a million white males to exercise their suffrage was in itself an extraordinary achievement of party organization.

The two most prominent issues discussed in conversations and in the newspapers were Jackson's inadequate qualifications and Adams' alleged bargain. It does seem probable, however, that these arguments had their strongest appeal among voters previously committed to one or the other candidate. New Englanders were especially resentful of the "bucher's" pretensions, while Westerners found it difficult to disbelieve the bargain story.

Perhaps the most interesting issue in the campaign was the one least understood or explained. Democrats everywhere assured the people that Jackson's election meant the inauguration of governmental reform. Precisely what this meant in terms of legislative or executive action, politicians were not obliged to state; apparently, it was self-explanatory to anyone convinced that Adams' victory in 1825 was engineered by corrupt men of anti-republican leanings. Those "conservatives" who opposed a strong central government or the "liberal" notions of the National Republicans naturally gravitated to Jackson. So, too, those who objected to any restraints applied by the government or such agents as the Second National Bank upon their speculative operations or their schemes for cheap money. (The Anti-Masons may be an exception to this generalization.) The tariff might have rescued the Administration in some Northern states, but Wright, Van Buren, and company effectively spiked that possibility. The result was an increase of votes for Jackson in the Northwest and Middle Atlantic areas without an equivalent loss in the South. For the first few months after the passage of the Tariff of 1828, some Southern hotheads talked of dismembering the Union but soon cooled off in the certain knowledge that Jackson as President would redeem his pledge and repeal the abomination.

Slavery, as such, was not an important national issue in this election, at least not openly. When it rose to the surface it was more plainly visible in the voting performance of particular religious and abolitionist groups in the North than among planters in the South. As a hidden issue it was not sufficiently influential to alter the voting majorities in either section of the country. Said Duff Green, rather optimistically: "The anti slave party in the North is dying away."

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Remini, *The Election of Andrew Jackson*, 192-193.

CHAPTER 9 · SECONDARY SOURCE S9.51

The One-Party Presidential Contest: Adams, Jackson, and 1824's Five-Horse Race

Donald J. Ratcliffe

WORK	The One-Party Presidential Contest: Adams, Jackson, and 1824's Five-Horse Race
SELECTION	The Corrupt Bargain
SOURCE LOCATOR	Original pages 39-40 · University Press of Kansas, 2015.

Excerpt

Moreover, the argument that congressmen were obliged to vote for the man who won most votes in the Electoral College began to seem silly: otherwise, why did the Constitution insist on an absolute majority and refer a hung election to the House? It was not as though a lead in the Electoral College necessarily reflected majority popular opinion. The three-fifths clause biased the Electoral College toward Southern candidates; without it, Adams would have led Jackson by eighty-three votes to seventy-seven. True, on the face of things, Jackson had a plurality of the popular vote in those states that allowed their voters to choose the electors. However, in North Carolina Jackson owed victory to the open support of many Adams men; had they held aloof and Crawford won the state, Adams and Jackson would have tied in the Electoral College with eighty-four votes each. Moreover, in Maryland and Illinois the accidents of districting had given Jackson the lion's share of the electoral votes even though Adams had won a popular majority. "These facts," according to Congressman Sloane, "were known to congress at the time of making the choice," and he was convinced that Jackson "was not the choice of a majority of the American people."[12]

For Jackson may have won a popular plurality in those states where the electorate choose its Electoral College, but what of the six states where the state legislature had chosen the electors and popular presidential preferences had not been directly measured? In Georgia, the preceding state election provided a clear and measurable indication of Crawford's advantage; Vermont and South Carolina were emphatically one-sided, and the size of the popular vote there could be calculated from contemporaneous elections. In Delaware and Louisiana the popular preference could only be guessed, though these lightly populated states could not change any nationwide calculation. Jackson certainly had at least plurality support across all four Southern states taken together, while Vermont belonged to Adams. The sixth state was New York where, in the state elections in November, 193,000 votes had been cast—enough to swamp the entire national popular vote of the leading presidential candidates. Had the proposed electoral bill passed back in March, New York's presidential election would have been held at the same time as the state election, and the indications were that Adams would have won 40 percent of the 193,000, Crawford 34 percent, Henry Clay 26 percent, and Jackson none. If that is correct, then across the nation, Adams in effect had 34,000 more popular votes than Jackson. Such precise calculations may not have been made in early 1825, but politicians knew that in the most populous part of the country, Adams had tapped a broad current of popular feeling as powerful as that which buoyed Jackson.[13]

However, both popular currents were less than nationwide. As one U.S. senator observed, "I cannot learn that the delegations from the States south of the Chesapeake will support Mr. Adams, nor those from east of the Hudson, the General. In this aspect of affairs the friends of Mr. Crawford do not abandon the field." On the face of things, however, Crawford's chances were slim. His health was still an issue: he had begun attending Cabinet meetings again in November, but those who saw him thought him still handicapped. According to one supporter in December, "His articulation will even now operate against him, for... he is not the commanding man that he once was in conversation.... His tongue is so much affected that he lisps and with some difficulty expresses himself." Moreover, he had been fortunate to be returned third in the Electoral College, narrowly ahead of Clay. Whereas both Jackson and Adams soon thought they had six or seven states already lined up, Crawford could boast only three or four.[14]

Author's Notes

12. John Sloane, 'Address to the People,' 7, 11; Donald J. Ratcliffe, 'Popular Preferences,' 66-67.

13. Donald J. Ratcliffe, 'Popular Preferences,' 67-74.

14. Ethan Allen Brown to John Johnston, January 2, 1825, John Johnston Papers; Romulus M. Saunders to Bartlett Yancey, December 10, 1824, in 'Letters of Romulus M. Saunders to Bartlett Yancy,' 447.

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Ratcliffe, *The One-Party Presidential Contest*, 39-40.

CHAPTER 9 · SECONDARY SOURCE S9.52

The Age of Jackson

Arthur M. Schlesinger Jr.

WORK	The Age of Jackson
SELECTION	BEGINNINGS OF THE BANK WAR
SOURCE LOCATOR	Original pages 77–78 · Little, Brown, 1945.

Excerpt

The ordinary follower of Jackson in the West also regarded the Bank with strong latent antagonism, but for very different reasons.

Its policy in 1819 of recalling specie and checking the note issue of state banks had gained it few friends in any class, and, in Kentucky especially, the Relief War kept resentments alive. But this anti-Bank feeling owed little to reasoned distrust of paper money or to a Jeffersonian desire for specie. As a debtor section the West naturally preferred cheap money; and Kentucky, for example, which most vociferously opposed the United States Bank, also resorted most ardently to wildcat banking of its own. The crux of the Kentucky fight against the Bank was not the paper system, but outside control: the Bank's sin lay not in circulating paper money itself, but in restraining its circulation by Kentucky banks. Almost nowhere, apart from doctrinaires like Jackson and Benton, did Westerners object to state banks under local control.

Indeed, during the eighteen-twenties, even the Philadelphia Bank to a considerable degree overcame the Western prejudices against it.® In Tennessee, for example, until 1829 "both [Governor William] Carroll and the legislature favored federal as well as state banks, nor does anything in the history of the state indicate that there was any general feeling against such institutions before Jackson became President."^ Caleb Atwater, a lusty Jackson man from Ohio and something of a professional Westerner, expressed a widespread feeling when he wrote in 1831, "Refuse to re-charter the bank, and Pittsburgh, Cincinnati,

Louisville, St. Louis, Nashville, and New Orleans, will be crushed at one blow." Even Frank Blair's first large-scale blast against the Bank in the Argus of Western America after Jackson's election did not come until December 23, 1829, many months after Eastern groups had begun to agitate the question. This editorial — actually prefaced by an anti-Bank quote from a Van Buren paper in New York — appealed to the Kentucky fear of Eastern control; and all through 1830 the Argus continued to focus on the power and privileges of the Bank and the consequent peril to the Commonwealth Bank of Kentucky, never on the general implications of the paper system.^** Some writers have talked of frontier life as if it bred traits of "individualism" and equality which made Westerners mystically opposed to banks. Actually, like all other groups in the population. Westerners favored banks when they thought they could profit by them and fought them when they thought others were profiting at their expense. The Western enthusiasm for an assault on the Bank came, not from an intuitive democratic Weltschmerz born in the American forest, nor from a Jeffersonian dislike of banks, but from a farmer-debtor desire to throw off restraints on the local issue of paper money.

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CHAPTER 9 · SECONDARY SOURCE S9.53

The Rise of American Democracy: Jefferson to Lincoln

Sean Wilentz

WORK	The Rise of American Democracy: Jefferson to Lincoln
SELECTION	JEFFERSON'S TW O PRESIDENCIES
SOURCE LOCATOR	Original pages 117–118 · W. W. Norton, 2005.

Excerpt

One set of pressures for democratic reform came from the organization of new territorial and state governments west of the Alleghenies. As fresh settlers swelled the Old Northwest population, constitutional and political organization became an issue of primary importance. Settlers in the northern territories objected primarily to the fifty-acre freehold qualification for voting in the west ern territories, a restriction inherited from the Northwest Ordinance of 1787. Newly established western newspapers, North and South, railed against all ves tiges of aristocracy, quoting from the work of various British and American demo cratic reformers. In Ohio, radical Republican democrats defended the rights of "laboring men" and farmers, and demanded a constitution "that will set the nat ural rights of the meanest African and the most abject beggar upon an equal foot ing with those citizens of the greatest wealth and equipage." Other democrats were less egalitarian, notably on racial issues, but still insisted that the landhold ing upper class—"a kind of Noblesse," one Jeffersonian called it—should relin quish any claims to formal political supremacy. Although they did not win all they wanted, the democrats created a new state government, and after that a Republican-dominated party system, far more egalitarian than their Federalist adversaries had desired.[46]

Practical considerations also advanced western democracy. Above all, the legal complications of surveying western land and granting freehold titles often were too cumbersome to accommodate any propertied voting requirement. In Kentucky, freehold suffrage, established in 1776 while the area was still part of Virginia, was useless given the state's Byzantine land laws and constant litiga tion over land titles. Hence, the state's relatively conservative state constitution of 1792 conceded universal free manhood suffrage, with no property or taxpaying requirement. In Ohio, delays in granting freehold land titles so restricted the territorial electorate that in 1798, even before statehood, the federal govern ment enfranchised owners of town lots that were worth as much as fifty-acre freeholds. By 1815, Kentucky was the only western state that matched Ver mont's complete elimination of property requirements for voting, but Ohio's constitution of 1803 established virtual adult male suffrage by imposing a mini mal taxpaying requirement (while also restricting the vote to whites, as Ken tucky had done in its revised constitution of 1799). Tennessee sustained a freehold requirement that would last until 1834, but provided as an alternative a trivial six-month residency requirement that was tantamount to granting adult manhood suffrage.[47]

Kentucky, with its wide-open suffrage for white men, was the site of the most dramatic western reform clash of the Jeffersonian years. Picking up where they had left off after the disappointing constitutional struggle of 1799, Kentucky's country democrats, still strongest in the state's rapidly growing yeoman Green River district, turned back to legislative matters, and to a radical version of Jeffersonian-style judicial reform. Led by a resourceful political newcomer full of home-spun eloquence, the twenty-two-year-old lawyer Felix Grundy, the reform ers undertook replacing Kentucky's centralized and (to remote settlers) inaccessi ble court system with circuit courts that would meet three times a year in each county for six-day terms. Demanding an "equal and impartial distribution of advantages and privileges," Grundy and his allies lambasted their opponents as an alliance of parasitic lawyers, lazy judges, and greedy land speculators who feared having local juries decide on their land titles. More moderate Republi cans, including Henry Clay, replied that the proposed reforms would destroy the uniform and independent judiciary that was vital to continued economic growth. But Grundy's forces won a compromise reform in 1802 that enlarged the existing court system.[48]

East of the Alleghenies, southern reformers won a few triumphs. Maryland reformers, supported by Baltimore's city democrats, secured an adult male suf frage law and, in time, additional concessions including popular election of the governor and the elimination of property and religious tests for public officehold ers. A revision of South Carolina's constitution in 1808 partially rectified the state's gross malapportionment by giving the state's up-country counties a major ity of the seats in the lower house of the legislature. A year later, the city democ racy of Charleston joined with backcountry planters (including a young Yale graduate named John C. Calhoun) to secure the franchise for all white male adults who had resided in the state for two years. The Carolina up-country, where politics had been comparatively open and competitive even before the revisions, greatly increased its power in the legislature, with the promise of it increasing even further with future reapportionment now scheduled every ten years. But the reforms also left the state senate securely in the hands of the lowcountry grandees and did nothing to alter the state's high property requirements for officeholding. The lower-house reapportionment wound up benefiting a new class of up-country cotton planters more than it did the pineywoods yeomanry. The state's suffrage debate turned on the claim that enfranchising all adult white men would further entrench popular loyalty to the institution of slavery. In all, democratization in South Carolina ironically went hand in hand with consoli dating the power of the state's expanding slaveholder elite.[49]

Author's Notes

46. Scioto Gazette, July 17, 1802; Western Spy, Aug. 21, 1802; Jared Mansfield to William Lyon Jr., Feb. 20, 1804, quoted in Donald J. Ratcliffe, Party Spirit in a Frontier Republic: Democratic Politics in Ohio, 1793-1821 (Columbus, OH, 1998), 70, 107. Ratcliffc's deeply researched study corrects earlier historians' misimpressions of minimal partisanship in early Ohio politics, and thoroughly overturns what Ratcliffe calls "the myth of gentry control." Other new states in the Old Northwest could use similar reexamination. In Indi ana, for example, one group of relocated southerners wrote to the territorial governor William Henry Harrison that freehold voting requirements favored the wealthy and were "subversive of the liberties of the Citizens and tending to throw' too great a weight in the Scale of wealth." "Petition of the Vincennes Convention, December 28, 1802," Indiana Historical Society, Collections, 7 (1922): 62-67 (quotation on 66). Indianans also secured democratic reforms of voting procedures, including establishing the township rather than the county as the polling unit statewide. See J. D. Barnhart, "The Democratization of Indiana Territory," Indiana Magazine o f History, 43 (1947): 1-21. On party organization in Ohio, see also Noble E. Cunningham, The Jeffersonian Republicans in Power: Party Oper ations, 1801-1809 (Chapel Hill, 1963), 196-200.

47. Thorpe, 3: 1265, 1278; 5: 2901-13; 6: 3414-25.

48. The Palladium [Frankfort, KY], Dec. 11, 1801. On the Kentucky struggles, see John Howard Parks, Felix Grundy: Champion of Democracy (Baton Rouge, 1940), 7-18; Ellis, Jeffersonian Crisis, 139-56; Steven Aron, How the West Was Lost: The Transformation o f Kentucky from Daniel Boone to Henry Clay (Baltimore, 1996), 156-9.

49. The Hornet [Frederick, MD], 1 (1802) no. 47; J. R. Pole, "Suffrage and Representation in Maryland from 1776 to 1810: A Statistical Note and Some Reflections," in Joel H. Silbey and Samuel T. McSeveney, eds., Voters, Parties, and Elections: Quantitative Essays in the History of American Popular Voting Behavior (Lexington, MA, 1972), 61-71; Charles G. Steffen, The Mechanics o f Baltimore: Workers and Politics in the Age o f Revolution, 1763-1812 (Urbana, IL, 1984), 121; L. Mark Renzulli Jr., Maryland: The Federalist Years (Cranbury, NJ, 1972), 211-27; Rachel N. Klein, Unification ofa Slave State: The Rise of the Planter Class in the South Carolina Backcountry, 1760-1808 (Chapel Hill, 1990), 262-8; Lacy K. Ford Jr., Origins of Southern Radicalism: The South Carolina Upcountry, 1800-1860 (New York, 1988), esp. 99-113. On the influence of the writings of Paine and INDEX • 1021 in Middle Atlantic states, 74 moderate, 100, 106, 116, 117, 118, 120-21,122,123,143,14$, 177, 181, 188, 194, 200,211 national bank and, 181 nationalist, 142, 148, 159, 177, 181, 182,205,217, 228,252,259, 287 New England, 91, 133 New School, 211, 212, 242, 245, 286, 304 northeastern, 164 northern, 220, 234, 236, 261, 269, 844 Old School, 212-13, 245, 248, 251, 282, 284 as opposition, 41,49-53, 54, 82, 86, 125, 178 political elite of, 50 pro-banking, 211 pro-Clinton, 159 pro-development, 181 radical, 100, 117, 120-21, 139, 188, 194,211 restrictionist, 227, 235 rise to power of, 138 schisms in, 105 slavery as divisive to, 178, 182 slavery opposed by, 218, 220, 221, 237, 292; see also restrictionists slavery supported by, 218, 219, 225, 228-29, 230, 261 as sole party, 182 southern, 73-74, 203, 205, 236, 261 on state rights, 80 on suffrage, 186 ticket for, 87 top-down nature of, 139 Van Buren, 190, 191 Virginia, 114, 157, 158, 220, 240 voting reform and, 82-83 War Hawk, 144, 163, 176 War of 1812 supported by, 155-56, 158-59 western, 203, 205 see also Democratic-Republican societies Republicans, National, see National Republicans Republicans, Old, 100, 144, 148, 153, 154, 155, 176, 181-82, 201, 217, 227, 230,233,241,261, 295,297, 328, 343,458, 461, 791,834 Republicans, Republican Party, 694, 695, 722-23, 738-39, 744, 751,752,773, 779-81,784, 786, 792, 793,795,927, 933, 942, 943, 949 as anti-slavery, 685, 745, 746, 747, 768, 787, 932 attack on Sumner and rise of, 931 conservative, 696, 944 on Dred Scott decision, 707-8, 711, 713,715 in election of 1856, 695-97, 699-706, 756 in election of 1858, 744 in election of 1860, 744, 758-69, 770 founding of new, 679, 915, 925 Fremont and, 736 immigrant hostility toward, 724 Impending Crisis distributed by, 756 in Kansas, 719 Lincoln as, 225, 700, 735, 790, 794 moderate, 743 nativism among, 703, 705, 722 northern, 689 protectionist, 723 radical, 741, 752, 763,780, 795 South imagined by, 726 Wall Street, 784 Saul, May 12, 1815, in CAJ, 2, 207-8; Jackson to William B. Lewis, July 16, 1820, in Bul letin o f the New York Public Library, 4 (1900): 189; Jackson to

John C. Calhoun, Sept. 15, 1820, in CAJ, 3: 32-33; Jackson to John Coffee, Aug. 26, 1821, quoted in Remini, Course o f American Freedom, 46; Jackson to John Donelson, Sept. 3, 1821, in CAJ, 3: 117. On the suspicions about the BUS branches in the 1828 election, see Robert V. Remini, Andrew Jackson and the Bank War (New York, 1967), 50-51. On the continuing claims that the Kentucky BUS branches were providing funds to Jackson's political opponents, see, e.g., Francis P. Blair to Andrew Jackson, Aug. 17, 1830, in CAJ, 4: 174.

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CHAPTER 9 · SECONDARY SOURCE S9.54

The Birth of Modern Politics: Andrew Jackson, John Quincy Adams, and the Election of 1828

Lynn Hudson Parsons

WORK	The Birth of Modern Politics: Andrew Jackson, John Quincy Adams, and the Election of 1828
SELECTION	The Birth of Modern Politics
SOURCE LOCATOR	Original pages 126-127 · Oxford University Press, 2009.

Excerpt

In 1826 the Albany Regency held on to control of the New York state legislature, which meant Van Buren's reelection to the U.S. Senate was assured, With his seat no longer in doubt, he was ready to make his move. In December he sat down with Vice President Calhoun and offered not only his personal support of the Jackson effort but that of the Radicals who had once supported Crawford. This meant, in Van Buren's count, most of New York's electoral votes (New York had recently changed its means of selection from the legislature to a popularly elected district system), as well as Crawford's old strength in Virginia and Georgia. He promised to visit Richmond and bring Ritchie and the Enquirer into line, followed by a tour of the South and a meeting with Crawford himself. Adding the electoral votes of New York, Georgia, and Virginia to those of the Jacksonians in the rest of the South and most of the West gave the general more than enough electoral votes in 1828. Calhoun agreed. The two shook hands and, as Van Buren later recalled, "united heart and hand" to support Andrew Jackson and defeat John Quincy Adams."

As promised, Van Buren composed a lengthy letter to Ritchie in Virginia, laying out the reasons for Radical support of a Jackson candidacy, sharing it with Calhoun and others before sending it off. Van Buren repeated his conviction that only through an organized political party could true republicanism be preserved. Continuation of an Adams presidency, with its commitment to nonpartisanship, would erode the orthodox republican ideology that had once bound Ritchie, Crawford, and himself in a common cause. Jackson might win the election solely on the basis of his great personal popularity, but a victory without reference to any set of political principles might be no better than another four years of Adams. On the other hand, the New Yorker continued, a Jackson victory obtained "as the result of a combined and concerted effort of a political party, holding in the main to certain tenets & opposed to certain prevailing principles, might be another and far different thing.""

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Parsons, *The Birth of Modern Politics*, 126-127.

CHAPTER 9 · SECONDARY SOURCE S9.55

Martin Van Buren and the Making of the Democratic Party

Robert V. Remini

WORK	Martin Van Buren and the Making of the Democratic Party
SELECTION	The Making of the Democratic Party
SOURCE LOCATOR	Original pages 140-141 · Columbia University Press, 1959.

Excerpt

Junta in Washington, of which Mr. Van Buren's happy genius is the ascendant influence.... " He was its spokesman, "the head and representative, if he be not both its parent and guardian...." His projects and "schemes for executing them" were notorious, and it was known that he planned to introduce into the Senate of the United States "his system of party discipline, and to procure the rejection of nominations, not upon the question of honesty or fitness for trust, but upon the test of persons' having voted one way or another at a preceding election." The object of his recent remarks, continued the editors, was plain to all. He intended "to control the press here by means of the printing of the Senate, and elsewhere by other means.... " He was a "Master Spirit" by whose agency "machinery has been established to substitute the regular operation of the Government, and to control the popular election by means of organized clubs in the States, and organized presses every where."[42]

The editors closed in on their quarry by broadcasting to the nation the fact that Van Buren was engaged in making the Democratic party. It is "lamentable," they said, that such excellent senators as Dickerson, Macon, Smith, Benton, and Chandlers, "not to speak of others," have joined Van Buren "under the standard of a new cabalistic party organization...." 43 In 1824 the Little Magician acted "with firmness and consistency.... But when he comes forward with the Shibboleth of a new party in his mouth... we must be excused if we treat him as he has treated us, downrightly.... "[44]

Gales and Seaton were not the only outsiders who knew of Van Buren's activities. The Virginia Constitutional Whig reported that the "combinations for electing Gen. Jackson are nearly complete. Combinations—and among whom? The People? No—but the Members of Congress." A month later the editor declared that the "combinations" were of Van Buren's doing.[48]

Unquestionably the Little Magician was engaged in every plan he had been accused of, except one. He was not plotting to subvert the democratic institutions of the country. Rather he believed that the only way to perpetrate a democratic American government—indeed the liberty of the American peoplewas through a strictly regulated party system. If Jeffersonian idealism were to triumph again, Republicans needed basic training in organization. By ranging them under "the standard" of a revitalized party, their liberties would be safe from attack.

The Albany Argus, in Van Buren's name, replied to the tirades of Gales and Seaton and was seconded by the Richmond Enquirer. The "Master Spirit" had just passed through Virginia when Ritchie unconditionally went over to Jackson. Henceforth the Argus and Enquirer exchanged leading articles and the editors began corresponding with one another.[49] The National Intelligencer, its eyes peeled for every shift in the political wind, observed this "congeniality of feeling" between the two newspapers and commented that there no doubt existed some hidden "identity of purpose." Croswell cheerfully assented to this last remark but denied that it was secretive: "Professing a common political faith—members of the same great national party—and mutually seeking to promote its welfare, such 'an identity of purpose' was not only natural, but we are free to say for ourselves, desirable."[47]

The planters and plain Republicans, it seemed, were getting along quite well.

Publicly, Van Buren paid no attention to the attack,[48] but Southerners who were fascinated by his charming manner as he passed among them were only too pleased to echo the Argus and Enquirer. Gales and Seaton "are very angry, too, at Mr. Van Buren," noted the Columbia Telescope, "but as this gentleman is not unlikely to succeed General Jackson if he keeps steadily to his present plan of public conduct, they will be glad by and by to kiss and be friends."[49] At a dinner given to the Hero of New Orleans by the citizens of Gallatin, Sumner County, Tennessee, the celebrants toasted: "Martin Van Buren —A Republican of the Old School."[50]

Author's Notes

42. *National Intelligencer*, March 10, 13, 20, 22, April 7, 19, 1827.

44. Reprinted in the *Constitutional Whig*, March 14, 1827.

47. *Albany Argus*, April 24, 1827.

48. Van Buren referred privately to the attack in a letter to Azariah C. Flagg, April 2, 1827, Flagg Papers, Columbia University Library.

49. Columbia, South Carolina, *Telescope*, March 22, 1827.

50. *National Intelligencer*, April 7, 1827.

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CHAPTER 9 · SECONDARY SOURCE S9.56

The Invention of Party Politics: Federalism, Popular Sovereignty, and Constitutional Development in Jacksonian Illinois

Gerald Leonard

WORK	The Invention of Party Politics: Federalism, Popular Sovereignty, and Constitutional Development in Jacksonian Illinois
SELECTION	The Antiparty Constitutional Tradition
SOURCE LOCATOR	Original pages 37-38 · University of North Carolina Press, 2002.

Excerpt

But then Van Buren went to work. Imposing caucus control on his "Bucktail" wing of the party, gaining control of the Erie Canal patronage, establishing a party press devoted to the principle of party regularity, creating corresponding committees, and deploying circuit-riding lawyers to deliver stump speeches, Van Buren and his allies created one of the most highly organized political machines to that date. The work paid off in the general Bucktail victories in the election of 1820. Van Buren went to the U.S. Senate, and only the governor's office eluded the Bucktails until 1822. All the while, the call for party regularity as the indispensable mechanism of democracy was not just a tactic but an increasingly fundamental principle of the party and plank of the platform.[91] Van Buren went to Washington in Monroe's Era of Good Feelings with the goal of restoring the nation to a democratic era of openly constitutional conflict. Finding the Republican party so dominant that it was disintegrating into factionalism, he set out to restore its unity. By 1822 there were at least four nominally Republican presidential candidates in the field, each building a faction within the party, each disregarding the activities of the seemingly moribund Federalists or, worse, seeking to recruit Federalists to their candidacies. President Monroe, a traditional antiparty man of the Revolutionary generation, did nothing to unify the party but rather seemed quite content to let it dissolve.[92] The only hope for keeping the party undiluted by Federalism and true to its democratic principles was to restore its unity behind a single, authentically Republican, party candidate. And the only established mechanism for this purpose was the congressional caucus. In the absence of an avowed Federalist candidate to contend with, however, no leading candidate would submit his name to the caucus, except William Crawford. Crawford was duly nominated by the minority of congressmen who attended, while John Quincy Adams, Henry Clay, and Andrew Jackson all ran against the legitimacy of caucus dictation. Crawford ran weakly, and the Bucktails botched the election in New York, but they and others of the nation's "radical" Republicans stood by Crawford throughout the House election in defense of the principle of party regularity.[93] That principle had not proven resonant in the electorate in 1824, but the radicals received a godsend in the House election. The supposed "corrupt bargain" by which Adams leapfrogged over Jackson into the presidency, despite his trailing in the popular vote, was the great event that proved the elite's disregard of the popular will. It showed that the Constitution's mechanisms could be followed to the letter and yet leave the sovereign people without the power to choose their servants. The House election immediately made the anticaucus Jackson the favorite for 1828. But it also gave new weight to the radicals' argument that party was the only mechanism by which the people could guarantee themselves the choice of their rulers, at least until the Constitution was formally amended to guarantee direct popular election of the president. The Jackson movement of 1828 was not simply a partyist movement. It contained many firm opponents of party, including most of those who had supported Jackson in 1824 against partyist dictation by the congressional caucus. Jackson himself had been an old-fashioned antipartyist.[94] For this reason, Van Buren was wary of supporting Jackson, but the only alternative was Adams. Adams was not only the son of the arch-Federalist John Adams, bearing a congenital antipathy to the constitutional enumeration; he had also made clear from his first utterances as president that the will of the people was of little importance to him, the will of a party even less.[95] The result was that Van Buren supported Jackson but did all in his power to make his election a party rather than personal success and thereby resurrect party competition. In a now famous letter to Thomas Ritchie, Van Buren insisted that he sought to unify the anti-Adams vote behind Jackson but also to achieve "what is of still greater importance, the substantial reorganization of the old Republican Party," a goal that he acknowledged was contrary to the antiparty prejudices of the mass of the electorate.[96] Had Jackson been elected in 1828 without the aid of party, perhaps even against the principle of party, as in fact would have been the case if he had succeeded in 1824, that result might have destroyed Van Buren's cause for a generation. Such an election of Jackson would have confirmed for the people that their will could and must be made effective without the mechanism of party. In the event, however, Jackson himself warmed to partyism during the campaign and throughout his two terms. Van Buren succeeded in placing the election of 1828 on an organized party basis in much of the Union and, over time, in turning Jackson into the nation's most important advocate of partyism.[97] At this point in the story, one might want to conclude that Van Buren and the Bucktails had set the two-party system in motion and that modern democratic politics had arrived. There is a certain obvious truth to such a conclusion. Competition between two major parties, at least on the national level, has been a dominant and enduring feature of American politics since the election of 1828. Significant third-party challenges have sprouted at times, and many individual states have had long stretches of single-party domination. Nevertheless, the two-party system has been a resilient part of American political life since

Jackson's election.[98]

Author's Notes

91. See Wallace, "Changing Concepts of Party," 469–71, and "Ideologies of Party," chap. 3. The preceding paragraphs are taken largely from Niven, Martin Van Buren, chaps. 1–6, from Cole, Van Buren and the American Political System, chaps. 1–3, and from Van Buren's own "Autobiography."

92. Hofstadter, Idea of a Party System, 188–200, 226–31; Remini, Van Buren and the Making of the Democratic Party, chaps. 2–3; Ketcham, Presidents above Party, 124–30.

93. Remini, Van Buren and the Making of the Democratic Party, chaps. 4–7.

94. Hofstadter, Idea of a Party System, 195; Chase, Emergence of the Presidential Nominating Convention, 110–11.

95. Hofstadter, Idea of a Party System, 233–37.

96. Remini, Van Buren and the Making of the Democratic Party, 130–33, quotation on

97. On the election of 1828, see, especially, Remini, Van Buren and the Making of the Democratic Party and Election of Andrew Jackson. On Jackson's gradual conversion to a kind of partyism, see Latner, Presidency of Andrew Jackson, 126–29.

98. A valuable, though brief, survey of the evolution of the two-party constitution is in Milkis, Political Parties and Constitutional Government.

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CHAPTER 9 · SECONDARY SOURCE S9.57

The Second American Party System: Party Formation in the Jacksonian Era

Richard P. McCormick

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SELECTION	Excerpt from the supplied edition
SOURCE LOCATOR	Original pages no stable fixed page labels in supplied edition · University of North Carolina Press, 1966.

Excerpt

The party balance in the Middle States showed little change from 1832, although Van Buren ran slightly behind Jackson.

Van Buren's candidacy was the crucial factor in stimulating party formation in the South between 1834 and 1836. Those politicians who for one reason or another were opposed to the "regular" Jacksonian leadership in any state but who had not dared to risk a break with Jackson could denounce Van Buren with considerable assurance. Their position was strengthened when they could offer as an alternative to the New Yorker a candidate from their own region, Hugh Lawson White. From another viewpoint, it might be said that Van Buren's candi dacy provided the opportunity for political dissension in the South to manifest itself in partisan form.

What was perhaps most remarkable about the political complexion of the South at this juncture was that Van Buren lost only three states. Obviously there had developed in each state by 1834 a hard core Jacksonian leadership, which might be termed the "regulars," that saw possibilities of victory even with an unpopular candidate. They were doubtless influenced in their judgment by their appraisal of the fact that Van Buren could count on support throughout the nation, whereas the anti-Van Buren parties were unable to unite on a single candi date. However the situation may be analysed, the South had now entered a brief era of two-party politics.

The long process of party formation moved toward completion between 1836 apd 1840. In the South and West both the Democratic and the anti-Van Buren parties entered into contests in state politics. Some notable shifts took place in party allegiances, especially around 1837 in the South. But these defections are difficult to measure because at the same time the intensity of the party competition was bringing new voters to the polls in unprecedented numbers.

It still remained to be determined whether the Whig parties, as they may now be called, could be welded into a nationwide alliance, comparable to that of the Democrats. They might agree on opposing Van Buren and the Democrats and they could unite in blaming the nation's economic ills on the administration, but they would face a critical test when it came to selecting a candidate to oppose Van Buren in 1840 and adopting a statement of party principles. These tests were met successfully at the national convention in Harrisburg in De cember, 1839. There the party leaders, exhibiting amazing technical ingenuity, succeeded in producing agreement on William Henry Harrison and zealously avoided any semblance of a party platform. The Whigs were united for the contest for the presidency behind a candidate who could be inflated to the dimensions of a national hero. Stirred by the prospect of capturing the White House and, no less important, their state capitols, they returned home to launch the most spectacular campaign in which the whole nation had ever engaged.

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CHAPTER 9 · SECONDARY SOURCE S9.58

Spreading the News: The American Postal System from Franklin to Morse

Richard R. John

WORK	Spreading the News: The American Postal System from Franklin to Morse
SELECTION	The Wellspring of Democracy
SOURCE LOCATOR	Original pages 230–231 · Harvard University Press, 1995.

Excerpt

The Wellspring ofDemocracy gress, McLean declared, he would vote for impeachment for such an abuse of power.[95]

Though Livingston's ruse had the desired effect of quashing the potential investigation, it outraged anti-Jacksonians like John Holmes of Maine, who accused him of invoking the "high responsibility" ofJackson's name to mask his true intentions. "Every petty tyrant," Holmes fumed, "is to cover his crimes by this aegis. No, sir, the truth must be that neither the president nor his minions can give any good reason for these corrupt and corrupting measures, and they therefore have to resort to silence as their only defense against an indignant and insulted people. They know, and everyone here knows, that the removals have been chiefly made to provide for partisans, and they are ashamed to acknowledge it."96

Equally evasive were the Jacksonians in the House. In 1832, for example, one administration critic angrily declared that he had recently read that the Jacksonians had settled on the policy of appointing postmasters "for the purpose ofsustaining particular newspapers," by which presumably he meant that they were bestowing public office upon editors who had gone into debt to help finance Jackson's election campaign. It was an allegation that a fair-minded observer of the Jacksonians' appointment policy would have found impossible to deny. Jacksonian stalwart Richard M. Johnson did, however, flatly deny it, adding that the administration had magnanimously decided against prosecuting the newspaper responsible for publishing such a deliberate falsehood, since it was "better that the press should be a little licentious than that it should be put under any restraint."97

Precisely how much Jackson knew personally about the partisan dismissals remains an open question. Surprisingly little direct evidence has survived to implicate him in particular dismissals, while the evidence that has survived has tended to exonerate him from any direct involvement in the kinds of changes that Green oversaw. Jackson probably knew a good deal more than he let on, but intentionally concealed his knowledge in order to shield himself from congressional scrutiny. On occasion, he was perfectly capable of blocking an anticipated dismissal, even if the dismissal was earnestly desired by his trusted advisors.

A case in point was Jackson's celebrated endorsement of Solomon Van Rensselaer as postmaster of Albany. Van Rensselaer had initially secured the Albany postmastership in 1822, following a bitter political battle in which his appointment had been vigorously contested by Martin Van Buren, then a United States senator. With Jackson's elec- The Wellspring ofDemocracy tion, it was widely assumed that Van Buren, now Jackson's secretary of state, would secure his revenge. To frustrate Van Buren's designs, Van Rensselaer joined the horde of expectants who traveled to Washington for Jackson's inauguration, where he secured a personal introduction to Jackson through the intervention of Edward Livingston, an old friend and, like Van Rensselaer, a patrician from a prominent New York family. To impress the old general with his valor, Van Rensselaer was said to have bared his breast in Jackson's presence to reveal the wounds that he had suffered in the War of 1812.[98] Clearly impressed, Jackson assured Van Rensselaer that "your office is sacred." Back in Albany, Van Rensselaer confided to his son that his "little recreation" had proved worthwhile, which indeed it had. Van Rensselaer remained postmaster until 1839, when he was finally dismissed by Van Buren, only to be reappointed by the Whigs in 184-1.[99] All in all, it was a suggestive reminder ofthe extent to which, even after Jackson's election, the gentrybased political order of the Founding Fathers remained

intact.

Author's Notes

95. Francis P. Weisenburger, The Lift ofJohn McLean: A Politician on the United States Supreme Court (Columbus: Ohio State University Press, 1937), pp. 73-74.

98. John W. Forney, Anecdotes ofPublic Men (New York: Harper & Brothers, 1873), pp. 281-283·

99. Solomon Van Rensselaer to Rensselaer van Rensselaer, March 23, 1829, in Catharina V. R. Bonney,A Legacy ofHistorical Gleanings (Albany: J. Munsell, 1875), vol. I, p. 470-471.

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John, *Spreading the News*, 230–231.

CHAPTER 9 · SECONDARY SOURCE S9.59

Martin Van Buren

Ted Widmer

WORK	Martin Van Buren
SELECTION	Excerpt from the supplied edition
SOURCE LOCATOR	reflowed ebook; no fixed page numbers · Times Books, 2005.

Excerpt

In one specific sense, the disaster of 1824 brought a great gift to Van Buren. He could hardly have asked for a president who more eerily conjured the ghosts of Federalism than John Quincy Adams, who not only resembled his father physically, but retained his choleric intolerance for the little gestures that oil the machine works of American politics. For all his remarkable talents, Adams was in many ways a maladroit politician, and his heavy-handed nationalism fit perfectly into Van Buren's plans to define a new and pure Republicanism. The so-called corrupt bargain, by which Clay engineered Adams's election in the House in return for a high position (secretary of state), inflamed further opposition, and the Virginia firebrand John Randolph excoriated "the puritan and the blackleg" for their marriage of convenience. Adams's patronage policies exacerbated the prevailing distrust in the air, for he hired former Federalists along with Republicans (Van Buren complained that Adams did not care if his support came from "Jew or Gentile"). What had been a vague restlessness under Monroe now burst forth as a full-fledged opposition party, with Van Buren calling the shots.

Some of these developments took place in the public eye, in the halls of Congress, where Van Buren and his friends began to oppose the policies of the Adams administration. Many of these policies seem quite reasonable in hindsight (a diplomatic mission to a pan- American Congress in Panama, federal support for national education, expanded internal improvements), but they exacerbated the prevailing sense that crypto-Federalists had seized control of the government, and they fed the voracious creature Van Buren was raising.

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CHAPTER 9 · SECONDARY SOURCE S9.60

The Market Revolution: Jacksonian America, 1815-1846

Charles Sellers

WORK	The Market Revolution: Jacksonian America, 1815-1846
SELECTION	Politicians "Reapply Principles"
SOURCE LOCATOR	Original pages 293-295 · New York: Oxford University Press, 1991.

Excerpt

Once the Bucktails regained ascendancy in New York, Van Buren reached boldly for national leadership. As the aptest pupil in the country's most advanced political school, he had learned that party was the best instrument for protecting a democratic citizenry from the socially disruptive demands of capitalist elites. After gambling disastrously on Crawford to save the first national party system from Monrovian "amalgamation," and then exerting all his legerdemain for another chance, he now set out to fashion from Jackson's popularity a second national party system. Astutely the Little Magician began by extracting consent from Calhoun. Driven from amalgamation by slaveholder exigency, the Carolinian could no longer resist the Radical strategy of blending democracy with defense of slavery. At a sociable gathering on a Virginia plantation over the Christmas holiday of 1826, he approved a letter that Van Buren proposed to address to the Richmond Junto through Thomas Ritchie. This notable manifesto, enlisting southern Radicals to make the Jackson coalition a "substantial reorganization of the Old Republican Party," was the blueprint for a second party system that would hold a fracturing republic together for another thirty years. Jackson should not be elected merely for his popularity and "military services, without reference to party," Van Buren told Ritchie, but by "a political party, holding in the main, to certain tenets." Regarding political divisions as inevitable, he thought the "the old ones are the best of which the nature of the case admits." The "most natural & beneficial" combination was the old one "between the planters of the South and the plain Republicans of the north," he argued. "The country has once flourished under a party thus constituted &c may again." Having appealed so successfully to democratic New Yorkers through the talisman of Republicanism, the Little Magician anticipated political science by a century in understanding the power of party identification. "It would take longer than our lives (even if it were practicable) to create new party feelings to keep those masses together," he insisted. By instead "combining Genl Jackson's personal popularity with the portion of old party feeling yet remaining," it would be possible to substitute "party principle for personal preference." A Jacksonian Republicanism would do more than maintain proper principles in the North. Van Buren emphasized to his slaveholding allies in the South that it would also repress the threatening "prejudices between free and slave holding states." Party attachment in former times furnished a complete antidote for sectional prejudices by producing counteracting feelings. It was not until that defence had been broken down that the clamour agt. Southern Influence and African Slavery could be made effectual in the North.... Formerly, attacks upon Southern Republicans were regarded by those of the north as assaults upon political brethren 8c resented accordingly. This all powerful sympathy has been much weakened, if not, destroyed by the amalgamating policy.... It can 8c ought to be revived.... Instead of the question being between a northern and Southern man, it would be whether or not the ties, which have hitherto bound together a great political party should be severed. Federalist/Clintonians had long denounced Van Buren's unfolding strategy as perpetuating slavery. Because "the inveteracy of party feelings" protected freestate Republicans from attack at home, argued Rufus King in leading the Missouri agitation, they succumbed to "hopes of influence and distinction by taking part in favor of the slave states." Thus the slave states would maintain "their disproportionate, I might say exclusive, dominance over the Union." King's class politics neutralized his sectional prophecy for Bucktail Republicans, who saw his capitalist developmentalism as forcing northern democracy into defensive alliance with southern slavocracy. Federalist/Clintonians had mounted the Missouri assault from "motives rather political than philanthropical," Van Buren believed, to subvert popular Republicanism. Because they "can never triumph when they meet the democracy of the country, openly," as his Bucktail editor at Albany put it, they sought to "abrogate the old party distinctions" and "organize new ones, founded in the territorial prejudices of the people." The proslavery import of Van Buren's strategy was obscured for a time by its brilliant success in carrying the Jacksonians to power and establishing a durable new party system. Proslavery intent was the more deniable because his leading southern allies still professed a Jeffersonian aversion to human bondage. Ritchie regularly denied that he was defending slavery and would shortly support an earnest effort to drive it from Virginia. Nearly a generation would pass before an embittered Little Magician began to understand how progressive capital had crippled democracy by driving it into the racist embrace of slave capital.

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Sellers, *The Market Revolution*, 293-295.

CHAPTER 9 · SECONDARY SOURCE S9.61

The Birth of Modern Politics: Andrew Jackson, John Quincy Adams, and the Election of 1828

Lynn Hudson Parsons

WORK	The Birth of Modern Politics: Andrew Jackson, John Quincy Adams, and the Election of 1828
SELECTION	Chapter Five
SOURCE LOCATOR	Original pages 133-134 · Oxford University Press, 2009.

Excerpt

The word “campaign” is a military term. It implies leadership, orders, a hierarchical structure, and above all a willingness on the part of the rank and file to place common cause above individual interest. The penalties for disobeying orders in a political campaign are far less stringent than in a military one, and individuals in a political campaign will always have their eyes on their interests as well as those of the candidate or party, yet most successful political campaigns follow as closely as possible the military model. “To manage men,” said a Jacksonian organizer, “is as much a science as to manage armies.”' It probably was no coincidence that the first truly national political campaign for the presidency was run on behalf of a military figure. In the presidential election campaign of 1828 can be found the elements, sometimes rudimentary, of most elections to come: coordinated media, fund-raising, organized rallies, opinion polling, campaign paraphernalia, ethnic voting blocs, image making, even opposition research, smear tactics, and dirty tricks. Most, but not all, of these innovations were introduced by the Jacksonians, who time and again proved that they had grasped the significance of the shifting tectonic plates that lay beneath the political landscape better than their opponents. They recognized that the expanding electorate needed to be handled in new ways. They accepted, and for the most part embraced, the role of organized political parties in a republic. They understood, too, what effective political operatives in future elections would also come to understand: that although particular issues can be important, nothing in a presidential election is more important than the image of the candidate. In the end it was the image of Andrew Jackson, the Hero of New Orleans, the outsider untouched by “intrigue and corruption” in Washington, the defender of true republicanism in the face of its “aristocratic” enemies, that would prevail. It was one of the most powerful presidential images in American political history. Combined with the campaign put together on his behalf and the lack of an effective response by his opponents, it proved to be unbeatable. “Say what you will,” an Adams supporter ruefully conceded after it was over, “these Jacksonians are excellent politicians.””

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Parsons, *The Birth of Modern Politics*, 133-134.

CHAPTER 9 · SECONDARY SOURCE S9.62

The Election of Andrew Jackson

Robert V. Remini

WORK	The Election of Andrew Jackson
SELECTION	Structuring a National Party
SOURCE LOCATOR	Original pages 78-79 · Philadelphia: J. B. Lippincott, 1963.

Excerpt

The problem of the Jacksonian Congressmen was, to a degree, solved by the General himself. When asked specifically about certain issues, he responded by following one of several alternatives: either he took Benton's advice and referred to his voting record in the Senate, or he refused a direct answer on the ground that it might be interpreted as electioneering (and no gentleman would ever electioneer for the presidency), or he wrote long, highly ambiguous replies that could be interpreted several ways, or he ignored the question and simply struck a pose as the Hero of New Orleans cheated of the presidency in 1825.

Yet for all his double talk and concern for his public image, Jackson did subscribe to a national program, one he vaguely alluded to during the campaign (very vaguely) but one he later outlined in detail to Amos Kendall, editor of the Kentucky Argus of the West. As he subsequently defined. it, his program was neo-Jeffersonian and conservative, leaning toward states' rights and the economics of laissez-faire, but so bland and inoffensive that those previously disposed to follow him could not seriously object to a single point.

In the first place, Jackson told Kendall, he intended to reduce the patronage of the federal government. (By interpreting his words as loosely as the rules of language allow, this could mean a policy of economy, though the General did not say so specifically.) The Hero believed that Adams had used the patronage to pay off the men responsible for "stealing" the presidency in 1825, a belief documented to his entire satisfaction by the report on executive appointments submitted to the Senate by Thomas Hart Benton.

Hence, Jackson saw as his first duty the wholesale removal of these Coalitionists, along with anyone else who campaigned for Adams' re-election. "All men in office," he assured Kendall, "who are known to have interferred in the election as committee men, electioneers or otherwise... will be unceremoniously removed. So also will all men who have been appointed from political considerations or against the will of the people, and all who are incompetent." Throughout the campaign this issue became a favorite theme with Jacksonian editors and politicians, who assured the people that the removals were necessary in order to "purify the Departments" and "reform the Government." "Let the cry be JACKSON and RE- FORM," they thundered. But obviously the word "reform" was hardly more than a euphemism for political head-chopping.

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